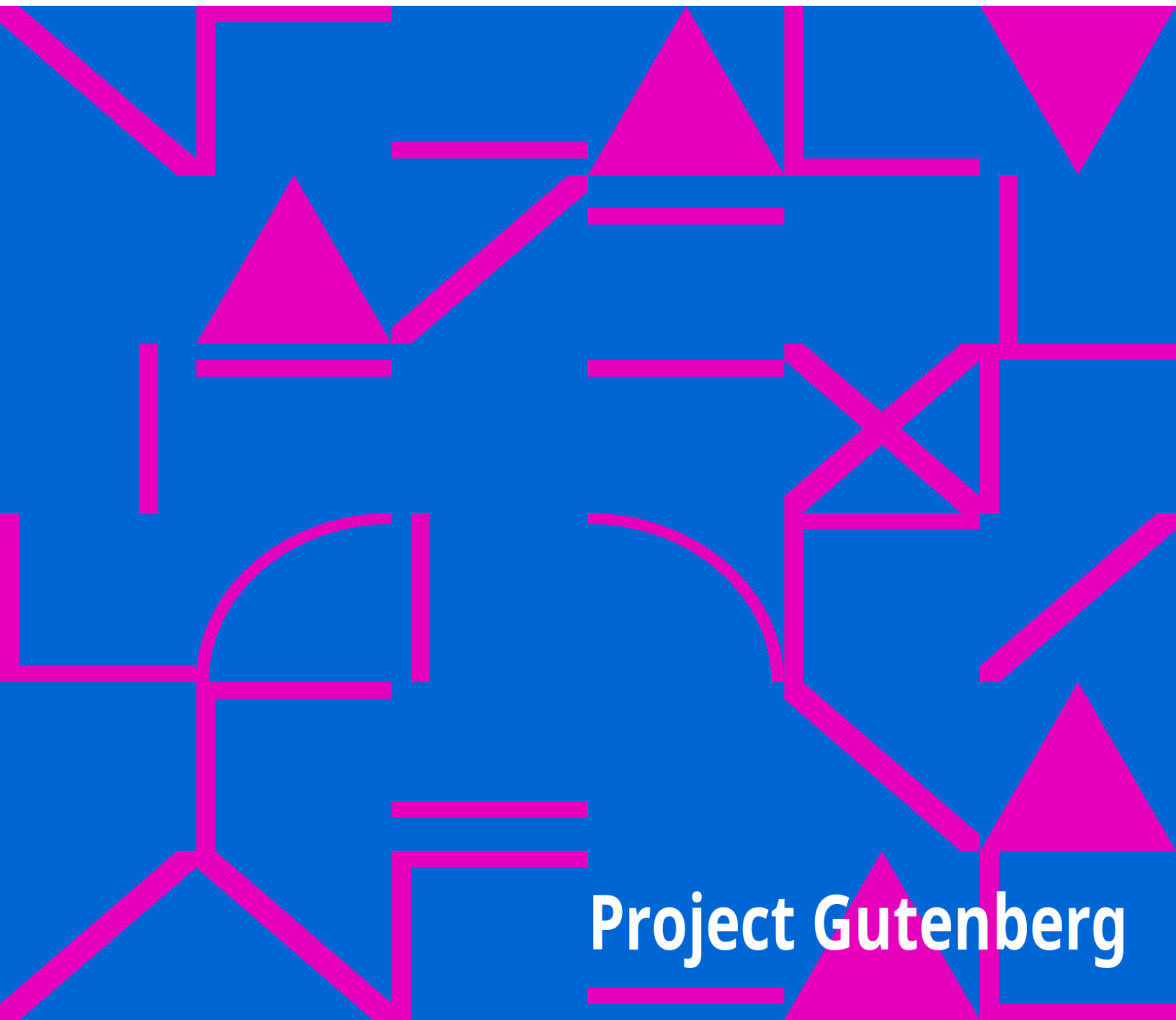


Morals and the Evolution of Man

Max Simon Nordau

The background of the lower half of the image is a solid blue color. Overlaid on this is a complex, abstract pattern of magenta lines and shapes. The pattern includes various geometric elements: straight lines of varying lengths and orientations, right-angled turns, triangles of different sizes, and a semi-circular arc. These elements are interconnected to form a dense, non-repeating geometric design.

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THE EVOLUTION OF MAN ***

MORALS AND THE EVOLUTION OF MAN

MORALS AND THE EVOLUTION OF MAN

By

MAX NORDAU

**A Translation of
"BIOLOGIE DER ETHIK"**

**By
MARIE A. LEWENZ, M.A.
Fellow of University College, London**

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1922**

TO MY DEAR WIFE ANNA (née DONS),

the sunshine of my life in happy days, my
brave
comrade in the storms of the world-
catastrophe, with
love and gratitude I dedicate this book which
helped
both her and me to endure the dark years
when we
were homeless wanderers.

MADRID, *September 26th, 1916*

CONTENTS

CHAPTER	PAGE
1. THE PHENOMENON OF MORALITY	<u>1</u>
2. THE IMMANENCE OF THE CONCEPT OF MORALITY	<u>46</u>
3. THE BIOLOGICAL ASPECT OF MORALITY	<u>84</u>
4. MORALITY AND LAW	<u>115</u>
5. INDIVIDUAL MORALITY AND COLLECTIVE IMMORALITY	<u>144</u>
6. FREEDOM AND RESPONSIBILITY	<u>185</u>
7. MORALITY AND PROGRESS	<u>215</u>
8. THE SANCTIONS OF MORALITY	<u>247</u>

MORALS AND THE EVOLUTION OF MAN

CHAPTER I

THE PHENOMENON OF MORALITY

A very well-known experiment in animal psychology was once made by Möbius. An aquarium was divided into two compartments by means of a pane of glass; in one of these a pike was put and in the other a tench. Hardly had the former caught sight of his prey, when he rushed to the attack without noticing the transparent partition. He crashed with extreme violence against the obstacle and was hurled back stunned, with a badly battered nose. No sooner had he recovered from the blow than he again made an onslaught upon his neighbour—with the same result. He repeated his efforts a few times more, but succeeded only in badly hurting his head and mouth. At last a dim idea dawned upon his dull mind that some unknown and invisible power was protecting the tench, and that any attempt to devour it would be in vain; consequently from that moment he ceased from all further endeavours to molest his prey. Thereupon the pane of glass was removed from the tank, and pike and tench swam around together; the former took no notice whatever of his defenceless neighbour, who had become sacred to him. In the first instance the pike had not perceived the glass partition against which he had dashed his head; now he did not see that it had been taken away. All he knew was this: he must not attack this tench, otherwise he would fare badly. The pane of glass, though no longer actually there, surrounded the tench as with a coat of mail which effectually warded off the murderous attacks of the pike.

The fact so often observed, that man in many cases does that which he passionately desires to leave undone, and refrains from doing that which all his instincts urge him to do—this phenomenon of Morality is a generalization upon a huge scale of the above experiment on animals with the pane of glass in a tank.

Jean Jacques Rousseau thought out a theoretical human being who was by nature good. Such a human being does not exist and has never existed. From sheer annoyance at the provoking obliquity of vision which led the

enthusiast of Geneva to develop such a theory, one is sorely tempted to go to the opposite extreme and declare that man is by nature fundamentally bad; but such an assertion is just as naïve as Rousseau's contention. Good and bad are values which we can only learn to appreciate when we have felt the effect of the phenomenon of Morality. The concepts of good and evil are of much later origin than mankind, and can therefore no more constitute a fundamental characteristic of man's original nature than, for instance, the cut and colour of his clothes; though it is open to wiseacres to maintain that man's nature to some extent actually finds expression in the cut and colour of his clothes—that is, in his choice of them. Anyone contemplating primitive man, man as he emerges from the hands of Nature, stripped of all the additions which he has acquired in the course of his historical development, is bound to admit that man is neither good nor bad; he is a living being acting according to the instincts implanted in his nature; just like the pike. But in most contingencies he does not obey these instincts, and if he reflects upon himself and his actions, he is astounded at realizing this, and asks: "Why do I refrain from revelling in the gratification of my desires?"

Innumerable times every day of his life he would like to break many or all of the Ten Commandments; but he abstains from so doing, and, what is more, mostly without effort, without having painfully to suppress his desire. What prevents him from yielding to his impulses? An invisible power which lays its commands upon him: "Thou shalt not!" "Thou shalt!" Often his aims and inclinations come into violent collision with this order, or this prohibition, and are hurled back by the painful impact. Man hears the threatening, imperious voice, but cannot see whence it comes. Accustomed to reason by analogy, he concludes that it is, like thunder, a voice of Nature. When the pike has sufficiently injured his nose against the pane of glass, he assumes as an actual fact that an insuperable barrier separates him from the tench, and, moreover, that it is both useless and painful to come into contact with this. He does not try to discover the nature of the obstacle, and gives up any further attempt upon his mysteriously protected prey. Man, with a more highly developed intelligence than the pike, does not accept the phenomenon of Morality with dull resignation. Since he has become conscious of a mysterious barrier erected between his volitions and his actions, he has not ceased to reflect upon this barrier, to investigate it with a

timid yet irresistible desire for knowledge, and to try and discover its nature.

It redounds to man's credit that he has devoted so much time and energy to investigating the character and essence of Morality. But the result of these investigations does not redound to his credit. With the exception of theology, there is no subject upon which so much has been written as upon ethics. Yet whosoever plunges into this boundless sea of literature will emerge with feelings bordering upon horror and despair. Here a free rein is given to all man's errors, to his habit of drawing false conclusions, to his faulty modes of thought. Incapacity to interpret facts, association of ideas, elusive as a will-o'-the-wisp and uncurbed by any criticism, intemperate mysticism, arrogant dogmatism, shallow self-sufficiency—all these vie with one another in the presentment of theories which either are patently foolish, arbitrary or ill-founded, or else prove to be so when impartially examined.

It is hard for the few reasonable thinkers who have taken part in this great investigation to make their voices heard amid the uproar raised by the solemn, unctuous, dictatorial or pedantic tomfools. And even the former are not entirely satisfactory, because they do not distinguish clearly enough between the form and the substance, the externals and the essence of Morality, and because they do not discriminate with sufficient care between questions as to its nature, origin and aim, and its powers or sanctions—questions which must on no account be confounded.

What is Morality? Obviously it is necessary to attempt a clear answer to this question before any useful purpose can be served by inquiring into the group of problems to which it gives rise: its aim, its laws, its origin, its method, its assumptions. The Stoics answer this question as follows: "Morality is living according to Nature." Furthermore, it is quite in accordance with the doctrine of the Stoics that Cicero says: "Virtue, however, is nothing but Nature developed to the highest possible degree of perfection" ("*ad summum perducta*"). Moral therefore means natural; Morality and Nature are equivalent; they are one. Really a simpler or more childlike explanation is hardly possible. The most superficial glance at human life and at our own soul teaches us that Morality is contrary to Nature, that it must struggle against Nature to assert itself, that it means a victory over Nature, in so far as we understand by Nature in this special

sense the most primitive reaction of man to simple and more complicated stimuli, the first tendency of impulse, the immediate, instinctive urge to act. Further, the definition of the Stoics ignores the aggregation of concepts which the synthetic conception, Morality, involves; as if this were self-evident and required no definition. The Stoics tacitly assume that Morality and Good are synonymous. Cicero makes this assumption clearer by using the word Virtue (*virtus*) instead of Morality. But in all languages this word implies approbation and praise. It is an appreciation of worth (*Werturteil*), to use the expression so appropriately coined by Lotze.

But the very fact that we recognize Morality as being valuable is by no means a matter of course and it demands an explanation.

Certain actions could only be judged to be good if they were distinguished from others which did not suggest the same judgment, which were felt to be not good, to be bad or indifferent. We come to the question, What is Good, what is Bad? The Stoics reply, "That which is good is natural." It is easy to call facts which please us natural, and such as displease us unnatural. In reality both series of facts are equally natural; because everything that happens is natural; because by definition Nature is the synthesis of all phenomena; because nothing exists outside of Nature, and within Nature everything is a part of her and therefore is natural and can be nothing but natural. If we nevertheless wish to distinguish between natural and unnatural phenomena, if we call Good, Morality, and Virtue natural, and compare them favourably with the unnatural, this only proves that we use the words natural and unnatural as synonyms for good and bad, and that we have a ready-made standard by which we measure the naturalness or unnaturalness (that is, the goodness or badness) of actions, and that there exists within ourselves the law by which we judge them to be good or bad. But how do we come by this law? How, of what material, and why do we fashion this standard? Why do we approve of one thing as good and condemn another as bad? What qualities do the former and the latter possess, or what qualities do we ascribe to them? That is what we want to know when we inquire as to the significance of Morality, and the definition of the Stoics throws no light whatever upon the matter.

According to Aristotle Morality is "the activity of Practical Reason, which is accompanied by pleasurable emotion." It is not worth while to dwell

upon this definition. It is absolutely valueless. Practical Reason is not a definite concept; Aristotle does not say anywhere what he understands by "practical" when he applies this attribute to Reason; and to call every activity of Practical Reason accompanied by pleasurable emotion Morality is mere eccentricity.

To take only one example: if I have a house built, and accept the architect's plans because they please me greatly, my practical reason is most certainly active; the gratification induced by my reasonable choice of the plans is doubtless a pleasurable emotion; but assuredly no one will characterize as moral this activity of my practical reason which is accompanied by pleasurable emotion. It may be that Aristotle was contemplating not a single action, but conduct in life as a whole. In that case he has expressed in an unfortunate, and much too loose a manner the thought that Morality is Reason plus pleasurable emotion. We shall frequently meet with and have to examine this idea, which omits to explain why pleasurable emotions attend certain activities of "Practical Reason," whatever that may be, and fail to be aroused by others.

Judaism, as embodied in its law-givers and prophets, teaches that Morality consists in living and acting in accordance with the divine Will. Maimonides, who, however, was regarded by many of his contemporaries as a heretic, does not consider Judaism a creed at all, but a code of Morality. He maintains that anyone who repudiates the tenets of the Jewish faith, even the most essential one, namely, the belief in a single god, must not be excluded from the Jewish community as long as he conforms to its moral laws. This thinker, usually so accurate and nice in his reasoning, overlooks the fact that in this case he is contradicting himself in a manner wellnigh comic. According to him, too, Morality consists in the endeavour to live and act in accordance with the divine Will. How is such an endeavour possible for a man who does not believe in God and for whom consequently no divine Will exists? Therefore either Morality must be something different from an approximation to the standard set up by the divine Will, or else he who denies God cannot be moral. But I will leave the author of the "Guide of those who have gone astray" to his self-contradiction, and only retain the Jewish definition of Morality as based upon the Will of God.

Without any restriction Christianity has taken over this definition from the mother-religion. In his zeal to claim that God alone is the source of all Morality, St. Augustine allows himself to be carried away to such an extent that he libels mankind most hatefully. Just as for Rousseau man is by nature good, for the Bishop of Hippo he is by nature fundamentally bad. Left to his own devices he would always wallow in the mire of sin and vice, and would never even feel the wish to abandon his wickedness. It is God's mercy alone which rescues him from his depravity and sets his feet upon the path of righteousness, leading him to virtue, salvation and eternal bliss. Thomas Aquinas is no less definite on this point. The scriptures of Judaism and Christianity contain the eternal law which God has ordained for mankind. He points out the paths that man should follow. All Morality springs from Him alone.

To this very day true believers adhere to this doctrine. Morality did not originate on earth; the knowledge of it is a gift of grace from heaven to mankind. It is derived from God; it is that which God has willed; or else it does not need any special act of volition on the part of God, but is the essence of God himself. That is the teaching of Paley, the classical moral philosopher. Virtue consists in doing good to mankind in obedience to the Will of God, and in order to attain eternal salvation. Here stress is laid upon the fact that Morality is active love for one's neighbour, and this is a concession on the part of the conciliatory Englishman to the utilitarian ethics of his countrymen; but for him the necessary and sufficient reason for this love of one's neighbour is the Will of God and the desire for eternal salvation. The German devotee, Baader, blustering like a capuchin, preaches this twaddle: "Any Morality which is not rooted in divine law is the intellectual impiety of our time raised to its highest power; it is the perfection of atheism; for the idea of the absolute autonomy of man atheistically denies the Father as law-giver; the theistic denial of the necessity for divine aid in fulfilling the law does away with the Son or Mediator, and finally the materialistic-pantheistic apotheosis of Matter does away with the Holy Ghost with its sanctifying power." The Frenchman Jouffroy, though more careful and reticent in his manner, unmistakably expresses his conviction that "ethics, as well as the philosophy of law, inevitably and necessarily lead to theology."

But this necessity only exists for minds whose desire for knowledge and truth is easily satisfied by words without a meaning that can be visualized, by fabulous statements accepted without proof, by fictions of the imagination, and by shallow juggling with the association of ideas. Even those who do not approve all Auguste Comte's arguments will agree with him when he classifies the successive steps in the mental development of mankind as the theological, transcendental, and scientific modes of thought. When man's understanding is in its infancy he is content with a supernatural explanation of all phenomena which strike him as mysterious, disquiet him or rouse his curiosity. Only I have never been able to understand why Comte discriminates between the theological and the transcendental modes of thought, and assigns to the latter a higher place than the former. Both are on a footing of absolute equality; both raise arbitrary fictions of the imagination to the position of sources of knowledge; both substitute anthropomorphic trivialities for the observation of phenomena and research into the conditions under which they occur and their relationship to one another. The only difference between them lies in the fact that transcendentalism expresses itself in choicer language than does theology, that it presents formulæ that are more complicated and pretentious, less transparent and honest—formulæ which the unpractised mind does not immediately recognize as mythological dogmas in a pseudo-scientific disguise.

The relationship of theological to transcendental thought is much the same as that of superstition to religion. Both of them are one and the same. Religion is shamefaced superstition, whereas superstition has not yet learned to feel shame. Religion is superstition in a dress-coat, and therefore fit for polite circles; superstition is religion in a cotton smock and therefore cannot be admitted to society. Superstition is the religion of the poor and unassuming, religion is the superstition of fine folk who plume themselves on their formal and verbal scholarship.

Ever since man has risen above the level of the beasts, ever since the first faint glimmerings of thought began in the thick-walled, narrow and dark skull of a hunter of the Neanderthal or Cro Magnon, he has ascribed everything unintelligible in life and in the world around him to divine actions and divine sources. How did the world come into existence? A god or gods created it. How does Nature work? In accordance with the will of a

god or gods, in obedience to divine commands, as a result of divine activities. What is life? A divine gift of grace. What is consciousness? An irradiation of the divinity. What is infinity, what eternity? Attributes of the god. God is the name that from the beginning of time to the present day men have given to their ignorance. They find it easier to bear disguised by this pseudonym; they are even proud of it. With cunning self-deception they have endowed the word with the dignity pertaining to a title of the most awe-inspiring majesty, and they no longer feel ashamed of a poverty of mind which can boast of such a magnificent name. Morality also is one of those phenomena which are not intelligible as a matter of course. The questions how, whence, why, and to what end Morality exists, and what it is, cannot be solved at a glance; its life-history is not apparent to every observer, as is that of the domestic cat. But why cudgel one's brains? Cheap explanations are ready to hand. This way mythology, you maid-of-all-work! Morality has been ordained by God. A moral life is one in accordance with God's commandments. He who will not content himself with this answer is an infidel and does not deserve to have any notice taken of him.

Let us leave the paltry statements of theologians and note how men who investigate questions more thoroughly have dealt with Morality. Descartes defines Morality as the sustained endeavour to do that which one has recognized to be right. It is difficult to discern in this definition the father of scientific scepticism. What are the distinguishing marks of Right? Is the decision as to what is right and what is wrong to be left to the subjective judgment of the individual? In that case Descartes must concede that the action of a burglar is moral, if he has recognized that it is right for him to perpetrate his crime between two and three o'clock in the morning, that being the most favourable time for it, and then strives to the best of his ability to effect an entrance into the building he has selected, at the moment which he has recognized as the right one. Or shall all mankind, or at least the majority, and not the individual, decide what is right? In that case the definition would certainly approximate to the one which I hold to be true; but for one thing it would suffer from vagueness; and, moreover, its originator would lay himself open to the reproach of not having shown why the individual is worthy of praise when he acts in accordance with the convictions of the majority, though these be opposed to his own, and in so

doing allows his action to be determined by a judgment due to a psychic mechanism other than his.

Spinoza's "Ethics" leaves the reader in great discomfort, the result of vacillating and contradictory explanations. Obviously Descartes' great disciple had no clear conception of the essence of Morality and held either consecutively, or may be even simultaneously, divers views on the subject, amongst which those of all schools of thought are either quite clearly expressed or at least implied. "By Good," he says, "I mean that which we know for certain to be useful to us."^[1]

^[1] I quote the wording of Berthold Auerbach's translation: "B. de Spinoza's collected works. Translated from the Latin by Berthold Auerbach." Stuttgart, J. G. Cotta, 1871. Second edition, Vol. II.

And again: "To act absolutely virtuously is merely to act, live, preserve one's being (these three mean the same thing) in accordance with the dictates of Reason, because one seeks one's own interest."

According to that Morality is synonymous with egoism, and its aim is man's individual profit or interest. Even the most pronounced Utilitarians among ethical theorists have not ventured to go to such lengths. True, they have contended that the aim of moral action is happiness, but at least they define it as the happiness of the whole community and not that of the individual, except in so far as he is a member of the community and has his fair share of its well-being. Spinoza foresees the objection that the pursuit of one's own happiness cannot possibly deserve the universal esteem in which virtue is held, and he tries to adduce reasons whereby the egoism which he characterizes as moral may be justified and palliated:

"Everyone exists according to the supreme law of Nature, and consequently everyone does, according to the supreme law of Nature, that which results from the necessities of his own nature; and therefore every man forms his judgment as to what is good and bad according to the supreme law of Nature, pursues his own interest according to his lights, seeks revenge, strives to preserve what he loves and to destroy what he hates." That is possibly the most audacious and at the same time the most ill-founded statement that has ever been written on the subject of Morality. Morality means behaviour calculated to further one's own interest. Morality is

therefore utility. But man cannot act otherwise than morally, since he always acts as he is compelled to do by his own nature. There is no sense in discriminating between good and bad, moral and immoral, since one always acts in accordance with the behests of Nature. Man automatically executes the dictates of Nature which is alone responsible for his deeds.

For the Stoics, too, Morality is action in accordance with the law of Nature, but Spinoza goes further than the Stoics, in that he does away with any universally applicable standard of moral conduct, and sets up instead of Nature pure and simple, which is the same for all, each man's individual nature as the authority which shall lay down rules of behaviour for him. So Morality is something individual and subjective. Man acts according to the requirements of his interest; his own nature shows him what his interest requires; no other person has any right or any qualification to form a judgment upon the worth of his conduct, to call it good or bad, for he cannot know what course of action the man's personal nature, peculiar to himself and to no other, may prescribe to him. This is the doctrine of anarchy and amorality put in a nutshell, a more wordy paraphrase of the *Fais ce que voudras* (please yourself), the terse inscription that Rabelais put over the entrance to his Abbey of Thélème, as the only law governing that abode of alluring wantonness. Spinoza certainly does half-heartedly concede to Reason the rôle which Aristotle positively assigns to it ("To act in an absolutely virtuous manner is merely to act according to the guidance of Reason," etc.), but it is impossible to see how Reason can exercise guidance and control if "everyone does according to the supreme law of Nature that which results from the necessities of his nature." This can surely only mean that everyone may yield to the unbridled desires of his natural instincts, which is the very reverse of self-control by Reason. If Nature is to rule despotically, there is obviously no place for a constitutional limitation of her sole power by the effective counsel and protests of Reason.

But Spinoza renounces in a much more definite way his views recognizing the right of every individual "to form his judgment as to what is good and bad according to the supreme law of Nature," for he calmly adds: "Society can be founded, if it reserves to itself the right possessed by the individual to take revenge, and to pronounce a verdict on what is good and what is bad; thereby it acquires the power to prescribe rules of conduct for the community, to make laws, and to enforce them, not by means of Reason,

which cannot restrict passions, but by threats.... Hence in a state of Nature, sin cannot even be imagined."

This concession to Society most emphatically contradicts his first definition of Morality. It does away with the right claimed for the individual "to do according to the supreme law of Nature that which results from the necessities of his own nature," and by the same "supreme law of Nature" to "judge what is good and what is bad." It subjects conduct to the restraint, not of Nature, but of Society. It bears witness to the admission that "Reason cannot restrict passions," although Spinoza has just required the virtuous man to "act according to the guidance of Reason." Spinoza admits that Morality is not the consequence of a law inherent in the individual, but of an extraneous law forced upon him by society; that it is not an individual but a social phenomenon. In this he agrees with the conclusions of modern sociological thought, but his merit is much diminished by the fact that he skims lightly over the one great difficulty which sociological ethics is struggling to overcome. He says, society "reserves to itself the right ... to pronounce a verdict on what is good and what is bad, and thereby acquires the power to prescribe rules of conduct to the community," etc.

It has the power right enough; police, judge, prison and gallows bear witness to that; but has it the right? That is not clear without further investigation. It requires to be proved. The amoralist can emphatically deny this, basing his conclusion on Spinoza's own definition. He can legitimately declare that he need submit to no dictates of society, that he owes obedience only to his own nature and his own inner needs, and the moral philosopher can only prove to him that he is wrong by scornfully indicating the penal code and its stalwart minions.

Spinoza, we see, has already given a whole series of mutually destructive and contradictory definitions of Morality: it is the law of life and conduct which society lays down for the individual, though we do not learn from him on what principles it is based; it is the pursuit of one's own interest as indicated by Reason; it is obedience to necessity—that is to say, to the demands of one's own nature. All this does not suffice him. He discovers a new aspect of Morality. "Recognition of Good and Evil is nothing but a pleasurable or a disagreeable emotion in so far as we are conscious of it."

And again, "Pleasure is not actually bad (as the ascetics probably contend), but good; pain, on the contrary, is actually bad."

In this case the ideas pleasure and pain are treated as equivalents of good and bad, as were useful and harmful in the former case. According to the axiom that things that are equal to the same thing must be equal to one another, pleasurable is synonymous not only with good, but also with beneficial, and in like manner painful with bad and harmful. Brandy undoubtedly produces a sensation of pleasure in the drinker; is brandy, then, good in a moral sense? Above all, is it beneficial? Many such questions could be put to Spinoza, but this one is enough.

Thus we discover Spinoza to be at one and the same time a Utilitarian and a Hedonist, the champion of Impulse and again of Reason, an anarchistic individualist and a herald of the right of society to rule the individual. Angry and disappointed, we turn from him, for instead of finding in him the definite standard we sought we have met with the shifting hues of the chameleon and the uncanny changes of form of Proteus.

The views of the English thinkers are clearer and more convincing although they, too, do not carry their investigations far enough. Hobbes uses Justice and Injustice as synonyms for Morality and Immorality, and he definitely recognizes what Spinoza only dimly guessed, namely, that these ideas could only arise in man when living as a member of society and not in a being dwelling alone. According to him, therefore, Morality is a social and not an individual phenomenon; just as the moral philosophers of the theological school look upon it as the Will of God, so he considers it to be the Will of Society. But he was under the obligation (non-existent for the theologian) to trace to its source this social Will, to show how it is manifested, to explain why the individual not only submits to it, but values this submission far more highly than mere utility. Man learns the Will of God by revelation, and it is forbidden to inquire into its basis. To the Will of Society Hobbes cannot possibly ascribe the same incontestable sanctity. It should not have escaped his notice that this Will is neither uniform nor of assured stability, and that it often wavers and is sometimes self-contradictory. Therefore, if he wants to call the Will of Society Justice, as the theologians call the Will of God Morality, and if he wants to look upon Justice and Morality as equivalents, then it is his duty to explain how Society can make claims

which conflict with the principles on which the universal rules it has drawn up are based, and which, consequently, not being just or moral, are unjust and immoral, but which, nevertheless, must be acknowledged by the individual as being both just and moral, simply because they are social claims.

In Kant's moral philosophy we find the extremest form of mystic dogmatism; its success would be inexplicable did one not know how prone mankind is to be intimidated by brusque statements. Kant's dictatorial pronouncements have become common-places. "Act only on that maxim whereby thou canst at the same time will that it should become a universal law." That is very impressive. But what is "the maxim" on which you act? This maxim is the moral law. Now we yearn to know what this moral law is, whence it comes, and on what it is based.

But our yearnings remains unsatisfied. The moral law is a secret. It is an incomprehensible power which rules our consciousness. Ask no questions. Be silent, submit and obey. Even the theologian discussing moral philosophy will listen to reason. He gives us the information, sibylline though it be, that the moral law emanates from the Will of God, and is shown to us in the revelations of religion. Kant does not even give such meagre information. The moral law exists. That must suffice. "The starry heavens above thee, the moral law within thee." You retort that that is a metaphor which you may call poetical, if you like, but it is no explanation. You will get the following reply: this metaphor, rightly understood, indicates that the moral law is eternal, that it is part and parcel of uncreated Nature like the stars, that it is a phenomenon of the same order as all the elements that go to make up the universe. "The moral law does not flow from antecedent ideas of Good and Evil; on the contrary, the moral law decides what is good and what is evil." It is not derived from human experience. The less so since "it cannot be proved by experience that it has at any place or any time become real." In other words, no one can testify that the "Categorical Imperative" has ever been realized, that the moral law has "at any place or any time" ceased to be a Kantian theory productive of sacred thrills, that it has ever emerged from the unapproachable cell wherein it dwells in the temple of human consciousness, to take a place and play an active part among mortals.

The lessee of all Kant's wisdom, Hermann Cohen, with the clumsiness of an over-zealous assistant, has expressed his master's thought in a perfectly ludicrous form: "The moral law is to be conceived as a reality of such kind that it must exist, that its being must be" (note the elegance and euphony of the phrase "being must be"!) "even if no creature existed for whom it would be valid." True, the moral law is a maxim on which you should "act," a standard of human conduct, but it would still exist if there were no human beings and no action. It would come to exactly the same thing if Hermann Cohen said: the railway is to be conceived as a reality of such kind that it must exist if there were no human beings and consequently no travellers; even if there were no earth on the surface of which rails and sleepers could be laid. This is such palpable nonsense that it would be a work of supererogation to prove its absurdity. By this grotesque exaggeration Hermann Cohen has clearly brought to light the hollowness and weakness of Kant's Moral philosophy which culminates in the "Categorical Imperative." In spite of its arbitrary dogmatism, the formula of the "Categorical Imperative" has taken a hold on the imagination of the superficially educated, and has never ceased to be repeated with the fervour evinced by a devout man at prayer, by several generations of those who have made it their business to cultivate mental and moral science.

In one of his early novels, "The Island of Dr. Moreau," H. G. Wells has described how an audacious scientist, by performing an operation on the brains of the most savage beasts of prey, such as panthers, wolves, etc., transformed them into creatures with the powers of thought and speech. He succeeds in suppressing, or at least in lulling for the time being, their bloodthirsty instincts, but he is always afraid that these may be roused again, and forbids the animals on which he experiments to touch blood or fresh meat. He takes good care to give no reason for this prohibition. He merely issues it sternly and threateningly. It is "the Law," an unknown, inexplicable, but terrible power to which one must submit, because opposition would expose one to unimaginable, but terrible evils. If temptation assails the beasts they flee it, whispering fearfully and warningly to one another: "The Law! the Law!" Wells is a trained philosopher, and often has his tongue in his cheek. I shrewdly suspect that when he writes of the mysterious "Law" which fills Dr. Moreau's semi-humanized beasts of

prey with superstitious terror, he is poking fun at Kant's "Categorical Imperative."

The great logical mistake in Kant's moral philosophy is that he conceives Morality as a social or collective phenomenon, and yet defines it as an individual one. According to Kant, the Categorical Imperative exists within us. It is as immutable as the starry heavens above us. It gives us the criterion by which to discriminate between good and evil. Its realm is our consciousness wherein it lives and rules; it is not introduced from outside, it springs from no power or conditions outside our person. All the same, the only law which this ultra subjective Categorical Imperative imposes on us is the most centrifugal that can possibly be imagined: "Act only on that maxim whereby thou canst at the same time will that it should become a universal law." Hence our action is designed to produce an effect on the world around us. It is "to become a universal law" can, of course, only mean, it is to become a universal law of human society, for Kant cannot possibly have aspired to make the Categorical Imperative impose laws upon the stars in their courses. Our moral law, in so far as it applies to our actions, deals with society. When we formulate it in our minds, we associate it from its first inception with the notion of the society to which it is to be applied. It would have been logical to say: "Your standard of conduct is to be what society recognizes as its universal law." But Kant puts the cart before the horse and says on the contrary: "The maxims on which thy action is based are by thy will to become the universal law of society."

Other philosophers have avoided this mistake. Hegel declares: "It is not until man becomes a member of a moral community that the ideas of Duty and Virtue attain a definite meaning and become direct representatives of a universal spirit in subjectivity, which knows that it is actuated in its aim by the universal and realizes that its dignity and its particular aims are founded upon it." If we translate this horribly hazy language of Hegel's into plain speech we find it means: "The ideas of Duty and Virtue only acquire a meaning when they are applied to the acts of commission and omission of the individual member of a community." (When Hegel speaks of "moral community" his use of the word "moral" is inadmissible, for he takes it for granted that the meaning of the word "moral" has been determined and is clearly understood, whereas he ought first to have defined its meaning.) The concepts of Duty and Virtue denote that the individual in taking action

thinks of the community, that regard for its interests determines him, that his actions do not attain dignity and worth until his aim becomes the interests of the community, that these interests must coincide with those of the individual if his actions in his own interests are to merit the appellations of dutiful and virtuous. In short: to act morally is to act so as to ensure the well-being of the community. The real Categorical Imperative is a social conscience.

Feuerbach expresses this thought clearly and distinctly when he says: "There can be no question of Morality in the strict sense of the word except where the subject of discussion is the relationship of man to man, of one person to another, of me to thee."

Recent contemporary French writers are in no way doubtful of the meaning implied by the concept of Morality. "Morality," says Littré, "is the whole collection of rules which determine our conduct towards others. Moral Good is the ideal, which at any period of a civilization forms opinions and customs with respect to this conduct; moral evil is that which offends this ideal." This definition is very incomplete and weak, as will be seen in the course of our remarks, but on one point it is quite clear: it treats Morality as a social phenomenon, it paraphrases it as the adjustment of individual action to the standard set up by the community. The question of the origin and the aim of this standard is left open.

L. Lévy-Brühl formulates Littré's idea more clearly. "We call by the name of Morality the collection of such conceptions, opinions, feelings and customs respecting the mutual rights and duties of men in their life as members of a community, as are recognized and generally observed at a given time in a given civilization."

Thus, according to some, Morality is subjection to an absolute law of divine, or at any rate of unexplained and inexplicable origin, which religion or a mysterious inner voice reveals to man; according to others, it is the recognition that the claims of the community, or at any rate of the majority of one's fellow men, are of binding force upon the actions of the individual. These different answers to an inquiry as to the origin of Morality both contain the tacit admission that it is a law which peremptorily dictates to man what he shall do and what he shall not do. But by means of what

psychic mechanism does this law enforce obedience in the consciousness of man? It is remarkable that all moral philosophers, no matter to what age, nation or school they belong, dimly feel or clearly recognize that in civilized man at any rate, natural instincts and judgment are always at war; that the latter opposes the former; that in the victory of judgment over impulse lies the very essence of Morality; that consequently the essence of Morality implies the control and repression of instinct by Reason—in a word, that it is inhibition.

We have seen that Aristotle, in definite though unconscious opposition to the Stoics, who consider Morality synonymous with Nature, defines it as the activity of Reason.

Henry More was the first to express this quite clearly: "Virtue is an intellectual force of the soul which enables it to control ... animal instincts and sensual passions."

And Dr. Jodl sums up the character of Christian morality in the statement: "Moral philosophy under the influence of Christian ideas makes Morality always appear in the guise of a prohibition; at any rate it is apt to conceive Morality as acting in an essentially restrictive and prohibitive manner upon the natural impulses and instincts of man."

This is not quite correct. This Christian code of morals does not always manifest itself as a prohibition. Its main precept is: "Love thy neighbour as thyself." That is not a prohibition but a positive command. Nevertheless, the point of departure of this command is an inhibition. For the first instinctive movement of man is selfishness and, as its consequence, indifference to one's neighbour; the first imperious impulse is to sacrifice the latter's interests to one's own. But if regard for one's neighbour, nay, love for him permeates our feelings, thoughts and actions, that denotes a victory of Christian ideas over the impulse of instinct, a suppression of that impulse—that is, an inhibition which, not content with mere prevention, prolongs its efficacy in the same direction until it changes the impulse of selfishness and inconsiderateness into its very antithesis, that of unselfishness and charity.

It constitutes an important advance in knowledge to recognize that Morality, and not, as Jodl makes out, only Christian Morality, is manifested as an inhibition, as the victory achieved by Reason over Instinct which is

contemptuously described as animal, simply because its worth is judged by a standard already supplied by current views on Morals. It is inadmissible to judge by this standard when one attempts an impartial investigation into the ultimate foundations and the essence of Morality. We have no plainly obvious right—no right which does not require a proof—simply to scorn instinct as animal; to run it down from the start and with a respectful bow to give Reason precedence over it; to applaud with satisfaction the suppression of rascally Instinct by highly respectable Reason. Instinct is no more animal than any other manifestation of life in man; and he indulges in pleasant self-deception if he imagines that he is other than an animal, that is, a living organism in which all processes take place according to the same laws as in all other living beings, from the simplest one-celled creature to the most highly developed and complicated.

In itself Instinct has the same claim to dignity as Reason; according to some people an even greater one, because the former is more primitive, unpremeditated, self-assured and firmly established than the latter, and if Reason claims to be the superior, it must substantiate that claim.

As a matter of fact, that claim has never been universally acknowledged.

Periods during which Reason rules at least in name and is treated with the obsequious reverence which the model citizen has, or feigns to have, for his sovereign, are followed by others in which Instinct revolts; rebels dethrone Reason and set up Instinct in its place, or, as they call it, passion and nature. The parties which in turn wield power in these periodic revolutions may be briefly termed classical and romantic. The classicists are the legitimist supporters of Reason; the romanticists are revolutionaries, and their leaders are men like Cleon or Jack Cade, Cromwell, Washington or Robespierre; that is to say, rude demagogues or subtle dialecticians in favour of Instinct. Among the legitimists in Reason as in politics, are to be found those who maintain the divine right, who base the right of Reason to rule over Instinct upon the Will of God, and others again, the constitutionalists, who base their support on the Will of the people, on universal suffrage, who force upon Instinct the law promulgated by society. I need not carry the metaphor to extremes. Every reader can work it out in all its details. I only wanted to show quite clearly that almost all moral philosophers conceived Morality as a struggle between Reason and Instinct, as the defeat of lawlessness by law.

But their views diverge widely when they try to explain the source of this law and its claim to obedience.

The theologians find no difficulty in this explanation. Just as the essence of Morality according to their ideas is the nearest possible approximation to divine perfection, so the moral law is one enacted by God Himself, and it is a sin punishable with hell fire to fail to observe it or to rebel against it. Others look upon Man as his own law-giver, and trace his moral conduct, his willingness to combat his own instincts, to an inner voice which teaches him what is right. They call this inner voice by different names. They call it Nature, Reason or Conscience, and look upon it as something innate, as a normal constituent of man's psychic nature. That is the meaning of Fichte's apodictic statement: "That which does not meet with the approval of one's own conscience is necessarily sin. Therefore he who acts on anyone else's authority acts in a conscienceless manner."

With this emphatic utterance Fichte dismisses both the devout believers, for whom Morality is the revealed Will of God, and the Rationalists who look upon it as the dictate of society. He considers that if man claims to act morally, he can do so only on his own authority, i.e. on that of his conscience. He is not aware that in so doing he frivolously abandons all rights to pronounce an objective moral judgment on any human action. He thereby relinquishes the power to ask any further question except: "Did he act in accordance with his own conscience? If so, then he has acted in a subjectively conscientious way, even if it appears to me to be immoral or even criminal and monstrous. If he has acted contrary to the promptings of his own conscience, then he is assuredly a sinner, even if his action be in my eyes splendid and exemplary." Thus Fichte, with his subjective basis of Morality, is led to a conclusion which is a ludicrous reversal of generally accepted ideas. According to him, a man would be acting conscientiously if, despising what all others hold good, right and sacred, he wallows in the satisfaction of his selfish instincts, as long as his conscience approves or even bids him do so; on the other hand, he is a sinner if, in opposition to his inner voice, but according to moral law, that is in obedience to extraneous authority, he practices all the virtues.

All these subjective moral philosophers tacitly assume with Rousseau that man is by nature good. They take no account of the empirically established

fact that there are men whose Fichtean conscience, or whose Kantian categorical imperative, urges them to a course of action which according to the general opinion is bad, wicked and revolting. This criticism applies to Beneke, according to whom Morality is "a development of human nature which exists as such within us, and which we need only continue or promote"; it applies equally to Reid and Dugald Stewart, who describe it as an inclination, which has become a habit or a principle, to act according to the dictates of conscience. But conscience must be explained. It is by no means self-evident that each individual conscience will have the same standard of good and evil. The moral philosopher must not shirk the duty of showing how the conscience acquires its concepts of moral values, with what weapons it provides Reason to combat Instinct, which demands satisfaction without paying any attention to the warnings of conscience.

The great majority of moral philosophers do not endorse the view of Kant and Fichte, that conscience is a piece of human nature, a sense inborn in man, an inner voice that is independent of, and unmoved by, external influences; on the contrary, they are convinced that conscience originates outside the individual, that, in his consciousness, it is the advocate retained by society, commissioned to plead the cause of the community before the reason of the individual even, nay, especially, when the interests of the community run counter to those of the individual.

Bacon calls the presence in our consciousness of a defender of the interests of society our innate social affection, and treats it unreservedly as the source of Morality. Long before his time the Stoics had noted the existence of this social affection and called it οἰκείωσις; Hugo Grotius, with the intellectual perspicuity peculiar to himself, says that "Right and Morality flow from the same source, and this source is a strong social instinct natural to man, it is solicitude for the community, a solicitude guided by Reason." The English philosophers are practically unanimous in ascribing both conscience and Morality in general to a social source. The welfare of the community, says Richard Cumberland, is the highest moral law; Hutcheson remarks that, in the struggle between egoism and universal benevolence, the decisive factor in favour of the latter is the accompanying feeling, the reflective emotion of approval.

In modern parlance we call "universal benevolence," altruism, and the "reflective emotion of approval" is a paraphrase of conscience which contains an indication of its mode of action. For the idea that our action will meet with the approval of the community and the pleasurable emotion of satisfaction are in fact the reasons why we mostly submit to the dictates of conscience voicing the commands of the community. Only Hutcheson is too venturesome and goes too far, when he maintains unreservedly that the reflective emotion of approval in the struggle between egoism and universal benevolence is the decisive factor which turns the scales in favour of the latter. This is by no means always the case. When it does occur we call the action moral, but we characterize it as immoral when, in spite of the "reflective emotion of approval" "universal benevolence" is worsted by egoism.

It is unnecessary to quote the opinions of other moral philosophers. It is enough to observe that most of them describe the moral law as a social agreement and make conscience its accredited representative. L. Lévy-Brühl repeats a doctrine current since the days of Pythagoras when he says: "The sense of duty and that of responsibility, horror of crime, love of what is good and reverence for justice—all these, which a conscience sensitive to Morality thinks it derives from itself and from itself alone, have nevertheless a social origin"; and Feuerbach expresses the same view in an entertainingly melodramatic fashion when he calls the voice of conscience "An echo of the cry of revenge uttered by the injured party." This cry of revenge would never wake an echo in us if we did not possess a sounding board which cries of distress and lamentation cause to vibrate. Schopenhauer, digging deeper than his predecessor, clearly recognizes this sounding board, and describes its characteristics when he says that the foundation of ethics is pity, which in its passive form warns us: "*Neminem laede!* Do harm to no one!" And in its active form gives the order: "*Imo omnes quantum potes juva!* Assist everyone with all your might!"

The assumption, that sympathy with his neighbour must be present in man's consciousness before he is capable of moral action, is one that need not be made by subjective moral philosophers, who hold with Kant and his school that the moral law is an inborn categorical imperative, which proclaims its commands without reference to any extraneous object, or to the world, or mankind.

In the same way the theologians have no need of it, for they consider that what is morally good is the Will of God.

But he who holds with the moral philosophers of sociological tendencies that Morality is regard for one's fellow men, and the recognition that the claims of the real or supposed interest of the community are superior to those of the comfort of the individual, must admit that sympathy is a necessary preliminary to moral action; i.e. that the individual must have the ability to picture the sufferings of others so vividly that he feels their sorrows as his own, and with all his might and all his will strives to prevent, alleviate and heal them. The lack of this ability, psychic anæsthesia, is a symptom of disease. It renders the person affected incapable of moral action. It is a characteristic of the born criminal, and is the essential symptom of that state of mind which alienists term moral insanity. Even in this condition, if reason and the power of judgment are not affected, great offences against current moral law can be avoided. But this results from the fear of the painful and ruinous results which a collision with public opinion entails, even if the offender is not actually haled into court. It is not due to any inner necessity, nor to the prompting of one's own feelings.

Only the Rationalists have any cause or reason to inquire into the aims of Morality, whether they look upon the moral law as dictated by society or are of the opinion that it is the sum total of the rules by which Reason, of its own initiative, successfully combats the urging of Instinct. If the moral law is a creation of society, and is obeyed by the individual out of sympathy with his fellow-men or consideration for society, the logical conclusion is that society has set up the moral law to satisfy some real or imagined need. Its aim in this case can only be the real or supposed welfare of the community. This is the most widely accepted view.

"Morality and universal welfare," says Macchiavelli, "are conceptions which coincide." In his calm assurance this apodictic writer, who doubtlessly slept well and had an excellent digestion, is never troubled by a doubt as to whether there is such a thing as an absolutely reliable measure of universal welfare, and therefore whether Morality, which is termed its equivalent, can provide us with a perfectly unimpeachable standard. He whose ethical conscience is more tender and timid will inevitably anxiously ask himself: Who decides what universal welfare demands and what is

conducive to it? Is it to be the masses? Is the mob, incapable of thought, ignorant, swayed by momentary and shifting impulses, to make moral laws for the select few who are its natural guides? What tragedies would necessarily result from this definition! How often a strong personality, trained to come to independent conclusions, refuses to obey the voice of the mob! Is the sheep who trots bleating along with the herd to be taken as the type of a moral being? Must we necessarily condemn as immoral those who swim against the stream, enlightened tyrants who force upon their people hateful innovations calculated to ensure their welfare,—such men as Peter the Great, the Emperor Joseph II, the reformer who comes into violent conflict with the majority who are creatures of habit? "The aim of Morality is the welfare of society; this is indeed the essence of Morality." A sufficiently safe and most soothing formula this seems; but really the security it gives is most deceptive, and it leaves unsolved the most important problems relating to the phenomenon of Morality.

A numerous group of moral philosophers seeks the aim of moral conduct in the individual himself, not outside him. In spite of Schopenhauer's sympathy, they doubt that consideration for the well-being of the community would act forcibly enough upon the individual to induce him to wage unceasing war on his impulses and struggle to overcome them. Rather they hold that the individual must find in his inner consciousness not only the spur to moral action, but also the reward for the same, and they characterize this driving force as pleasurable emotions in every sense of the words. According to them man acts morally because, and in so far as, he anticipates pleasurable results from so doing. Epicurus considers the aim of Morality always to be Pleasure. He makes only the one reservation, that a reasonable man will renounce an immediate pleasure for the sake of a greater one in the future, and that he may delight in the anticipation of pleasurable emotions which defeat and dull present pains. Thus the martyr may be a true Epicurean, even if by his actions he exposes himself to most cruel torture and the most painful death, for he is convinced that the everlasting joys of paradise will more than indemnify him for his temporary sufferings.

I have already shown that Aristotle considers Morality the activity of practical Reason, which is accompanied by pleasurable emotions. He makes these pleasurable emotions an essential part of Morality, and Spinoza shares

this view, for he says: "Knowledge of good and evil is nothing but a pleasurable or a disagreeable emotion in so far as we are conscious of it."

No less roundly, one might almost say brutally, Leibnitz declares: "We term good that which gives us pleasure; evil that which gives us pain," while Feuerbach expresses himself rather more carefully and indefinitely thus: "The instinct for happiness is the most potent of all instincts. Where existence always occurs together with volition, volition and the will to be happy are inseparable; they are, indeed, essentially one. 'I will,' means 'I have the will not to suffer, not to be hindered and destroyed, but, on the contrary, to be assisted and preserved; that is, I have the will to be happy.'" This is a wordy paraphrase of Spinoza's: "All existence is self-assertion, and Morality is only the highest and purest form of this fundamental instinct in a reasonable being."

Among those moral philosophers who see in pleasurable emotions the aim of Morality, its reward and its incentive, we must distinguish two groups: those who understand by pleasurable emotions such as appeal to the senses—the Hedonists; and those who spiritualize the meaning of the word and expect of Morality not an immediate bodily gratification, a pleasure, or an insipid satisfaction of the sense, but lasting happiness—the Eudæmonists. At the first glance the Eudæmonists seem to have a higher and more worthy conception of the subjective reaction of moral conduct than have the Hedonists; for the satisfaction the former expect and promise does not apply to the lower spheres of our organic life, but to the loftiest functions of our mind, from which alone a feeling of happiness can emanate.

But if we look into the matter more closely we find that to draw a sharp distinction between the Hedonists and Eudæmonists is more than a little arbitrary. For Pleasure and Happiness differ hardly at all in essentials, but chiefly in degree; and this would at once be obvious if one only took the trouble to define the two ideas, which, however, is mostly not done. And with good reason, for it is impossible to explain Pleasure. You can use synonyms for it; you can look wise and say: Pleasure is that which is agreeable, or that which one desires, that in which one delights, or a certain quality of feeling which accompanies such organic processes as strengthen or vitalize the system; but all that this amounts to is to say in a roundabout way, Pleasure is Pleasure. It is a fundamental fact of our inner

consciousness, just as inexplicable as life, or as its antithesis, Pain. But if we assume that Pleasure is something given by subjective experience, then the idea of Happiness can be defined. Happiness is a flooding of the consciousness with sunshine; it is enjoyment of the moment, a sense of living in the present accentuated by pleasurable emotion. If this feeling is organically differentiated, that is, if it springs from a certain section of the mind or mechanism of the body and can be located there, it is ecstasy. It is only felt as Happiness when it is, so to speak, melted, dissolved, distributed throughout the organism, cœnesthetically diffused.

If we agree to this definition we can take Eudæmonism into consideration as an aim of moral action, but Hedonism we shall have to discard from the start. If Morality is to be inhibition, a victory of Reason over Instinct, then it cannot possibly arouse Pleasure, since the first and most immediate source of Pleasure is the surrender to instinct, the satisfaction of the organic appetites; but if one resists them, suppresses them, then one experiences a privation which at best occasions discomfort and may easily cause pain. By its very nature and the mechanism by which it works, Morality can therefore give rise to no pleasure, but only to discomfort. All the same, it can afford a feeling of happiness.

It may be objected that I am guilty of a contradiction when I assume the possibility of Happiness without Pleasure, as I have just described Happiness as a particular kind of Pleasure; but in reality there is no contradiction. For Pleasure springs from a special organic apparatus, whereas Happiness is not a condition of any particular apparatus in our body, but a general feeling that cannot be located; if it is roused by moral actions it originates in the self-satisfaction of Reason, in its pride in the victory over Instinct, in the rapture occasioned by one's own strength of will; therefore, it can well exist without any differentiated pleasurable emotion located in any particular organic apparatus.

Many moral philosophers have for various reasons rejected plausible Eudæmonism as well as Hedonism, and these reasons can all be traced back to the recognition, or at least an inkling, of the fact that moral action in the nature of things must exclude pleasurable emotions; at any rate immediate ones, and such as are perceived by the senses. Perhaps Fichte does this in the most naïve fashion, for he rejects every form of Eudæmonism as the

aim of moral action, but admits as its purpose only bliss, that is to say, the self-satisfaction of Reason resulting from action in accordance with its own laws. However, he struggles in vain to deny that this "bliss" is of the nature of a pleasurable emotion, or to interpret it as differing from Eudæmonism. He is only giving the latter another name to make it conform in an orthodox manner with his doctrine of the Supreme Ego. "*Baptizo te carpam!*" I baptize thee, carp! In this way the pious man complies with the law enjoining abstinence from meat, and with an easy conscience smacks his lips over a roast pheasant which he has dubbed fish.

Plato is among those who most emphatically deny that Pleasure is either the motive force, the accompaniment, the consequence, or the aim of Morality. But a reasonable thinker can derive no profit from his arguments in support of this point of view, for they are rambling, fantastic, mystical and visionary. Plato thinks it a necessary consequence of the very nature of Good that it should be absolutely self-sufficient. For Pleasure is a perpetual growth, a ceaseless longing for more; it can therefore not be self-sufficient, and on this account can not be the foundation of Morality.

However, it is by no means obvious why Morality should not be in a perpetual state of growth (just as Pleasure is, according to Plato), or why it should not constantly desire an increase of its own activities. On the contrary, this craving is just what one would most wish Morality to have. True, it would not then attain self-satisfaction. But what is the good of this self-satisfaction? It is a pleasurable emotion, and according to Plato Morality is supposed to have nothing in common with Pleasure. It is not to be contentment and serene satisfaction, but rather tireless endeavour. However, Plato, of course, cannot admit this, because for him Good and the deity are identical, and being perfect can therefore advance no farther in perfection; and the striving after Good is merely an effort of memory on man's part to call to mind more clearly the deity whom he saw in his spiritual life before birth, and of whom he retains a dim and confused memory in his earthly life. It is plainly idle to waste reasonable criticism upon such visionary arguments.

The Stoics, too, try to sever the connexion between moral conduct and Pleasure, and to conceive the former as a simple activity of human nature, one, moreover, from which they expect no particular satisfaction. They

overlook the fact that every activity of the impulses and instincts of man's own nature affords him satisfaction, and that Pleasure is nothing but this very satisfaction of natural instincts. If, then, Morality were, as the Stoics contend, only "Life in harmony with Nature herself," then, like every other satisfaction of natural desires, it should be an ever-flowing source of pleasurable emotions, and this characteristic would be inseparable from it, though the Stoics may vainly try to deny it.

Christianity has an easier job than Stoicism. With harsh severity, disregarding any plea for indulgence in view of the weakness of the flesh, it absolutely excludes the factor of pleasure from the fulfilment of moral duties. But this severity is only apparent. The good and just man can expect no reward for his moral conduct here on earth, but he will find a much more ample one in the life to come. To the devout believer who gives unlimited credit to it, the promise of the joys of paradise has the full value of a cash disbursement. It is somewhat childish juggling with words to deny pleasurable emotion to be the aim of moral conduct if at the same time a most vivid foretaste of the eternal bliss which awaits him after death be given to the virtuous man; as if the anticipation of heavenly bliss were not a pleasurable emotion of the highest degree!

Kant finds it due to his point of view to spurn every weak inclination to Eudæmonism. A Categorical Imperative cannot issue commands with an eye to profit or comfort. That is as clear as daylight. "All Morality of action must be founded on the necessity which arises from duty and respect for the law, and not from love or inclination for the desired result of the action." Schopenhauer, Feuerbach, and John Stuart Mill have recorded such irrefutable criticisms of the Kantian doctrine of the absolute disinterestedness of moral action, that it is unnecessary to add to their arguments.

Only some moral philosophers, and particularly Mill, are guilty of logical inaccuracy when they reject Eudæmonism but retain Utility as the aim of morality. Why do the Utilitarians not realize that they are merely Eudæmonists under another name, and that he who disregards his own immediate interests in order to further the well-being of the community experiences a pleasurable emotion of high order in the satisfaction he

derives from the sacrifices whereby he has contributed to the good of the community?

The useless exertions of a section of moral philosophers to eliminate not only Hedonism but also Eudæmonism from moral action are a veritable labour of Sisyphus. Hardly have these two with difficulty been expelled by the door than they return by the window or the chimney. It is a mere conjuring trick to remove them from this world to the next, as do the theologians, or to substitute universal well-being for the feeling of happiness. All the same, the desire to purge moral action of the least admixture of hope of profit or pleasure is comprehensible. Common experience, which is equally forced upon the profound thinker and upon the plain man in the street least inclined to cudgel his brain, teaches us that Morality consists, with very few exceptions, in acting against our own immediate interest, in denying ourselves some coveted pleasure, in renouncing some attainable profit, in undertaking some disagreeable exertion because Reason bids us do so. From this practical experience the man in the street gets the impression that duty is a bitter necessity and that decency is attended by many and varied inconveniences. The theorist, the philosopher, derives a principle from his empirical facts; he observes that the moral man often acts against his own immediate interests, and expresses this in the pretentious axiom: "Morality from the very beginning excludes all thought of profit."

And yet the philosophers are guilty of the same superficiality as the man in the street. They do not go far enough into the matter to perceive that the morality of pleasure, of interest, and of duty, Hedonism, Utilitarianism and the Categorical Imperative, all lead in very slightly different ways to the same goal—Eudæmonism. The fulfilment of duty affords spiritual satisfaction, a pre-eminently pleasurable emotion which increases in direct proportion to the effort which its fulfilment demands. Interest also implies pleasure, for every interest ultimately comes to this, that it is an attempt to secure a pleasure. This aim lies at the bottom of all interests; it is the fundamental interest from which all seemingly different interests are derived; it is the universal goal to which all human effort tends, whether it be a question of making money to satisfy ambition, of winning love and friendship, of material, spiritual, personal or social values. Interest is self-assertion and the intensifying of the zest for life. But these are always

accompanied by pleasurable emotions; thus interest is forthwith identified with pleasurable emotion, even though one has to work hard, even though at the moment it entails drudgery and discomfort. Hedonism makes no secret of its nature and its tendency. It openly admits what the Categorical Imperative denies and what Utilitarianism veils with vague phrases: that the aim and object of moral action is Pleasure and nothing else.

In our short survey of the immense field of literature dealing with moral philosophy we have learnt that, although the most various and divergent views are expressed as to the essence and source of Morality, nevertheless there is but one opinion, be it clearly or vaguely stated, be it the result of knowledge or surmise, as to the mechanism by means of which moral concepts determine action, and as to the conscious or unconscious aim of moral action: Moral concepts do their work by means of inhibition, and the aim of moral action is a feeling of happiness.

CHAPTER II

THE IMMANENCE OF THE CONCEPT OF MORALITY

It is natural for man's thoughts to be concentrated on himself until he has learnt to rise from the deep and narrow well of his egoism to a higher and wider view of life and, free from the taint of self-love, to form an idea of his place in the world and his relationship to it. Not till the development of his intellect is far advanced does any doubt assail him as to the truth of his conviction that all his personal affairs, the least as well as the most weighty, are of the greatest importance to the universe, that every ache or pain he feels must wake an echo in the heavens, that the Earth shudders in anticipation when he is about to stumble and sprain his ankle, and that the stars in their courses mysteriously, though intelligibly to the discerning, foretell the hour of his birth and of his death. An Indian legend pours cruel scorn upon this childlike megalomania: A fox had fallen into a stream and was drowning. "The world is coming to an end!" gasped the animal in its agony. A peasant standing on the brink replied coldly, "Oh, no, I see only a little fox drowning."

Many moral philosophers, those of the Kantian school without exception, labour under the delusion of this same, egocentric view. In their eyes the phenomenon of Morality is a cosmic one. Morality is the law of human conduct, therefore it is the law of world processes, of the universe. Indeed, it is the law of the universe before it becomes that of human conduct. It would exist even if there were no men, no humanity, no human conduct at all. The solemn innocents who weightily give utterance to this doctrine are unaware how ridiculous they are. They do not hesitate to subject Sirius to the yoke of the Ten Commandments. They are convinced that the Milky Way practises virtue and shuns, or ought to shun, vice, just as we inconsiderable human beings do. The precept, "Thou shalt not steal," applies with binding force to gravity, and the warning, "Thou shalt not kill," to electricity, though the latter ruthlessly disregards it, as the results of being struck by lightning and accidents with high voltage installations frequently prove. If they do not threaten Nature with police and prison it is

only because in their eyes Morality is independent of all sanctions, is superior to rewards and punishments, depends upon itself alone, constitutes its own aim, is by its very nature a compelling force, and therefore has no need of adventitious compulsion.

Such profound nonsense cannot lay claim to serious treatment. It is a counterpart to the belief that events in the history of mankind, like war and pestilence, are foretold by heavenly signs such as fiery comets. The stars revolve, the clockwork of the universe continues undisturbed, as though the earth were still uninhabited, as it was when it was a glowing fluid globe or, earlier still, a nebular mass; and this although man's self-esteem be hurt by such a lack of consideration. If we care to call the (so far as we know) unalterable laws, according to which the forces of Nature act and the mechanism of the world works, the Morality of the Universe, that may pass. Only we must in that case clearly realize that we are speaking metaphorically, that we are making use of a poetic simile, that we are anthropomorphically attributing human traits to the universe. Morality is a phenomenon restricted to mankind, or, to be strictly accurate, a phenomenon which occurs only among living beings; for the beginnings of Morality may be traced in creatures of a lower order than man, and it develops simultaneously with the consciousness and the mentality of living beings. Morality is a function of life, dependent upon it, begotten and developed by it, to meet life's needs and serve its interests. The existence of Morality apart from life is as unthinkable as that of hunger, ambition, or gratitude.

Morality is a collection of laws and prohibitions which Reason opposes to organic instincts, by means of which the former forces the latter into actions from which they would like to refrain, or prevents them from carrying out that which they yearn to do. The existence of Morality, therefore, presupposes in the first place that of an intelligence sufficiently developed to form a clear idea of something that is still in the future, namely, an image of the consequences resulting from an action.

Guided by this inner contemplation of the image of the consequences of an action, Reason decides to carry out or prevent the action. This gives us the lowest plane upon which Morality can occur as the cause of action and of abstention from action. It implies, above all things, foresight, and can

therefore only exist in a consciousness which is sufficiently developed to grasp the idea of the future and form a picture of it. This consciousness must be capable of extracting the elements of a conception from memory according to the laws of the association of ideas, and be able to group them logically in a new order. In other words, as long as the mind cannot visualize the past and from it build up a picture of the future, Morality can find no place in it.

This statement requires no limitation, but it demands a short explanation. It is quite true that Morality is foresight, but it is only among the elect that the latter is developed to such a pitch that it is possible to form images of the consequences of action and abstention sufficiently clear and definite to exercise a restraining or encouraging influence.

The average man can act morally without first working out a clear picture of the future. It is enough that he has been trained to the habit of respecting current precepts, and of accepting the views obtaining in his circle as to what is good or bad, what is admissible or inadmissible. This morality, of course, is merely a matter of drill or training; it is unthinking automatism; it is inferior, and not to be compared with the living, creative morality of higher natures, which, as a sovereign law-giver, comes to an independent decision in every case and, like the guardian angel of childlike faith, guides man on his path through life, indicates the right course at the cross-roads, and warns him of pitfalls and stumbling-blocks. But for everyday use mechanical morality may suffice. In the uneventful existence of the average man, which passes in a stereotyped way, this mechanical morality is an acceptable guide and counsellor, but it remains an outside influence foreign to his inner consciousness; he is glad to deceive and outwit it, as a slave does his master's bailiff if he can do so without running the risk of a thrashing; but if his destiny unexpectedly rises above its accustomed dead level, then this dogmatic morality, which he has never really assimilated, leaves him in the lurch, and mournfully, in piteous tones, he utters the well-known cry, "It is easy to do one's duty; it is difficult to know where one's duty lies."

Reason, then, which is capable of foreseeing the results of actions, teaches a man what he must do and from what he must abstain, where he may follow his instinct and where he must resist it, according as it considers the

presumptive results of yielding to impulse good or bad. But whence does Reason obtain the standard it applies to the actions of men and their results? How does it acquire the fundamental concepts Good and Bad, and what is their significance? Generally speaking, the answer will be as follows: Moral values are appraised by a standard supplied by a general consensus of opinion; Reason acknowledges as good that which meets with the approval of the community, that which the latter desires and therefore praises; the community, for its part, echoes the pronouncements of influential personages, i.e. of the most respected, most powerful, and most aristocratic; Reason condemns as bad that which the community disapproves, and which it therefore censures and rejects. This definition does not solve the problem of good and bad, it only shifts it.

Later we shall have to show upon what grounds the community discriminates between acceptable and reprehensible facts, calling the former good and the latter bad. For the present it is enough to observe that Reason derives the laws, which it constantly impresses on man, from the opinion of the community.

It can happen that Reason rejects the opinion of the community and forms a conclusion opposed to it. This revolt of individual morality against conventional morality is the great tragedy of man. It can only occur in the soul of a hero, for mediocre and insipid people always bow to the opinion of the majority. There is clearly imminent danger of making a mistake. Not seldom, however, the individual is right in his opposition to the community, and then the latter is fired by his example to examine its traditional dogmas and to correct or reject them. This is not the only, but it is the most common means by which Morality is developed and changed. Its progress demands martyrs. Strong personalities must be sacrificed to force a revision of moral values. Socrates has to swallow the draft of hemlock so that unfettered thought may acquire the right to doubt the legend of the gods. Jesus has to incur the dangerous anger of the Pharisees so that the adulteress may be treated with indulgence and human sympathy instead of being punished according to rigorous law. But the opposition of a self-willed, subjective Morality to the accepted moral law is always exceptional; the general rule is submission to the moral law. This is indeed a necessary preliminary to revolt against the moral law of the community, for it is only by means of a vigorous social education that man develops such a nicely balanced and

keen sense of Good and Bad, that he cannot prevail upon himself to carry out generally approved actions which his own intelligence does not recognize as moral. He whose moral sense has not been intensified by strict discipline will never be assailed by doubt, as long as he follows in the footsteps of the multitude.

Hence, as a rule, Reason exercises its control of the actions of man in conformity with the laws prescribed by the community. Before Morality develops into the practice of Good and the rejection of Bad it takes the form of consideration for the world at large, since it is the latter which has created the concepts of Good and Bad as well as the standard by which they are judged, and in order to avoid conflict with the community, and to maintain uninterrupted agreement with it, the individual exerts himself to persist in doing good and to refrain from doing evil.

The establishment of these facts gives deep offence to the mystics among moral philosophers. "What a debasement and belittling of Morality! What! It is supposed to be nothing more than a sort of obsequiousness towards the multitude? Its laws are observed for the sake of pleasing others? It is a comedy played to win applause and a call before the curtain? That is a libel and a calumny. The truly moral man looks neither to the right nor to the left. He does not condescend to ask, 'What will the world say to this?' There is but one judge in whose eyes he wishes to be justified: his conscience."

Quite right. But what is conscience found to be if we penetrate the fog of mystic words with which it has come to be surrounded? Conscience is the permanent representative of the community in the consciousness of the individual, just as public opinion may be termed the conscience of every member of society made manifest. Metaphorically, it wields the powers pertaining to society; it praises and blames, it condemns and exalts, it punishes and rewards, as society could do; and it actually pronounces judgment in the name of society, even though it does not preface such judgment with this formula which is tacitly implied and must always be mentally added. Conscience is the invisible link which unites the individual with a social group, just as speech, custom, tradition, and political institutions are the visible links. But the social origin and representative nature of conscience set limits to its power. Conscience is a respected authority with wide powers only in the consciousness of those individuals

who have a highly developed social sense. I purposely do not say those in whom the instinct to follow the crowd preponderates, because this mode of expression might imply blame and condemnation which I do not intend to convey.

For social instinct comes natural to an individual born, educated and working in a community, who shares its feelings, views and interests, nay, even its prejudices and mistakes; and if he lacks it, it is a sign of a morbid deviation from the normal. Only the decadent man is uncannily lonely in spirit, alien, indifferent or definitely hostile to his human surroundings; he is, according to the violence and polarization of his instincts, the passionate anarchist or the born criminal; the public opinion of his circle is unintelligible to him and makes no impression on him; it has no significance for him; he attaches no importance to its approbation, and its anger leaves him cold; he would take no notice of it, were it not that he knows its power to destroy him, and fears its police, its prisons, and its scaffolds. Such a man, organically predisposed to crime, most urgently needs a conscience. It would arrest him on the downward path to which his evil instincts lead. It would warn him to resist the wicked impulses of his selfishness. But he, of all people, has no conscience. He can have none. He is anti-social, he is at war with society, diplomatic relations between him and it have been broken off, and it has no representative in his consciousness. A lively and active feeling of joint responsibility with the community is a necessary predisposition on the part of the individual before conscience can have any power. Where the former is lacking the latter is mute and paralysed.

The essence of Morality, as we have found, is the subjection of instinct and direct organic impulses to the discipline of Reason. The latter exercises a censorship in pursuance of a law which it derives not from within, but from without, from the ordinances of the community which instructs Reason as to what it should permit, what it should forbid, and what it should demand. Conscience ensures respect for its commands, and may be called the executive power or police of Reason, acting as the authorized representative of Morality. It is the garrison which the community maintains in the individual's consciousness, which it arms and supplies with authority and instructions; the power of conscience lies in the strength of the community at its back, and is without influence only upon those who refuse admission

to the troops of the community and yield to none but actual physical force. All this proves irrefutably that Morality is a phenomenon arising from the social life of man, and its power is a function of society.

If under the conditions in which humanity lives nowadays one could imagine a man totally detached from his species, leading a solitary life, Morality would be absolutely meaningless to him. The idea is one he could never conceive. It would have no significance. Good and bad would always retain their original meaning as labels for sensual qualities, for pleasant or unpleasant sensations of taste, smell, etc.; they would never be spiritualized or apply to the quality of actions. He would be unable to attach any meaning to the words duty and right. The terms virtue, vice, conscience, repentance would convey nothing to him. Morality can only originate when the individual lives united with fellow beings in a social community. It is a consequence of this union. It is the one condition on which alone this union can be permanent.

The solitary individual must, however, not be confused with the lonely one. Robinson Crusoe, shipwrecked on a desert island and forced to stay there without companionship, is not primitive man. He is a son of civilization who has fallen upon evil days. In his enforced solitariness he maintains the habits of thought of his original surroundings. He preserves the concepts of Morality even though he has no occasion to obey its dictates. He can, if not actually yet potentially, be a paragon of virtue or a sink of iniquity; he can have a very delicate or a very dull conscience. He continues to be a man of social instincts cut off from society, and goes on thinking and feeling in a social manner. By primitive man I mean man as he was before society originated. For, contrary to the sociological school which denies the individual and boldly refuses to allow him any existence, declaring society to be older and earlier than the individual, I think I have conclusively shown ("*Der Sinn der Geschichte*" [The Meaning of History]) that man is not by nature a gregarious animal, that he lived alone, being self-sufficing as long as the climatic conditions, under which he first made his appearance on earth, enabled him to exist by his own unaided efforts and capabilities, and that he banded himself together with others in gangs, troops and hordes—the earliest forms of subsequent society—when, after the first ice age following his appearance, the struggle for existence grew ever harder, ever more laborious, transcending the powers of the individual so that he could

only overcome Nature, now grown hostile to him, by uniting with others of his kind.

This primitive man of the golden geological period before the Ice Age knew no Morality, and as far as human intelligence can tell he would never have known of it had there been a continuance of the paradisaic conditions obtaining at the time of his birth, and had the climate not deteriorated. The occurrence of murderous frosts, the necessity of seeking protection from them in natural caves or artificially constructed shelters, and of kindling and maintaining fires, the diminution or disappearance of vegetable food, and the need to replace it by the booty of the chase or fishing—all these forced him to unite his efforts with those of other men who shared his wretched lot on earth. But in order to maintain this community with others he had to learn a new science, one he had hitherto not known because he had had no need of it: consideration for his fellows. He might no longer think of himself alone, consider his own inclinations in all eventualities, give way to all his moods or yield to every whim; he had unceasingly to bear his neighbour in mind and take care not to annoy him, not to make an enemy of him, not to become hateful to him. Forbearance towards his neighbour was the necessary condition of their life in common, just as their life in common was the necessary condition of self-preservation. The penalty for selfish indulgence was stern persecution, punishment, perhaps death; in any case, expulsion from the community. Man, therefore, stood before the choice of self-control or destruction, and this dilemma taught him Morality.

Such, we must imagine, were the beginnings of Morality. It was not prearranged or purposely sought; it grew naturally from the companionship of men and developed simultaneously with society. If the struggle for existence made life in communities a necessity, the first coercive law of the community was to enjoin upon its members a mode of conduct which alone rendered the existence of the community possible, and the fundamental rule of this conduct was mutual consideration. Without this two egoisms cannot exist side by side and develop. They either destroy or shun one another. This phenomenon may also be observed among the higher animals. Elephants, living in herds, expel quarrelsome individuals and force them to wander alone far from the rest. The natives of Ceylon and India fear these "bachelor elephants" as being specially savage and malicious. They think that they grow like this because of their loneliness. That is probably a false

conclusion. It is much more likely that these animals have been driven from their herd because they were savage and malicious, because their characters were opposed to discipline. Here we come upon the first faint foreshadowing of the phenomenon of Morality in an animal community.

Now that we have introduced the idea of the growth and development of Morality, it becomes obvious that it must have begun with mere indications, and that from rude, dim, undeveloped beginnings it gradually grows more perfect, more refined, more nicely differentiated. At first man avoids only the most brutal injuries to his neighbour, such as hurting him, doing him bodily harm, threatening to kill him, openly robbing him. In proportion as he becomes more spiritually sensitive, as he learns to feel the insult and humiliation of injuries other than those inflicted with a fist or club, he is led to refrain from giving his fellow-men similar offence, which though it deals no gaping wounds, yet hurts his spiritual sensibilities. A series of values is developed, growing ever longer, ever more complicated, with more and more gradations, until, going far beyond the simple, artless commandments, "Thou shalt not kill," "Thou shalt not steal," "Thou shalt not covet thy neighbour's wife nor his goods," it reaches the pitch of agonized self-reproach, because of the slightest and most secret impulses to dislike, injustice, covetousness, dissimulation, etc.

Morality must be regarded as a support and a weapon in the struggle for existence in so far as, given present climatic conditions on earth and the civilization arising therefrom, man can only exist in societies, and society cannot exist without Morality. The chain of thought runs as follows: without morality no society, without society no individual existence; consequently, Morality is the essential condition for the existence of the individual as well as for that of the community. However, we must always bear in mind the reservation, "given the present climatic conditions on earth." Had the earth continued to be the paradise it must have been at the birth of our species (since otherwise the latter could simply not have originated), the necessity would never have arisen for the individual to band himself together with others of his kind, no society would ever have developed, and there would have been no Morality. Serious as the subject is, one cannot but smile at the thought of the comic figure the learned, professorial Neo-Kantians would cut with their dogma of the absolute and cosmic nature of Morality, if they propounded it among men whose wants Nature's bounty was able to satisfy

as easily as the frog is satisfied in his puddle or the crow on his tree top. They would find no trace of absolute Morality among mankind, and would be reduced to seeking it among the stars.

The very nature of Morality, in that it is an aid to man in the struggle for existence, makes it easy to understand the origin and nature of the concepts Good and Bad. There are propensities and actions which facilitate life in a community which, indeed, alone make it possible: love of one's neighbour, helpfulness, liberality, consideration for the feelings of others, and amiability. There are others which make such a life difficult or absolutely impossible: uncompromising selfishness, violence, cruelty, rapacity, instinctive hostility to one's neighbour. Men recognized that the former were beneficial to them, the latter harmful. The former aroused their liking, the latter their disapproval, dislike and animosity. The quality of feeling which accompanied the perceptions of actions of the former kind was akin to that with which they responded to beneficial, profitable, useful and welcome sense impressions. The quality of feeling, which actions of the second category gave rise to, was akin to that due to harmful and repellent sense impressions. Following the law of analogy, they placed on an equal footing actions which were felt to be pleasing and pleasant sensations of taste and smell; similarly with disagreeable actions and unpleasant sense impressions; and finally they called the former good and the latter bad, using terms originally applicable only to the realm of the senses.

Not everything that is pleasant to the senses is beneficial. There are poisons which are pleasing to taste, but none the less noxious for that, such as (to give only one example) alcoholic drinks and impressions of a certain order, like voluptuousness, which man greedily pursues, even though they ruin his health. But these are exceptions. As a rule, not only man, but all living creatures, derive pleasant sensations from beneficial things; and it is probable that that category of sensations, which we are conscious of as being pleasant, is nothing but the state of *cœnesthesis*, when the organism functions particularly energetically under the influence of the absorption of food or of a special stimulus of the senses, when it feels its life processes carried on particularly vigorously, freely and harmoniously; just as we feel that state of *cœnesthesis* to be unpleasant, which occurs when the organism functions badly, slackly, and in a manner calculated to endanger the continuance of life. With the reservation that has been indicated we can say

in general that Good is equivalent to beneficial and pleasant, Bad to harmful and unpleasant. This is true of the transferred and spiritualized as well as of the immediate and material meaning of these expressions of value. The significance of the words Good and Bad, the point of departure, development and change of conception they indicate, suffice to justify the Utilitarians and the Hedonists or Eudæmonists among the moral philosophers, and to confute the contentions of their critics, who deny all connexion between Morality and a practical purpose, profit or pleasure, and declare these to be unworthy humiliations of its majesty.

They wriggle, with the agility of a contortionist on the music-hall stage, to get over the obvious and palpable aim of moral conduct. They display all the cunning of dishonest sophistry in their arguments to prove that the element of subjective satisfaction which moral action yields is non-existent, and that, therefore, the Hedonists and Eudæmonists are wrong. They stir up an opaque cloud of words, phrases and formulæ to hide the fact, which nevertheless emerges clearly, that he who acts morally expects to derive pleasurable emotions from his action, or at least tries thereby to avoid probable painful emotions, and that moral conduct, just as it is designed to give the individual subjective satisfaction which is a kind of pleasure, is also meant to be a benefit, or at any rate a supposed benefit, to the community.

Morality must never try for a reward and never expect one. It must be absolutely disinterested. It has no business to pursue any aim outside itself. Thus say the mystics of moral philosophy, juggling with words; and they think they are doing especial honour to Morality and raising it to a particularly proud eminence. But Morality has no need of this artificial and false grandeur to maintain its lofty place among the phenomena of life, and it is derogatory neither to its authority nor to its influence to be recognized as a beneficial force conducive to happiness.

The opponents of Utilitarianism and Eudæmonism in Ethics, if they speak in good faith, may be excused on the grounds that their analysis of the phenomenon of Morality is shallow. For them Morality is something absolute, which exists by itself as an eternal and unalterable law of the Universe, but which is revealed in the individual and therefore must be conceived individually as a quality which has become human, as a human

value. If anyone persists in looking upon Morality as an absolutely individual matter, without any connexion with anything outside the individual, if anyone obstinately shuts his eyes to the fact that Morality has not been developed by the individual out of his own immediate needs and in consideration of himself alone, but that it is, on the contrary, a creation of society and has no sense or significance except as a social phenomenon, then indeed he can with some show of justification deny Utilitarianism and Hedonism. For truly, looked at from the point of view of the individual, moral conduct appears neither pleasant nor immediately beneficial. On the contrary, it is, as a rule, directly opposed to his own apparent interest, and it is achieved with difficulty by sacrifice and renunciation, which are never pleasant and often very painful.

Once in a drawing-room, during a game of definitions, I heard a light-hearted young lady define Duty in the following terms: "Duty is that which we do unwillingly." A stern professor contradicted her at once with the solemnity he thought due to his position, and assured her reprovingly: "It is my duty to give lectures, and I do this duty gladly. If you were right, madam, expressions such as 'zealous in one's duty' and 'willing performance of duty' would have no meaning and could never have been coined." That seems convincing, but yet it is wrong. Expressions such as "zealous in one's duty" and "willing performance of duty" were not coined until society had developed its system of Morality and had educated its members to strive for its approval by conducting themselves in accordance with this system, to look on its approval as a flattering distinction and to fear its disapproval as a disgrace. Such phrases are Pharisaical, calculated to exercise a suggestive influence profitable to society. They are the sugar to sweeten the pill; but the young lady was honest and the professor conventional; the pill is bitter. Thinkers recognized and admitted this thousands of years ago. Antiphon, the sophist, says: "The law, the outcome of an agreement, coerces nature, the result of growth, and goes against the interest of the individual." The same idea is expressed by the tragic poet in the lines: "The gods have placed sweat before virtue." This was said in the very same words by Lao Tse, the disciple of Meng Tse, the pupil of Confucius and the reformer of his doctrine.

The law, not only the law of the state which Antiphon has principally in view, but also the moral law, "goes against the interest of the individual";

not in reality, but apparently, at the first superficial glance. Moral conduct is the reverse of natural conduct; it takes place in opposition to instinct by deflecting the original impulse; it is a subjugation of inclination, a victory over the real nature of the man. Virtue has to exert its utmost strength in bitter struggles, fought out within the individual, before it can reveal itself actively in deeds. That is a natural consequence of the manner in which Morality originated.

The point is that it was not created directly for the individual, but for the community, and for the former only in so far as he is a part of the community, and from its stability and well-being derives a benefit which he may, or may not, be conscious of; which he may, or may not, be able to appreciate; which he accepts as something natural and self-understood without further thought; for which he does not consider any return service to be due; but which is nevertheless of real magnitude, profiting the individual, facilitating his existence, or even alone making it possible; and for which, as for every other gift, he must make sacrifices. For within society there can be no gifts. It possesses nothing but what it has acquired from its members, and the latter must pay full value for everything it provides, unasked or otherwise.

As the Moral law originated to meet the needs of the community, and was gradually formulated in definite precepts, it is comprehensible that the community never paused to inquire what subjective effect its law would have on the feelings of the individual. If you impose a law upon someone you hardly ever consider how great will be the emotions of pleasure or displeasure which its enforcement will entail. The order is, "Obey, whether you like it or not; that which deeper insight and more far-seeing wisdom prescribe is for your good." Thus the individual is forced to work laboriously for his own good, which in his purblindness he does not even recognize. It would be comprehensible if the individual, who does not see farther than his own nose and does not look beyond the present moment, formed the opinion that Morality is not perceptibly beneficial to him and gives him no pleasure, and that, therefore, the Utilitarians and the Hedonists talk nonsense. But the moral philosopher, who observes the individual in relationship to the community and surveys human actions, the way they are connected, and the way they interact upon one another, has no right to pursue the same line of thought as the individual, and deny that Morality

aims at utility and pleasure, even though the individual, when he acts morally, does not perceive any personal advantage, nor feel any pleasure except the self-satisfaction which he has been trained to feel, since in the eyes of others he is so good and honest. That Morality aims at utility, and is at the same time a source of pleasure and happiness, may seem dark and doubtful while we consider the individual, but it becomes clear as day and indisputable when we regard the community.

Among creatures of a lower order than man, indeed among all animals that live together in flocks or herds, we find the first beginnings of that mode of conduct which in man we call moral, and which is not intended to be of direct benefit to the individual, or to add to his momentary pleasure, but which subordinates or sacrifices these personal satisfactions to the good of the community.

Chamois, when they are grazing, set one of their number on guard upon a rocky eminence with a distant view, and this individual is responsible for the safety of the herd. While the others feed in peace and comfort, this guardian chamois forgoes the food which is doubtless just as attractive to it as to the others, and tirelessly keeps a sharp look out over its whole field of vision, warning its companions at the first approach of danger by uttering a shrill cry.

When the great herds of buffaloes still inhabited the North American prairies, they had at the head and on the flanks of the herd the strongest bulls, while the centre was occupied by the cows with their calves and the young animals. Before civilization came to trouble them, the grizzly bear was the only enemy that threatened them, and with him they were able to deal; one of them would meet the attacking bear in single combat, but did not always emerge from it unhurt. Often enough at the end of the fight both the bull and the bear would be terribly injured or even dead; yet by sacrificing his life the bull saved the rest of the herd.

The thrilling adventure of the Abyssinian baboon is well known; first told by Alfred Brehm in his "*Tierleben*" (animal life), it was afterwards quoted by Darwin and many other writers. On a hunting expedition Brehm surprised a party of monkeys in a clearing. They fled at once and had found shelter in the wood before the dogs could reach them. Only one young one

had got separated from the rest and was left behind alone. It had scrambled up on to a solitary rock standing in the plain, round which the dogs were barking furiously, and in its terror the creature uttered piercing cries for help. A little male monkey, hearing it, detached himself from the group, turned back from the safety of the forest, made quietly for the rock and fetched away the trembling young baboon from among the pack, silent now and shrinking in amazement; and then stroking and caressing the little creature he carried it safely in his arms to its family in the wood, unmolested by the stupefied dogs and spared by the hunter, lost in admiration of this self-sacrificing courage.

In these three instances we see how the joint responsibility among gregarious animals develops in them an ever increasing sense of duty, which teaches the chamois to forgo its food during the hours it is on guard, rouses in the buffalo a savage lust for battle, and makes the baboon perform a premeditated deed of epic heroism. When men act as these animals did, we ascribe this to Morality. This is nothing but joint responsibility in action, the joint responsibility which the species is forced by the conditions of life to adopt, if it is to survive.

Among the moral philosophers the mystics are prevented, by the haze which obscures all their thought, from seeing that Morality originates from this joint responsibility. Or rather, if they do see it, they think this origin too low. They demand a more exalted genealogy for the phenomenon of Morality. According to them the Moral law comes straight from God. The concepts Good and Evil are revealed. Commands and prohibitions are imposed upon the soul by that omnipotence which spiritualizes the universe and of which the soul is an immortal part.

If these phrases were anything but moonshine and tinkling cymbals they certainly would make any other explanation of this astonishing fact superfluous; the fact, namely, that man does what is repugnant to him, and refrains from doing what would give him pleasure, that he is content with himself when he has voluntarily curbed his impulses and made sacrifices, and that he feels the pricks of conscience if he chances to experience the pleasure of appeasement because he has satisfied his desires. "Man obeys divine commands." That suffices and obviates the necessity of seeking for explanations of this phenomenon, which shall satisfy Reason.

It is a mere mirage, the reflection of an earthly state of affairs in the heavens, to assume that the universe is governed by an authority devoid of responsibility, which imposes on its subjects, that is to say men, laws and instructions, discipline and order.

It is a form of anthropomorphism, the most widespread and stubborn of errors in thought among those men who try to understand the unintelligible, and are content with the most unfounded explanation which their naïve imagination freely invents for them. This same anthropomorphism, not even at a loss to solve the problem of the origin and essence of the universe, replies unhesitatingly that God by an act of volition created it out of nothing to prove to Himself His own omnipotence and omniscience; in like manner it has no scruple in ascribing the phenomenon of Morality to a creative act of God's, and makes Ethics, which properly speaking form the chief part of psychology, anthropology and sociology, a subdivision of theology, that is, of anthropomorphic mythology.

Critical Reason, which realizes that deceptive fictions are not true thought, but dreams—not the result of ripe intellectual effort, but of the childish play of the imagination, seeks the roots of Morality not in the air or in the ether, but in the solid earth; not in some indemonstrable, transcendental sphere, but in an obvious need of human nature. The biological necessities of the species, which can only survive by dint of living in communities, sufficiently explain the origin of the feeling of joint responsibility, of consideration for one's neighbour, of the concepts Good and Evil and of conscience; and we have no use for the dogmas of revealed Morality derived from some fabulous, supernatural source, or for the Kantian categorical imperative.

Morality, understood as a form of joint responsibility, determines the inner and outer relations of the individual to the community; that is to say, to as much of it as he comes in immediate contact with, to wit, his neighbour. Morality provides him with the notions of Duty and Right, of the consideration he owes his neighbour and of that which he may demand from his neighbour. It is customary to look upon Rights and Duties as opposites. This is mere indolence of thought. Right and Duty are supplementary, forming together one concept. They are in reality one and the same thing regarded from different points of view. My Duty is the

subjective form of my neighbour's Right; my Right the subjective form of other people's Duty. That which is Duty, when I have to do it out of consideration for others, becomes my Right, when others have to do it out of consideration for me.

Respect for the personality of others, which is the feeling from which the concept of Right and Duty emanates, seems to be a late and noble product of Morality and a particularly praiseworthy victory of prescient intelligence over selfishness. This factor of our consciousness which determines our will and which gradually becomes an instinct, is really only a special application of the law of least resistance which governs all organic life. We have no selfless, ideal respect for the personality of another; but, made wise by experience and observation, we assume that that other has the power to resist and to retaliate if a wrong is done to him or he is injured; hence we avoid, to the best of our ability, actions to which he is likely to object, so as not to come into conflict with him, because to overcome his opposition would require effort and expose us to danger. Respect for the personality of another and for his rights may be expressed by a mechanical formula which runs as follows: this respect varies directly as the real or supposed might of the other person, and inversely as our own real or supposed might.

The society of which he is a member, and which makes his existence possible, prescribes to the individual the laws governing his moral conduct. That which a community at any given time approves and demands, rejects or forbids, constitutes the precept whereby its members regulate their conduct, and offers ample security for their conscience.

The concepts Good and Bad originate simultaneously with society; they are the form in which its actual conditions of existence are conveyed to the consciousness of its members. The only immutable thing about them is the fact of their continued existence. Without the coercive discipline of a rule conducive to the common weal and governing the mutual relations between its members, no society could be imagined to exist, unless its members were all similar in nature, reacted in an identical fashion to all impressions and possessed the same feelings and sensations, the same inclinations and the same impulses of volition. In that case no difference could ever arise between one individual and another, or between an individual and the community, which would have to be smoothed over by the moral law

emanating from the community and controlling the individual, or be suppressed by the community's order. Every individual could be left to the guidance of his own instincts, for he would know himself always to be in agreement with the community; no consideration for others need hamper or modify his actions; he could behave just as if he were alone in the world. But as individuals differ from one another, feel, think and want different things, collisions in which they hurt, cripple or even kill one another are the inevitable consequence of their opposing movements; and the interference of the moral law is absolutely necessary to polarize these movements and guide them into parallel courses, so that they do not run counter to one another.

But Good and Bad derive not only their existence but their measure and their significance from the views of the community. They are therefore not absolute but variable; they are not an immutable standard amid the ever-changing conditions of humanity, a rule by which the value of the actions and aims of mortals are indisputably determined, but are subject to the laws of evolution in society and therefore in a constant state of flux. At different times and in different places they present the most varied aspects. What is virtue here and now may have been vice formerly and at another spot, and *vice versa*. In the royal family of ancient Egypt marriage between brothers and sisters was the prescribed custom. We call this incest and it fills us with horror. To the sons of Egypt it seemed meritorious and constituted a claim to special veneration. The Babylonians and Canaanites burnt their first-born in Moloch's fiery furnace, and this sacrifice was accounted a highly praiseworthy act of piety and of the fear of God. The Spartans taught their sons, their future warriors, the art of stealing without being caught; and he who did this most cleverly achieved the most flattering recognition. The Cherusci butchered the Roman prisoners taken from the legions of Varus as a sacrifice to their tribal gods, and a noble-minded and brave man like Arminius considered this absolutely honourable and knightly. The Aztecs, who had undeniably attained an advanced degree of civilization, at high festivals used with obsidian knives to cut open the breasts of human sacrifices on the altars of their gods, and tear the heart out of their living bodies. That was an action finding favour in the sight of the gods, and the people watched it with awe and those mystic emotions which religious rites are intended to arouse.

Moral law in Europe, during the Middle Ages and almost up to modern times, permitted, and even ordained, the punishment by horrible torture and death of those whose religious convictions differed from the teaching of the established church; and with its consent supposed witches were sent to the stake. In feudal times the most terrible and revolting of crimes was felony—that is, a breach of faith on the part of the vassal against his overlord—and no torture was too cruel as a punishment. Nobles, who had so delicate a sense of honour that for a wry look or the accidental touch of an elbow they would draw their swords, enunciated the principle: "the king's blood does not defile," and vied with each other in forcing their daughters upon the king as concubines. Until Wilberforce roused the English conscience at the end of the eighteenth century, and Schölicher did the same in France in the middle of the nineteenth, slavery was considered a state of affairs which a moral community could tolerate. The North American descendants of those Puritans whom no persecution and no martyrdom could prevent from leading a life consonant with the dictates of their conscience, did not scruple to exercise proprietary rights over human beings who, in the case of octoroons and even of quadroons, did not even differ from them in colour, supposing that difference of colour could be considered an excuse. The code, which began with the "Declaration of Rights," contained heavy penalties for those who helped a slave to escape. Men, whose uprightness no one could doubt, did not hesitate to set bloodhounds on the track of an escaped nigger, and four years of a bloody civil war were needed before refractory slave-owners were forced to acknowledge the immorality of forced labour.

These examples have been taken from the customs of civilized nations. Amongst races that have not attained the high degree of development to which the white man has risen, we meet with much more revolting deviations from the moral law obtaining among white men. Tribes are known in which the commandment, "Honour thy father and thy mother," is interpreted so, that the children kill and eat their parents as soon as the latter have attained a considerable age. The North American Indians, who had a well developed sense of honour, were capable of chivalrous feelings and kept their word with absolute loyalty, used to torture helpless prisoners and scalp their defeated enemies, even the women. Among the Dyaks, who are under Dutch rule and are familiar with the laws and customs of Christian

Europe, a marriageable youth must first cut off a human being's head before he is allowed to wed. He need not overcome his victim in honourable combat; he may creep upon him surreptitiously, and even fall upon him in his sleep and murder him in cowardly fashion without danger to himself.

All these are instances which we unhesitatingly condemn. To our idea they are crimes and misdeeds which among us would make their perpetrators liable either to contempt and expulsion from decent society or to the extremest penalties of the law; yet at their time and in their place they were considered meritorious and virtuous, and were approved by public opinion and the conscience of their authors. But we can go farther and subject our own moral law to a similar independent consideration. We shall find that to us also deeds appear permissible, virtuous and even splendid, which do not differ essentially from the thefts of the Spartans or the head-hunting of the Dyaks. A company promoter who sells on the Stock Exchange shares that he must know to be worthless, can with Spartan cunning rob thousands of trustful victims of the fruits of their labour and economy, and reduce them to beggary; and not only does he go unpunished, but if by his knavery he becomes a millionaire and uses his wealth cleverly, he can attain the highest political and social honours and distinctions. We may admit that financial roguery of this sort can now no longer be classed among strictly moral actions, that public opinion is on the verge of placing it in the category of vice and crime, and that legislators are beginning to make attempts to inflict severe and humiliating penalties on its perpetrators.

But another series of deeds is still generally considered so undoubtedly virtuous and laudable, that it evokes the highest homage from the best intellects of the age, poets, musicians, scientists, teachers, sculptors and painters, and the leaders of the people—the deeds of war. The most horrible butchery of men, the theft of property and liberty, ill-treatment, destruction are not only permissible but obligatory and laudable, if they occur in war, and if their authors can point to the fact that they are acting in the service of their country at the order of a legitimate authority. Neither the soldiers nor their leaders are bound to inquire whether the authority, whether their mother country is waging war for a purpose that moral law can approve. "Right or wrong, my country." In the eyes of her sons the country is always in the right, even if it be objectively in the wrong, and by its orders every soldier murders, robs, burns and ravages, plays the executioner to harmless,

unarmed, innocent strangers, compels prisoners to forced labour, steals letters that fall into his hands and prevents families who are cruelly separated from communicating with one another; and his conscience does not reproach him in the least, nor is he conscious of being a criminal deserving of all the penalties of the law. Every single one of these actions, if perpetrated by an individual on his own account and for his own purposes, would result in the death penalty, and it would be richly deserved, too. But in war, carried out collectively at the bidding of a government, they become deeds of heroism, filling the doer with pride, moving the community to tears of enthusiasm, and they are held up to youth as shining examples to be imitated. It is more than likely that future times will judge the esteem in which these deeds are held not otherwise than we do the value placed by other forms of society on human sacrifices, the slaughter of parents and head-hunting.

It is hard to determine the exact part which conscience plays in the changes undergone by the concepts Good and Evil. As conscience is the voice of the community in the consciousness of the individual, it approves on principle what seems right and praiseworthy to the community. Just as little as conscience prevented a Babylonian mother from sacrificing her child to Moloch, does it in these days stop the average citizen from doing a soldier's work of killing and destroying in time of war. If an individual knows himself to be in complete agreement with the general opinion, then he lives at peace with his conscience. No impulse to change the customs, to set up a new Morality, to condemn long-established usages, is to be expected from such an one.

The mechanism whereby changes are wrought in views on Good and Evil is quite different. Everywhere and at all times there are exceptional persons whose abilities render them specially fit to feel and think independently. To their idea the community has no determining but only an advisory voice. They reserve to themselves the right of decision in every case. In their consciousness there persists a clear recognition of the fact that the essence of Morality lies in consideration for others, and when the current acceptance of the moral law among the majority allows them, nay, commands them to disregard this consideration, they experience a feeling of discomfort which dull, unthinking imitation of the general example does not soothe. They meditate upon the deviation from the fundamental rule of

considering one's neighbour, they test its justification, and they condemn it, if its difference with the general moral law cannot be adjusted. If the essence of Morality is consideration for one's neighbour, its purpose is the well-being of the community; its essence must be adapted to this purpose, that is to say, consideration for one's neighbour must be subordinated to the general welfare. The thief, the robber and the murderer have no claim upon consideration, and even a man with the most delicate sense of Morality will agree that coercion of the criminal is desirable. Tolstoy's warning: "Do not oppose the evildoer," is not Morality, but an exaggerated parody of it, which renders it nugatory. Thus the most moral person will not raise any objection to a war waged in defence of hearth and home when their safety is threatened by a ruthless attack.

But, if a mode of action which, though it be generally practised and approved, injures the individual and causes him to suffer, cannot be justified on the grounds of an obvious benefit to the community, then a small, sometimes an almost infinitesimal minority of independent thinkers will rise against the custom; they are not afraid of coming into violent conflict with generally accepted views; they defend the fundamental principle of Morality, namely, consideration for the individual, against the exception, namely, oppression of the individual for the ostensible good of the community; they brand as immoral what is generally accounted moral; they announce that the current acceptance of the goodness or badness of a certain order of actions must cease.

The intervention of such reformers always gives offence, and arouses anger which at times rises to murderous fury. But this wrathful indignation is just what makes a break in the automatic fashion in which the majority of average men act according to traditional custom; the attention of more and more minds is arrested, critically they examine the accepted moral law, they are penetrated first by the suspicion and finally by the clear conviction that it is contrary to the essence of Morality, and they swell the ranks of the innovators who inveigh against the tradition. The struggle lasts long and is carried on pitilessly. The preachers of the new Morality seem corrupt and criminal to the supporters of the old. They are persecuted and slandered and not seldom have to suffer martyrdom, but they always emerge victorious if their doctrine is in agreement with the logic of the fundamental principles

of Moral law. That is the history of the abolition of human sacrifices, of the vendetta, of slavery, of legal torture, of religious coercion.

Whoever looks about him with open eyes will note that civilized men are at the moment adopting new ideas with regard to the operation of state omnipotence, to war, to the right of the economically strong to exploit others, to the rights of women, to sexual morality, to the penal system. The advocates of a new Morality must still put up with the most humiliating abuse. He who wishes to defend the individual from coercion by the state is an anarchist and deserves to be hanged or broken on the wheel. He who maintains that war is immoral belongs to the rabble of vagabonds who own no nationality, for whom no contempt is too deep and no punishment too severe. He who refuses a duel is a dishonoured coward, and thereby cuts himself off from decent society. He who recognizes woman's right to motherhood is a dastardly purveyor of opportunities for prostitution. He who attacks the present relation between Capital and Labour as a hypocritical continuation of slavery is an ignorant agitator or an enemy of society. He who would like to see the idea of punishment excluded from the law, as being retrograde and unscientific, and who wishes only the point of view of the defence of society to be recognized as valid, talks sentimental nonsense, disarms justice and places the community at large at the mercy of criminals.

But the issue of the struggle is not in doubt. The present systems, which present exceptions to the moral law of consideration for one's neighbour, must go. Although they are considered moral to-day, are, in fact, Morality itself, to-morrow they will be felt to be immoral and be abhorred by all men of moral feelings. Thus the concepts Good and Bad gradually change their meaning; views on what is moral and what immoral are constantly in a state of flux; and the only permanent thing is recognition of the fact that man's actions must be withdrawn from the control of subjective choice and whim, and must be subject to a law set up by the community; the justification of this law lies in its being necessary to the existence of society. Every revision of Moral values originates in some vexation, and ends by refining and deepening moral sentiment. In this chapter only the scheme of development of moral views and of their changes has been indicated. The question of moral progress will be dealt with fully later on.

To sum up the arguments of this section, Morality is not transcendental but immanent; it is a social phenomenon and restricted to the sphere of living beings. Its beginnings may be traced in animal societies, it is developed among mankind. The preliminary condition necessary for this development is the ability to visualize future happenings, since moral conduct is determined by estimating its effects and results, that is, by conceiving something in the future. Morality has a positive, concrete aim. It makes the existence of society possible, and this, given the circumstances obtaining on our planet, is the necessary condition for the preservation of each individual, and it originated from the instinct of self-preservation in the species. Its essence lies in consideration for one's neighbour, because without this the communal life of individuals, that is, a society, would be impossible.

If individuals had been able to live alone, Morality could never have come into existence. The concepts Good and Bad characterize those actions which society feels to be beneficial or harmful to itself. As moral conduct implies consideration for one's neighbour, it is often, if not always, in conflict with selfishness, that is, with the immediate and instinctive impulses, and is, in the first place, accompanied by disagreeable sensations. The pleasurable emotion of satisfaction arises later through habit and reflection; it accompanies the thought of the merit and praiseworthiness of the victory over self. Conscience is the voice of the community in the individual's consciousness. The idea of Duty is the subjective conception of the Rights of our neighbour; the idea of Rights is the subjective conception of our neighbour's Duty to us. Morality is not absolute, but relative, and is subject to continual changes. To maintain that Morality is cosmic, eternal, immutable, that it aims neither at profit nor pleasure, but constitutes its own aim, is pure anthropomorphic superstition.

CHAPTER III

THE BIOLOGICAL ASPECT OF MORALITY

Morality is a restraint which the community imposes on each of its members. It demands from the individual the sacrifice of his transitory and momentary comfort in favour of his general welfare which is dependent on that of the community. It prohibits the pleasure of gratifying his desires in order that by this unpleasant renunciation his lasting well-being may be ensured. Subjectively experienced and viewed, therefore, Morality always implies the limitation of free will, the curbing of desire, opposition to inclinations and appetites, and the diminution or suppression of free, or let us rather say of unbridled, action. Before Morality can profit the community, it disturbs and incommodes the individual, it rouses in him disagreeable sensations which may reach such a pitch as to be intense pain. It is only after deep reflection, of which not everyone is capable, that the individual realizes that Morality is an essential condition of the life of society, and that the preservation of society is an essential condition of his own life; before he investigates, before he even meditates on Morality, the individual feels it directly to be unpleasant, laborious, stern—nay, hostile.

The control which Morality exercises over the actions, and indeed in many cases over the most secret thoughts of the individual, appears at the first glance to be somewhat paradoxical. It is by no means obvious why the individual should always take sides against himself and, adopting a defensive and disapproving attitude, hold his instinctive tendencies in check. Moral conduct would be intelligible if the community were always ready with means of coercion and could constrain the individual by brute force to place its interest before his own pleasure. But the individual does not wait for police intervention on the part of the community. He frowns upon himself with the awful severity of the law. He threatens himself with a cudgel. He divides himself into two beings, one of which wants to follow its instincts, while the other curbs them vigorously; one is a rearing, often a refractory, horse, the other a rider with bridle, whip and spur.

This reduplication of the ego, one-half of which establishes control over the other, one-half of which tries to remain true to itself, while the other divests itself of its identity and denies itself—this is the inner process, the outward manifestation of which is moral conduct. This demands investigation and explanation. We must show how the organism could develop from within itself the power to paralyse, or completely repress, its own elemental activities, and how Morality was able to become an integral part in the general scheme of life processes.

The mechanism whereby the mind, appraising, foreseeing and judging, checks the first movement of impulse, is inhibition or repression. Without inhibition moral conduct would not be possible. The mind would have no method of indicating the path and prescribing rules to the organism's instinct. It would have no means of making its insight prevail over the desires of the senses. It would have no weapon with which to force its being to actions opposed to its organic inclinations. Without inhibition the individual would never give precedence to the demands of the community and lay himself open to disagreeable emotions in order to please the community. Inhibition was the necessary organic preliminary to the phenomenon of Morality. It had to be pre-existent in the individual, so that Morality could make itself at home in his intellectual life, so that it could acquire creative, ruling and practical power among the elect, and become an unconscious and easy habit among the average. Morality took possession of a pre-existent organic aptitude and made it serve its own purposes. But organic aptitudes are not alike in all individuals. In some cases they are more or less perfect; in others they may be lacking altogether. Indeed only individuals with highly developed powers of inhibition are capable of that heroic Morality which liberates them from the weakness of the flesh and makes them independent of the demands of the body; those in whom this power of inhibition is scantily developed evade the influence of Morality entirely, and it has no authority over them.

That which is called character is at bottom the name we give to the power of inhibition. Where it is weak we speak of lack of character, whereas by strength of character we mean that the power of inhibition is great. The will makes use of inhibition. With its help the will guides the living machine in a certain direction and urges it to perform given tasks. At the first glance it may not seem obvious that positive actions can come of repression, which

is something negative. But if we analyse psychologically the actions demanded and promoted by the will, and trace them back to their organic origins, we shall find that, as a rule, the first elements consist in the prevention of impulsive movements, and that the impetus to positive effort is given by the will, which converts these movements into contrary ones. A few instances may make this psychic process clearer. Winkelried, at Sempach, cleaves a path through the cuirassiers while they bury their lances in his breast; he becomes capable of this great deed of self-sacrifice in that, by a mighty effort of will power, he suppresses the strongest of all instincts, that of self-preservation, and forces all his energies, which are naturally directed towards flight from danger, to challenge danger and yield completely to it. The lover who overcomes his passion and renounces its object, because his idol is the bride of his best friend, begins with the determined inhibition of the impulse which urges him towards the woman, and attains renunciation by the suppression of his desire; this renunciation finds expression in positive actions, in the rupture of relations which bring him happiness, the avoidance of meetings which would prevent the wound in his heart from healing, and so on. The brave rescuer who plunges into the waves to save a drowning man, or enters a burning house to save a fellow creature threatened by the flames, must first overcome his natural shrinking fear of the water and the fire; and not till after the suppression of strong impulses to avoid the uncanny adventure, does he succeed in making his muscles obey the impulse to save life.

Inhibition, therefore, is the organic foundation on which Morality builds, not only that Morality which consists in abstention from certain actions, but that which is manifested in active virtue. But inhibition is a faculty which the organism has developed for its own ends, the better and more easily to preserve its own life, and to render its power of achievement greater. Morality makes use of this faculty, which it finds ready to hand, for the ends of the community, and very often against the immediate interests of the individual for whose advantage it is nevertheless intended. Now the individual would not put up with this inexpedient use, one is tempted to say this clever misuse, of one of its organic capacities, if this yielding up of the mechanism of inhibition to Morality were not beneficial to life and therefore came within the sphere of the biological purpose of inhibition. By being grafted on a pre-existent organic faculty Morality becomes such

itself; it forms a link in the chain of biological processes within the individual organism; it ceases to be purely a product of society forced upon the individual to his molestation and in spite of his annoyance; it acquires the character of a differentiation of inhibition in order to help the individual, or even to make it at all possible for him to adapt himself to life in a society.

That under the present conditions obtaining on our planet the human individual can only live in society demands no proof. And as he can only live in society if he submits to its rules of good and bad, Morality, which urges him to this submission, aids and even preserves his life. We shall now show that inhibition, of which Morality is a differentiation making it easier for the individual to adapt himself to the conditions of social life, is of the greatest value to the individual from the biological point of view.

The lowest forms of life it is possible for us to observe show nothing which can be interpreted as inhibition. All external influences to which they are not indifferent invariably produce the same effects. They respond to every stimulus with a reflex action which reveals nothing that we should be justified in describing as an activity of the will. The reaction follows with strictly automatic regularity upon the stimulus, and nothing intervenes between the two which would permit the conclusion that in the simple organism there is any faculty that could delay, modify or change the reaction to the external stimulus.

Just as iron filings always respond to the attraction of a magnet in the same way, just as certain combinations of mercury at the impact of a blow flare up with an explosion, just as ice when warmed melts and becomes water, and water when cooled to a definite point freezes into ice, so do the simplest living things seek out certain rays in the spectrum, certain temperatures, certain chemical conditions and avoid others. Not only unicellular organisms do this, but also comparatively highly developed animals, such as the daphniæ, for if light is sent through a prism into a vessel containing water, these little creatures collect at the violet end of the spectrum; such as the wood-lice, which hate the light and creep into dark crevices; such as gnats, which are attracted by the sun and dance in their hundreds in its rays. Moreover, we meet with a similar phenomenon in man. We, too, in winter and spring seek the sun and in summer the shade; in the cold season the warm stove attracts us; bad smells put us to flight, sweet

scents of flowers allure us. The simplest automatic reflex actions are at the root of these attractions and repulsions, exactly the same as with the daphniæ, wood-lice and gnats. Only we are able to control and suppress these reflex actions which the lower animals apparently cannot.

Anthropomorphic modes of thought easily mislead us into thinking that the processes we observe in lower animals are due to an exercise of will power. We draw near to the fire in winter because it is pleasant, but we can quit it if duty calls us into the cold streets. One is apt to imagine that the simple organisms also experience pleasant and unpleasant feelings, that they try and avoid the latter, that the daphnia seeks the violet rays because it likes them, that the wood-louse flees the light because it dislikes it; in fact, that these creatures possess a consciousness which becomes aware of and distinguishes between pleasing and displeasing impressions, and that they possess a will which responds to these impressions with suitable reactions. Very distinguished scientists have been unable to resist the temptation to assume in the lower animals, even in unicellular organisms, the existence of processes with which we are familiar in the human consciousness. William Roux introduces us to a "psychology of protista," and W. Kleinsorge goes so far as to maintain the existence of "cellular ethics," and to devote himself to research into its laws. The work of both these biologists is as fascinating as the most beautiful fairy-tale, but it is probably the creation of a lively and fertile imagination, just as the fairy story is.

More prosaic and less imaginative scientists do not see evidences of psychology in the signs of life in the protista, or ethics in the movements of a cell, but merely the effects of universal chemical and physical laws which also control lifeless inorganic matter. To these laws they trace the tropisms of simple organisms which tempt the imagination, prone as it is to anthropomorphism, into errors; such tropisms, that is to say, as their tendency to seek moderate warmth, certain rays of light and weak alkaline solutions, or to avoid acids, heat and ultra-violet rays. The little organisms probably do not obey these impulses for reasons of pleasure or pain any more than the iron filings obey the attraction of a magnet for such reasons. They do not fly to it because it gives them pleasure; the little metal leaves of an electroscope do not move apart because contact with each other displeases them. All forms of tropism, chemotrophic, thermotrophic, phototropic manifestations, active and passive tropisms clearly show that

minute organisms involuntarily and unresistingly respond to the influence of natural forces, just as if they were inanimate particles.

Microscopic investigations reveal many phenomena which one is tempted to consider signs of life, but which cannot be such, as they occur in connexion with inanimate matter. The Brownian movements are rhythmical molecular changes of position, not due to any mechanical impulse emanating from the surroundings, nor to a current in the fluid in which the object of investigation is immersed, but arising from the object itself, mostly very finely divided, tiny balls of mercury. A very small drop of chloroform introduced into a fluid of different density behaves exactly like a unicellular organism. It sends out pseudopods, wriggles and draws them in again. The pseudopods seem to feel and examine particles of matter with which they come in contact, and then either to withdraw quickly from them or to surround and incorporate them in the drop. This is deceptively similar to the behaviour of a living cell absorbing food, though there can be no question of this in the case of the drop of chloroform. In the latter it is merely a question of the effects of surface tension, that is, of the normal behaviour of matter in accordance with the laws governing the forces of nature, the investigation of which lies in the domain of chemistry and physics.

Impartial thought comes to a conclusion about these phenomena different from that derived from anthropomorphic delusions. It does not try to smuggle dim, dark life into the collections of mercury molecules apparently obeying some inner impulse, or into the seeking or feeling about of a pseudopod of chloroform. On the contrary, it understands life as the play of natural forces under the conditions supplied by a living organism, as the automatic working of a machine-like apparatus to which natural forces supply the motive power. Similar manifestations in inanimate matter and in elementary organisms seem to justify the conclusion that the distinction between living and non-living matter is arbitrary, that there are only forces, or perhaps one single force, that is to say, one movement, in the universe, whose activity is manifested in the most manifold forms, of which life is one. Modern Monism has come to this conclusion, but it is not alone in so doing. Long before Monism there was a philosophy which conceived all cosmic energies to form a unity; and really it is only an obstinate quarrel about words, for the Hylozoists regard the universe as something living and

ascribe life to all matter and all atoms of which matter is made up, while the Materialists regard life as a play of forces in matter. Fundamentally the Hylozoists and Materialists hold the same views, only that the former call force life and the latter call life force; just as the only point of difference between them and the Pantheists is that these have given the majestic title of God to the universal life they assume—as Spinoza has it, "*Omnia quamvis diversis gradibus animata sunt.*"

The question, what is life? is the greatest that the human understanding can ask of itself. For thousands of years man has cudgelled his brain over this, and is as far from finding an answer to-day as he was on the first day. The definition most often repeated runs thus: Life is the ability possessed by certain bodies to react to stimuli, to absorb nourishment and to reproduce themselves. That is a statement of observed facts, but it is no explanation. It informs us that we are familiar with bodies which behave in a way distinguishing them from other bodies; but why they conduct themselves differently from others, what the particular thing is which is present in certain combinations of matter and absent in others—that is an impenetrable secret.

Science has tried by the most varied methods to solve the problem. It seemed a triumph of research that Woehler produced urea, that chemists later on manufactured carbohydrates, that Fischer is on the high road to the production of synthetic albumen. What is gained by these discoveries? We bring about the same combinations as the living cell does. That is, no doubt, an interesting achievement, but its value as an addition to our knowledge on this point is infinitesimal. For we accomplish the production of sugar, urea and amine in a manner very different to that of the living cell, and he who copies the things turned out in a workshop has contributed nothing to our knowledge of the workman who plies his trade in the workshop. The dividing line between life and lifelessness was supposed to have been obliterated when elementary manifestations of life were proved to exist in inanimate matter; the Brownian movements in the smallest particles; the growth of crystals immersed in a solution of the same chemical composition as themselves; crystallization itself which represents a kind of very simple organization of matter, and at any rate proves the sway of a regulating and directive force; the tendency of certain elements to combine, which has been called their affinity. But this name is only a poetical metaphor which

no one will take literally. The growth of crystals in their mother liquor is merely mechanical precipitation on their surface, an external addition of layers of the same material; but not growth by the incorporation of such matter, that is, through the absorption of nourishment.

These and similar results of observation do not suffice absolutely to justify the assumption, seductive though it be, that life is a fundamental attribute of matter, that it is present everywhere though graduated in intensity, that therefore apparently inanimate matter differs not qualitatively, but only quantitatively from living beings, that life stretches in an unbroken line from the block of metal or rock, in which it is completely obscured, to man, the most highly developed organism we know of; and that at a certain point in its range it reveals itself in a form which permits no distinction between organic and inorganic matter.

The origin of life is as completely unknown to us as its essence. For thousands of years the assumption was lightheartedly made that under certain, somewhat vague circumstances, life originated of its own accord. Pasteur showed that a *generatio spontanea* cannot be proved to exist, that every living thing comes from another living thing, a parent organism, and that the old philosophers were right in propounding "*omne vivum ex ovo*" as a law, although they only guessed it and had not proved it experimentally. A very few critics, who are hard to convince, still dare to assert in a small voice that Pasteur's work and all the facts established by microbiology do not prove conclusively that life does not nevertheless originate from inorganic matter under conditions which we cannot nowadays reproduce in our laboratories. No answer can be made to this objection. An experiment is only conclusive for the conditions in which it is made, and not for others. All that we can positively assert is that on earth the genesis of life without a demonstrable parent organism has never been observed. To go farther, and to assert that a *generatio spontanea* is absolutely impossible under any conditions, on earth or elsewhere, is arbitrary, just as it is to assert the contrary.

Those who are supporters of the theory that life can be developed from non-living matter for a long time thought they had conclusively proved their case; they argued as follows: At the present time life exists on our planet; according to the Kant-Laplace hypothesis our planet was formed from a

cosmic nebula and passed through a state of fluid incandescence; in this state life is impossible; therefore life must have originated spontaneously one day after the Earth had cooled down; consequently either the Kant-Laplace hypothesis is wrong or the assertion that life can only be generated by life is erroneous; the two assumptions are incompatible. This conclusion no longer presents any insuperable difficulties. It has been observed that spores which have been kept for months at the temperature of frozen hydrogen, that is, very nearly at absolute zero, have retained their germinative power and have developed when they were brought back to a favourable temperature. Therefore they would not be killed by the cold of interstellar space on their way from one heavenly body to another, and could become the seeds of life on another hitherto inanimate star. That large numbers of tiny particles of matter exist in interstellar space and are precipitated on the heavenly bodies is proved by the cosmic dust that arctic explorers have collected from the surface of snow and ice. Therefore the Earth may well have been in an incandescent state, and may yet have received from interstellar space the germs of life which developed and multiplied when the Earth's crust had cooled sufficiently to provide the conditions favourable to their existence; and these germs may have been the ancestors of all the life that exists on earth to-day after a period of evolution lasting hundreds of millions of years.

This would account for the origin of life upon the Earth, but not of life in general. The germs, which travel as carriers of life from an older heavenly body to a younger one, must have sprung from parents, and however far back we trace their genealogical tree we are always finally faced by this dilemma: either life did, after all, originate at one time from something lifeless, and what has happened once must be able to happen again, now and always; or life never originated at all, but has always existed; it is eternal like matter, in forms whose variety we cannot even dimly grasp, its threads, having neither beginning nor end, wind through eternity. Of these two assumptions the latter is incomparably more in harmony with our present-day views on the universe. We believe the matter of which the universe is built up to be everlasting. It costs no great effort to believe life to be eternal too. True, the idea of eternity is inconceivable to us; it is a dim conception which has given rise to a word, a tone picture which portrays something indefinite, but within the bounds of the inconceivable there is

room for both semi-obscurities, the everlastingness of matter and the everlastingness of life.

But the most enigmatical point in the riddle of life is not life itself, which is a form of being, and is neither more nor less comprehensible than the existence of an inanimate object, of a stone, of water, of the air; it is consciousness. Descartes proves his own existence to himself by the fact that he thinks. Life must be accompanied by consciousness in order to convince the living being that it exists. The formula: "*cogito ergo sum*" has been admired for hundreds of years. It certainly is specious. But how many questions it leaves unanswered! Has it the right to deny life to an entity that does not conceive itself? Must it not be completed by the proof that life without thought, that is, without consciousness, does not exist, that consciousness is the necessary complement of life? And, above all, ought not Descartes to have given us an explanation of what thought and consciousness are?

I will attempt to answer the questions left unanswered by Descartes. But I must premise one thing. Every definition of consciousness implies a postulate: life. Though at a pinch we can picture life without consciousness, consciousness without life is absolutely inconceivable. I do not undertake to explain what life is, any more than I attempted it above. We must take it as something given. Consciousness, then, is the subjective realization of something objective, the inward realization of something outside. If in a living being a picture of its surroundings is developed, then it absorbs something which is not a necessary part of itself. Of course, this inner image must not be understood to imply an absorption of matter. It is a process in the matter of which the living being is built up. But, all the same, the image of the outer world in the inner being does signify a penetration of the latter by the former. This image, which follows the changes of the outer world and repeats them in the inner being, is consciousness. It may be shadowy and blurred, or clear and distinct; it may in rapid succession be formed and pass away, and it can be preserved as a memory; it may reflect a greater or a lesser portion of the outer world; consciousness is accordingly duller or sharper; its contents are scant or plentiful, it retains the images of a shorter or longer series of conditions in the surrounding world. Between nutrition, which is recognized as an essential phenomenon of life, and consciousness a surprising parallelism subsists. Both consist in an

absorption of the outer world by the organism; nutrition is the assimilation of matter, consciousness that of stimuli. In the process of nutrition the organism digests small quantities of the outside world; in consciousness it digests the world as a whole.

This parallelism is no mere play of the intellect. If it is followed out it leads to significant ideas if not to actual knowledge. What penetrates from the outer world into the inner being of the organism is vibration, movement, force. Is the matter which is absorbed as nourishment ultimately anything different? Here we come up against the ultimate problems of physics, the various hypotheses regarding the nature of force and matter, the theories that in addition to matter there is an ether, or that the ether is a different, more subtle, form of matter, or that neither matter nor ether exist, but atoms out of which everything is built up, which themselves consist of electrons which are centres of force, motions without material consistency. All these theories, of which the last cannot be grasped by the human understanding, we can leave severely alone. This is not the place to investigate them. But the attitude of the living organism towards the outer world from which it absorbs nourishment and impressions, converting them into power to drive the life machine and transmuting them into consciousness, lends peculiar support to the supposition that force and matter are not only inseparable but identical, that in them we must seek a principle, or perhaps regard them themselves as a principle, which must be of the same nature as consciousness, for otherwise it could not be transmuted into the latter.

The senses are the means by which the outer world penetrates as an image into the inner being. Before the senses are differentiated the living organism possesses a general sensitiveness; that is to say, that under the influence of the outer world its cell protoplasm undergoes a process of regrouping, resulting in chemical and dynamic changes. The chemical results of stimulus are anabolism and katabolism, a building up and breaking down of the cell content; the dynamic results are movements which in the lowest forms of life are purely mechanical, but in the higher forms adapt the organism to the external influence in so far as they place it either so as to be affected by the latter as long and as powerfully as possible, or else so as to evade it. The living organism can experience no stimulus and respond to it without absorbing and transmuting it, converting it into a chemical process or a movement. This inner process is a subjective realization of something

objective, a penetration by the outer world, therefore an elementary consciousness. In proportion as the general sensitiveness becomes differentiated into specific ones, as the image of the outer world filters through the different coloured glass panes of the various senses into the inner being of the organism, this image becomes multicoloured and varied.

It lies in the nature of this mechanism that the subjective image is not identical with the objective original, but is modified and even distorted by the panes through which it penetrates to the inner being of the organism. What the subject perceives is never anything but a symbol of the object, never the object itself; but this symbol suffices to enable the consciousness to form an idea of the object, just as letters enable the reader to take in words and thoughts. We must conceive the development of consciousness to go hand in hand with that of the senses. The more windows the organism can open to the outer world the more easily and the more clearly does its image penetrate. The number of objects which the subject can take in is the measure of the perfection of its consciousness. The protista, lacking specific sense organs and possessing only the general sensitiveness of protoplasm, can form only to a very limited extent and with very little variety an inner realization of the stimuli of the outer world. Its consciousness is necessarily very restricted and exceedingly dim. Consciousness is enlarged and grows clearer as the organism develops and its general sensitiveness is differentiated into specific senses, until we reach the level of man whose consciousness embraces far more of the outer world than does that of any other living creature; because, lacking new senses, he has succeeded in amplifying and enlarging those he possesses, and has by artificial means made himself capable of perceiving stimuli to which he is not directly susceptible and which therefore would have remained unknown to him; to a certain extent he has translated them into a form which his senses can perceive.

I do not overlook any of the difficulties which my attempt to explain consciousness leaves untouched. On all sides the most urgent and disquieting questions arise. Above all, the fundamental question, the most enigmatic of all: how is an external stimulus, that is a movement, a vibration, converted into a sensation, a perception? Further: must we in the consciousness distinguish between the frame and its contents, the conceptual mechanism and the concept? Or do the two coincide? Is there no

consciousness without a conceptual content? And is it the movement entering into the organism, the inner realization of the outer world which, transmuting itself in an incomprehensible manner into a concept, creates consciousness, becomes consciousness? Is the consciousness of the man standing upon the highest plane of intellectuality the greatest consciousness possible? Does there exist anywhere in the universe a more abundant, perhaps an infinitely more abundant consciousness than that of human beings on the Earth, and will the latter ever rise to this height? It is obvious that a development is in progress. There was a time when the most comprehensive, the clearest consciousness on earth was that of the trilobite or the cephalopod. Evolution has gone as far as man. Does it stop at that or will it continue?

According to Herbert Spencer evolution is progress from the simple to the complicated. Let us accept this definition. Have we the right to set up a scale of values and place the complicated above the simple? Is the latter not the more perfect because it has more power of resistance, greater durability, and can hold its own triumphantly against all destructive influences? Is not evolution, then, a retrogression from the perfect, because simple, to the more complicated, and therefore more fragile, more easily upset and less capable of resistance to harm? Is it not sheer egocentrism if we appraise the value of living beings according to their greater or less resemblance to ourselves, and judge them to be less or more worthy in proportion to their disparity with us? Are the fish which, living in the sea wherein we cannot exist, can inhabit the greater part of the globe, are wild duck which fly, swim and walk, not more perfect than we, who have had to conquer the air and the water by artificial means? Is not the mouse's hearing sharper than ours? The eagle's sight keener? The dog's scent incomparably more delicate? Has not the carrier pigeon an infinitely better sense of locality than we have? Are not many beasts physically stronger, more nimble and agile than man? His only claim to superiority rests on the greater perfection of his consciousness. Why do not all living creatures participate equally in the evolution to which this superiority is due? Why does it not take place in every organism and lead the unicellular living being in an unbroken ascent to the level of Goethe or Napoleon, or to a still more lofty one, if such an one exist anywhere in the universe?

If one could believe in a Ruling Power and the plan of the universe as its work, would it not be terribly cruel and revoltingly unjust that this power, instead of treating all living beings alike, should make a kind of selection of grace and lead some up to a higher level while it condemned others to lasting lowliness, and that it should ordain that on the road from the unicellular organism to man, countless connecting links should be left hopelessly behind and not be permitted to continue their ascent? Or must we admit the humiliating conclusion that a greater amount of consciousness does not necessarily imply higher rank and greater dignity, and that a protista, with its almost unimaginably pale and narrow consciousness, can have just as great a feeling of well-being as man with his immeasurably superior intellectual life; that therefore the protista suffers no wrong if it never gets beyond its present stage of evolution; and finally that the amount of the outer world which man can absorb in his consciousness is as far removed from the entirety of the universe as the contents of the protista's consciousness are from that of the human mind? No answer can be found to these questions. Whatever purports to be an answer, be it introduced as theology or as philosophy, is visionary or nonsensical. We must resign ourselves to moving in a very small circle moderately illuminated by Reason, while all around, if we seek to penetrate beyond it, we perceive gruesome darkness.

Evolution, that is a progress from the comparatively simple to the more complicated, is a striking fact—I say comparatively simple advisedly, for even in the unicellular organism the processes are far removed from the absolutely simple. We do not know from what part of the organism the impulse to evolution comes. Here we meet with the same mystery which shrouds growth, its duration, its measure and its bounds. As the conception is lacking, a word has been found, viz., *entelechy*, which Driesch introduced into biology, the co-operation of all parts of the organism for the purpose not only of preserving it but also of making it more efficient in the matter of self-preservation and more perfect. A critical investigation of *entelechy* would involve the broaching of the whole question of life. It does not come within the scope of this work. I shall therefore content myself with a very few remarks. *Entelechy* works as if it were reasonable and acted with a set purpose. If you think it out exhaustively it forces you to the assumption that life is an intellectual principle, even in the protoplasm of the cell, long

before there is any perceptible trace of consciousness; that this intellectual principle makes use of matter, builds it up, organizes it, moulds it into material and tools for construction, and sets up a mechanism in which and by which it develops itself. As far as we can see the purpose of life is life itself. Entelechy directs all the work of the organism in such a way that it becomes more and more capable of self-preservation, that its efficiency becomes greater, that it can absorb more of the outer world and can react more vigorously upon the outer world. In other words, life strives continuously to make its embodiments more permanent, securer, richer and more manifold.

However, if we do not know how the impulse to evolution originates, we can at least form an idea of the mechanism of evolution. Fundamentally life consists in the absorption of cosmic movements or vibrations, and their transformation into another form of movement. The living cell is a machine which makes use of cosmic energy for physio-chemical work. Metabolism, warmth, electric manifestations, movement, and as their concomitant a graduated consciousness, are the result of this work which is carried out by cosmic energy in the cell power machine.

To start with, this machine works in the very simplest fashion. It uses up its motive power as fast as it acquires it. Energy flows in and immediately flows out again in another form. The organism is like a pipe or a vessel without a bottom, so that its contents cannot be stored. The lower organisms which obey tropisms are such bottomless vessels. They are continually and inevitably subjected to the same attractions and repulsions and have no means to withstand them. But at a certain stage of evolution—how? why? Driesch replies: Entelechy!—a new part is developed in the machine, something like the cam on a cogwheel which forces it to come to rest. Or, to keep to the earlier simile, the bottomless vessel acquires a bottom with a tap that can be opened and closed. With this arrangement the organism is able to store the energy it has received and then to make use of it according to its needs, to do much more or much less work with it, to achieve much greater or much smaller effects, than it would be capable of doing with the amount of energy it receives from outside in a given unit of time. It is obvious how much more efficient the organism becomes if it can store up energy and can adapt to its needs the amount used up. This new part of the machine is Inhibition.

It appears early, and takes part in the general development of the organism; it is indeed the strongest factor in this development. Before Inhibition intervenes the organism has only one response to stimulus: reflex action. This is of the character of an electric discharge. It may be stronger or weaker, but is uniform in kind. It varies quantitatively but not qualitatively. In the lower organisms it is a contraction of the cell protoplasm, a movement. In the higher organisms, in which the life processes are carried out on the principle of the division of labour and which have developed various organs for this purpose, each organ performs the action of its specific function; the muscle contracts, the nerve sends out a nervous impulse, the gland forms a secretion, and so on. All reflex actions have this in common, that they serve no other purpose than that of relaxing tension in the organism. They do not imply any co-ordinated effort to promote the comfort and the welfare of the living being. They cannot fulfil any complicated task. They exhaust the organism which, after a series of reflex actions, becomes insensitive to stimuli and must rest for a time before it can react again.

Beginning from that stage of evolution where inhibition intervenes, reflex action loses the character of an automatic response to impulse and becomes disciplined. Inhibition tries to suppress reflex action. Its success is more or less complete according to the sensitiveness and life energy of the tissue receiving the stimulus and the degree to which the mechanism of inhibition is developed. The organism retains its tension, remains charged with energy, and is able to carry out work for definite purposes. In place of anarchistic reflex action which occurs regardless of the needs of the organism, we find economy of energy, co-ordination of effort, movement directed to a profitable end. It is only inhibition which can raise the organism from its state of passivity, its helpless dependence upon tropism, to a being in which a will is beginning to dawn and which by its will becomes self-determinative. Inhibition is a function of the will; it is the will's tool. Even Plato dimly perceived this, and he expresses it in the metaphorical language peculiar to himself, when, in the "Republic," he compares a human being to a creature made up of three animals: a hundred-headed sea-serpent which must at one and the same time be fed and tamed, a blind lion, and a man who tames the serpent by means of the lion. These three animals are desire

(ἐπιθυμία), courage (θυμός), and mind (νοῦς). We say in biological language, reflex action, inhibition, and will or volitional reason.

All the concepts that are referred to here: purpose, co-ordination, inhibition and will, are every one of them dependent upon one fundamental concept, consciousness. Without it they are unthinkable. Schopenhauer's unconscious will is a word without meaning. I have postulated consciousness as the inseparable concomitant of life. It is probably the essence of life. In its lowest stage it is too dim, its contents too meagre and blurred, properly to distinguish the organism in which it dwells from the world around. In a higher state of development, when it gradually grows clearer and begins to be filled with more sharply defined ideas, it learns to keep its organism and the surrounding world apart, and tries to make the attitude of the former to the latter one of self-defence, self-preservation and self-development. From this stage of development onward, concepts begin to connect and group themselves in such a way that consciousness contains not only an image of the immediate present, but also memories of the past and a forecast of the future. The ability to prolong the present into the future, to understand the actual as a cause of the effects that follow and to foresee these effects, that is the starting point of logic and reason. It is the necessary antecedent of the will, which would have no meaning if it were not the effort to realize a conception of actions and their consequences, previously worked out by consciousness. Will is a function of consciousness which, in pursuance of the well-known biological law, creates an instrument for its purposes, and this instrument is inhibition. The higher an organism stands on the ladder of evolution the more energetically and surely does inhibition work, the nicer and the more masterly does its intervention in the original reflex actions grow.

Thanks to the piling up of reserves of energy, which is a result of inhibition, the organism can carry out its work of differentiation, can develop organs and organic systems, and obtain the power to perform more complicated functions; these render it ever more independent of the outer world and enable it to affect the outer world to an increasing extent. Inhibition plays an important part in differentiation. Its apparatus becomes organized. The nerve centres from which the inhibition proceeds form a ladder of which each rung is subordinate to the next. The peripheral nerves are controlled by the nerve centres in the spinal cord, these again by the centres in the

medulla oblongata, and then in succession by the cerebellum and the cerebrum, and finally by the cortex. On the principle of least resistance, on which all life is based, the highest centres of inhibition unburden themselves by granting the lower ones a certain measure of independence. The reaction to the most ordinary and frequent stimuli is controlled and organized in its character and strength by the apparatus of inhibition, so that it ensues automatically, and no active inhibition, that is, no conscious effort of the will, is required. The simplest of these automatic reflex movements take place below the level of consciousness.

Those organized complexes of movement, however, which we call instincts, are carefully watched by the consciousness and subjected to severe check if they appear to run counter to the supposed interest of the organism. The hereditary complexes of movement constituting instinct are highly organized and oppose inhibition, only yielding to it when it is stronger than they are. This can be observed in animals which are capable of taming and training. All the artificial actions and omissions that man teaches them are triumphs of inhibition over automatism. Among human beings it is only the elect who can vigorously suppress their instincts by inhibition directed by Reason. The being that has attained the summit of organic evolution on earth is man, in whom only the lower, vegetative life processes are liable to the influence of tropism and primary reflex actions, while all the higher and highest functions are the work of Reason, which arms the will with inhibition and suppresses all impulses and actions that hinder its purposes. It is characteristic of these functions that they are first worked out as concepts by the consciousness before they are realized as movements.

It was essential for Morality to find this whole organic structure ready to its hand before it could become a factor in human life. This structure had been developed and perfected by the organism for its own purposes, for the defence and enrichment of its life, to ward off painful and obtain pleasurable feelings. Morality took possession of it and used it for its own ends, which do not at the first glance coincide with the aims which the individual immediately perceives and imagines, and may indeed be diametrically opposed to these, preventing pleasurable emotions, causing him pain and even endangering his life.

But Morality, which is a creation of society, was only able to dominate the individual and gain control of the organic apparatus of his vital economy, because its purpose is directed towards the same goal as the tendencies of the individual organism, prolonging them beyond the individual's scope, aiming at his preservation, and thus coinciding with his instinct for self-preservation.

Morality limits the individual's vainglory and subordinates him to the community; it is the condition on which the community allows the individual to participate in the mightier and more varied means of protection and the enrichment of existence which it has to offer. But apart from this somewhat remote advantage of Morality, there is another immediate one for the individual: it consists in the continual exercise and consequent strengthening of inhibition; therefore, as we have learnt to see in inhibition the main factor in the development and differentiation of all living creatures, it offers a means of raising the individual to biological perfection. The faculty of inhibition, being in a continual state of strong tension, makes automatic reflexes subject to the will, makes blind impulses obedient to the somewhat less blind reason, and helps man along the path of evolution from the status of a creature of instinct to that of a thinking personality of strong character, capable of judgment and foresight, a personality which does not seek to attain the pleasurable emotions necessary to every living creature by pandering to his senses and satisfying the appetites of the flesh, but achieves them by gratification of a higher order, by the triumph of the intellect over vegetative life, by strengthening the will in relation to the stimuli of the outer world and the organs, by taking pleasure in the fact that the will is content with its sway. These are harsh but subtle pleasures which, when they continue to preponderate in the consciousness, bring about that state of subjective happiness which is in the highest degree beneficial to life.

Morality is an arrangement which has arisen from the needs of society; that is to say, it is not innate, but is an artificial institution of the race. However, it grafts itself upon the natural organs and attributes of man, and thus, from being a sociological phenomenon, it becomes a biological one. The idea that Morality is something absolute, a cosmic force, and that it would still exist and be valid if there were no human beings, and even if the earth had no existence, I have refuted with scorn. We must hold fast to the fact that

Morality is a law of human conduct, that it is in force only among mankind, and that apart from mankind it is unthinkable. As, however, it becomes a differentiated function of the apparatus of inhibition, it participates in the general processes of life and leads us to that point where, indeed, we face the unnerving outlook upon the absolute and the question of eternity.

My arguments have led me to many phenomena that can be established and interpreted as facts of experience, but the explanation of which lies beyond the power of the human mind. We have examined the riddle of life, and we have distinguished therein a number of inexplicable things: the lack of a beginning, sensitiveness to stimuli, consciousness, the transformation of vibrations into sensations and concepts, the will, and inhibition. We are forced to the conclusion that the only discernible aim of life's activities is the preservation of life, or, more shortly, that life is its own aim and object. Morality, too, either openly or by implication, sets itself the one clearly demonstrable task of ensuring to the individual the preservation and security of his existence in a higher sphere than that of individual vegetative life processes. Thereby it fits into the scheme of existence, its mysteries and aims, and becomes an integral part of the cycle of life which emerges from eternity and returns to it.

CHAPTER IV

MORALITY AND LAW

The coercion which the community exercises upon its members, by means of which it forces them to adapt their actions and abstention from action to the standard it has set up, has two forms: Custom and Law. Are the two really different? What is their relation, one to the other? These are questions worth investigating.

Ever since the earliest times, grave men have meditated on the relation between Custom and Law. They were forced by evidence and practical experience to note a difference between the two institutions, but at the same time they had the definite impression that they trace their origin to the same source. Socrates distinguishes between the written laws of his country and the unwritten ones which express the will of the gods. The former constitute positive Law which the citizen must observe and to which he must submit; the latter, however, are higher, for they emanate from the gods themselves. The immutability of the unwritten laws is a proof that they are superior to the written ones. Written laws vary from state to state. They are the work of individual law-givers who were sometimes wise men and sometimes unreasonable tyrants. But all contain certain precepts which are everywhere alike, which everywhere impose the same rules upon man. It is almost as if one and the same law-giver had co-operated in the making of all the laws that obtain in the different towns and countries, and are so unlike one another in many points. This common law-giver, whose will is manifest in all laws, however far removed they be from one another, is the Deity. That is essentially Socrates' train of thought as given by Xenophon in his *Memorabilia*. The Attic sage speaks the language of his time, which, by the way, is still that of many present-day people. The Deity, whose will permeates all written laws and to whom they may be traced, is the principle of Morality. Hugo Grotius, in a manner more appropriate to modern thought, expresses it thus: "Law and Morality spring from the same source, namely, the strong social instinct natural to man. They bear witness to reasonable solicitude for the welfare of the community." This placing on an

equality of Law and Custom, of *jus* and *mos*, is very remarkable in such a strictly professional thinker, such a positive jurist as Grotius. Kant discriminates between the doctrine of Virtue and the doctrine of Law; he keeps them apart, but he emphasizes their connexion, and the two together make up his doctrine of Ethics.

As a matter of fact, no fundamental difference between Law and Custom exists; only Law is enforced differently to Custom. It would be going too far to say: Law has sanctions and Custom has none. The latter has sanctions too, but they are of a different kind to those of the Law. He who transgresses Custom will suffer the contempt of his fellow men, and this may become so penetratingly severe that the most hardened and shameless rascal must feel it. In an old, loose form of society where individualism is highly developed, and each one goes his own way, paying little regard to the others, there an unscrupulous, conscienceless rogue may sin against Socrates' unwritten law without being penalized. In a young, closely-knit community, however, in which the feeling of intimate connexion between the members is lively and vivid, he would be proscribed, as soon as he was found out, and it would be impossible for him to remain, say, for example, in a small town of the United States. Public opinion would make it so hot for him that he would be glad to escape with a whole skin. But this punishment is exceptional for transgressions of Custom, whereas it is the rule for those of the Law.

The sanction of the Law is stricter than that of Custom, just as the Law itself is stricter than is Custom. The Law concerns itself with concrete cases in which consideration for one's fellow men must be practised, duties to him fulfilled, and his claims respected. These cases are defined by Law as clearly as possible, whereas Custom confines itself to generalities and determines the whole attitude of the individual to his neighbour. Custom embraces the outer and inner life of man and supervises his opinions, which are the parents of his deeds, and also his deeds themselves; Law is only concerned with actions, and refrains from penetrating to the intimacy of thoughts, unless the latter alter the essential character of the action, as premeditation in an act of revenge and temporary or permanent irresponsibility alter the judgment of offences and crimes. Law is a miserly extract of custom, a meagre selection from its variety, a concentration and embodiment of its surging vagueness. It may be compared with crystals,

which in their geometrically accurate forms are crystallized clearly and definitely out of a liquid, the mother liquor; or with the heavenly bodies which agglomerate out of surging primal nebulæ. Custom is the primitive thing, Law is derived from it. It appeals to its descent from Custom, and founds, at any rate tacitly, its claim to respect on these grounds. A law which ran counter to Custom, which was confessedly in opposition to Custom, could never be maintained or prevail, though it bristled with the menace of the most dreadful punishments.

The relationship of mother to child between Custom and Law may be obscure to the majority; it is clear to the analytical mind. Recognition of the essential unity of both phenomena explains an assumption which was widespread among the best intellects from the Middle Ages until well into the eighteenth century, but which has now been abandoned as erroneous by more positive, though indeed narrower, legal minds. This assumption is that there is a natural Law antecedent to historical Law, which exists and acts beside and above the latter, and which forms the basis and the measure of every positive law, of every concrete legal judgment. It is comprehensible that the nineteenth century swept away the idea of natural Law and freely made fun of it. To a sternly disciplined legal mind it must indeed seem grotesque if a judge, in order to arrive at a verdict in some concrete dispute, cites the rights to which man is born instead of a certain text of the law, or even, following Schiller's advice, reaches up to the stars and brings down thence the eternal Law. Even this procedure is not so farcical as it seems to stupid article-mongers and hair-splitting paragraphists, for the procedure of equity of the English judges, who are not prone to clowning, is at bottom nothing but this reaching up to the stars and this judging by the rights to which man is born. The feud between natural Law and historical Law was really a quarrel about a word. Jean Jacques Rousseau, his contemporaries and disciples, simply made a mistake in their choice of an expression. They were guilty of an inaccuracy when they spoke of natural Law. They should have said: "the innate claim of man that his person should be respected," or, "natural consideration for one's fellow man," or, most shortly and simply, "Morality." To the latter legal lights would have raised none of the objections with which they victoriously opposed natural Law.

The beginnings of Morality coincide with the beginnings of society, as the latter could not have existed for a single day without the former. Since men,

forced by the struggle for existence, emerged from their original, natural solitude and united in a community, they have had to watch over their impulses, suppress their desires, do things they disliked, and in all their actions and abstentions from action consider their neighbours' feelings, as they demanded that their feelings, too, should be considered. That was Morality which limited the vainglory and arbitrary conduct of unfettered man. It included all rules that determine the attitude of man to man. There was no distinction between Custom and Law. Men were ruled by custom which was traditional in their community and observed by all; and their Custom had the force of Law.

Formulated laws, and more especially written laws, appear comparatively late. True, Asia has old examples of such; the Manava Dharma Shastra, the book of laws of the Indian Manu, the Chinese Chings, the law of Hammu Rabi, and that other law, akin to this, though not derived from it, but probably drawn from a similar older source, the law of the Pentateuch. The laws of Draco, Solon and Lycurgus and the Roman Twelve table law are appreciably younger; much later still the *leges barbarorum* were written down, some of them, like the prescriptive Law of the Germans set down in the "*Sachsenspiegel*," not till the end of the Middle Ages. It is peculiar to most of the old Asiatic laws that they contain both rules of conduct and legal regulations, and that they do not differentiate between these two kinds of precepts.

Let us take one example: the Ten Commandments. Beside such positive orders as "Thou shalt not steal"; "Thou shalt not kill"; "Honour thy father and thy mother"; we find such as give rules for the character and course of spiritual happenings, regarding which others cannot observe whether they are obeyed or not, like the commandments respecting man's relationship to God, or admonishing man not to covet his neighbour's wife or goods. Those are subjective impulses, spiritual moods which are revealed only to the eye of conscience as long as they do not betray themselves in action, and which by their very nature cannot be the subject of Law which deals only with outward manifestations of thought and will, and is concerned only with things done.

In constitutional Law, too, no less than in criminal and civil Law, the eighteenth century tends to preface certain laws with universal moral

principles, and to establish by formal law that the former are derived from the latter. The Declaration of Independence of the United States in July, 1774, says: We consider the following truths self-evident: that all men are born equal; that the Creator has bestowed upon them inalienable rights, amongst which are the right to life, to freedom, to the pursuit of happiness, etc. So before these rights are guaranteed by the Law, they are announced to belong by birth and nature to man, to be independent of any particular and express bestowal by the law-giver, and beyond all dispute or even argument. Of the thirteen States which formed the original Union, ten accompanied their constitution by a Bill of Rights which repeated the essential contents of the Declaration of Independence of July, 1774; seven of them placed them as an introduction before their fundamental law, and three of them incorporated them in the latter. Two others, New York and Georgia, distributed them among various articles of their constitution. Rhode Island alone refrained from a general declaration. The States which joined the Union later, with few exceptions followed the example of their predecessors and built up their constitution on the foundation of an explicit statement of the natural rights of man. The French Revolution followed the course which the United States had indicated, and began its constitution of 1791 with the "Declaration of the rights of men and citizens," which is not a law in the technical sense of the word, but is superior to all positive Law, constitutes the latter's standard and touchstone, and straightway makes all laws invalid which are not animated by its spirit or which contradict it.

In the beginning, therefore, there was Morality, and the first laws, which formulated its precepts either in oral tradition or in writing, recommended without distinction what was good and desirable, and what was necessary and expedient. The differentiation of the Morality, which the commonwealth felt to be its code of right and wrong, into Custom and Law took place in late times. It was most definite in Rome, where for the first time a clear distinction was made between men's relation to their gods and their relation to one another; the former was left to the individual's conscience, the latter subjected to the power of the State; the elements of feeling and of dim perception were banished from the Law which confined its attention to deeds which it regulated in a high-handed manner. Law chose from out the all-embracing sphere of Morality one narrow area, that of mankind's immediate, material interests, and took this as its sole theme.

The object of all Morality is to enable men to live together in a community peacefully and prosperously; within the bounds of this more general purpose, the task of the Law is to suppress by force the grosser hindrances to this harmony among individuals, and by material means of coercion emphatically oblige everyone to respect the interests of his neighbour. What every responsible man of sound mind demands first and foremost is a proper respect for the possessions that are his by birth and acquisition, that is for his life, for his bodily welfare, for all the goods he owns that minister to his needs, his comfort and his pleasure. He who lays violent hands on these possessions, or threatens to endanger them, is recognized to be an enemy; man arms himself against such an one, fights against him, tries, if he have a strong character, to destroy him, or flees from him if he is too weak to triumph over him; man only yields to such an one if he simply cannot help himself, but he does so with hatred and revenge in his heart, and in a state of mind which, if it becomes fairly widespread, sets every man's hand against his fellow-men and leads to the ruin and even to the dissolution of the community. Hence the task of Law is effectively to protect the individual from the infringement of his rights by others. It places the organized forces of the community at the service of the individual whose interests are threatened, for the criminal law penalizes more or less severely attempts against life and health, unlawful seizure of property whether by force or cunning, malicious molestation and offence; the laws of commerce keep watch over the faithful fulfilment of contracts dealing with the fair exchange of goods or the execution of work, and in case of need enforce it.

A select few, everywhere only a small minority, has a different scale of values to that of the masses. For them "life is not the supreme thing." There are things they value more highly. The masses have no understanding for these people's needs and fine feelings. Their self-respect and their dignity are dear to them as wealth, their honour more sacred than life itself. Unhesitatingly they sacrifice their property to freedom, and more unbearable than anxiety for their material interests is life in surroundings in which brutality, vulgar sentiments, harsh egotism, malice, hypocrisy and treachery preponderate. The Law does not consider this minority. It is the creation and the servant of the great majority. It clings to earth and is incapable of lofty flights. It is of no service to the elect in the preservation

of their noblest spiritual possessions or the defence of their ideals against clumsy maltreatment. It declares itself to be incompetent to deal with any but material affairs.

Therein lies at one and the same time the strength and the weakness of the Law. Its strength lies in the fact that it definitely limits its sphere of action and strives to achieve positive results by positive means, results intelligible even to a mean understanding. Its weakness lies in the fact that it ignores man's highest and noblest interests. And these interests are there, they too deserve consideration and protection, they have a right to demand that the guarantee of the community should embrace them as well. The well-being of the community, which is the object of Morality and of Law too, demands that such conditions should be created and maintained, as should enable the elect also to enjoy life or at least find existence bearable. But Law does not suffice for that. No law enjoins upon the careless throng of pachyderms to spare the tenderest and noblest sensibilities of lofty natures; no judge punishes thoughtless or purposely malicious injury to them. To remedy this evil we must rise from the lowly plain of Law, the natural dwelling-place of the masses, to the heights of Morality, the habitual abode of superior minds. At the theological stage of civilization refuge is sought with the gods in whose hands the protection of essential, spiritual possessions is placed. They are expected to punish the wicked whose evil deeds are beyond the reach of any penal code, they are expected to soothe and comfort when life is hard or even unendurable. That is the compromise that the elect made with life in the hard times of European barbarism. They escaped from the world and thus avoided contact with the repugnant masses. They shut themselves up in cloistered cells away from mankind and held mystic intercourse with God. Among the people, cruel authorities with difficulty maintained discipline and scanty law and order by means of flogging and the pillory, torture, the gallows and the wheel. The minority of the elect disciplined themselves, suppressed their lower impulses by self-imposed mortification, and with the help of prayer and belief in God's promised millennium managed to keep their heads above water despite the crushing spectacle of the life of those times.

Long before the Christian era, the Greeks of noble disposition felt the need of living in an atmosphere of higher intellectuality and morality than that of the market-place, and they hid themselves behind the cloud-curtain of the

Eleusinian Mysteries, where they kept to themselves, escaped the rule of the rude Law, and followed the nobler precepts of Morality. Whenever the measure of Morality contained in positive law did not suffice for the minority with higher aspirations, this minority adopted the same expedient, a form of esotericism; small circles were formed outside the community in which there was added to the current legal code a superstructure of stricter rules, more finely shaded duties, more courteous consideration. Present-day life also offers examples of this tendency which is met with in all ages. There are select circles and professions in which the standard of irreproachableness is far higher than among the mass of the people. There a man is not held blameless, simply because he has never transgressed a positive law, never come into conflict with the powers of justice. He must be as unspotted in the eye of moral justice as he is in that of the Law. A club or association that is self-respecting will not admit to membership a candidate reputed to lie, to have an evil tongue, to break his word, to be a toady and a snob, though none of these offences are punishable by law. It has happened that a corps of German officers has forced one of their number to send in his papers because he has seduced and deserted a respectable girl, an adventure flattering to the vanity of puppies who, as like as not, boast of it, and with which a judge can only deal if the injured girl appeals to him—and even then he cannot punish the offender, but merely sentence him to pay damages.

Almost the whole world is agreed on the point that the Law does not sufficiently protect honour. Positive Law evidently does not consider it of such value as material possessions, for the defence of which it knows itself to be qualified. But there are numbers of people whose honour is dearer to them than their fortune, even than their life, and trembling with indignation they see that a thief who steals their purse with a few shillings is haled off to prison, while a slanderer who sullies their honour either goes unpunished, or at most gets off with a fine, which merely adds official insult to the injury. In this case the Law has lagged so far behind Morality that individuals try of their own accord to bridge the gulf without counting on the intervention of the community. For aspersions of their honour the masses take revenge with fists and cudgels, often with bloody results; and among the elect they resort to duels with lethal weapons, a preposterous proceeding due to desperation, and a bitter indictment of the prevailing

laws. It is a deed of self-help, like the formation of a vigilance committee among the anarchical throng of a lawless rabble. Hardly to be justified on reasonable grounds, it is intelligible from the point of view of historical tradition, and as a survival of dim and primitive ideas. In early days a properly regulated duel was an ordeal showing the judgment of heaven. It was the general conviction that God would give victory to the right and crush the wrong. When human Law failed, the injured party appealed to the source of all Law and placed his cause in the hands of the Almighty. From this point of view the duel is no unsuitable means of preventing plots to evade the law. Even if the injured party is inexperienced in the use of the weapon, even if his opponent is skilled and vastly his superior, he need not worry, for God fights on his side. Therefore he is more sure of success than if he entrusted his cause to fallible human judges. But from the moment that the duel ceases to be regarded as a means of arriving at the verdict of God, nothing can be urged in its defence, and that it nevertheless persists is a fact that can only be accounted for by the inadequacy of the current laws.

It really is astonishing that the Law does not yet appraise honour at its true value. Educated people almost unanimously regret and condemn the backwardness of the Law in this respect, all the more so because the tremendous development of the respectable, as well as of the disreputable, Press facilitates and aggravates libel to a hitherto undreamed-of extent, and no defence can overtake the slander which is quickly spread broadcast. Doubtless public opinion will urge that measures be taken to bring the Law into line with the views now held on all sides on the significance of honour, its defencelessness and its need for protection. That this has not yet been done is due to the slowness with which the Law adapts itself to the demands of a Morality which grows ever more profound and more refined. Law, which originally devoted itself only to the crudest material interests, very slowly extends the range of its protection, but it does so continually, with an ever-widening embrace, including more and more delicate, more and more noble, possessions, taking into consideration ever higher and ever finer needs. What early legislator would have thought of man's needing protection not only against murder, grievous bodily harm and maltreatment, but also against the dangers due to ignorance and carelessness in light-heartedly spreading infectious diseases, and contaminating water and the air? Who would have dreamed in former times that positive Law would

consider the sensitiveness of nerves, desire for beauty, dislike of ugliness and forbid disturbing street noises, protect the countryside from wicked disfigurement, and prevent the construction of buildings which would spoil the artistic architectural plan of a city?

These little traits, these concessions to personal demands, which to a coarse mind do not seem obviously justified, go to prove that positive Law continues to grow beyond the bounds of its unavoidably crude materialism, and strives to rise into the regions of the unwritten law of the Peripatetics, where ideal possessions are of more importance than those which have traditionally come within the scope of criminal and civil Law. Law and Custom have a natural tendency to approach more and more nearly to one another, to become merged in one another where the line that divides them is but faintly indicated. The closer the union between them, the more perfect is the Morality of a society. Absolute perfection would be reached if Law, which has been derived by differentiation from Morality, should, after a protracted period of development, return to its source and be completely merged again in Morality. But that is a dream which can never be realized as long as man is constituted as he is at the present time. Enthusiasts have dreamed of it, and in their imagination have seen an anarchical and lawless society in which no positive Law, no sanctions of force were needed, and in which the understanding and conscience of individuals would suffice to ensure the rule of good faith and goodness, and the curbing of selfishness. As far as man can tell we shall never attain this Utopia. We shall never be able to do without positive Law, not only on account of undeveloped and perverse natures, in which animalism has the upper hand of humanity, and which must be kept under strict discipline, but because a sure guide is needed in cases of doubt and irresolution which confuse even the good, nay, the best, men when passion and violent desire, with their heavy thunderclouds, darken the outlook of Reason, and judgment wavers amid the hurly-burly of a spiritual tempest. All that we may hope for and should desire is that Law should be filled with the spirit of Morality and embrace as many moral ideas as possible.

It lies in the nature of the thing that Morality was never clearly and definitely formulated, for as soon as this was done it assumed the character of Law. It remained general and slightly vague, it spoke to men in such indefinite terms as "good," "virtue," "duty," "love of one's neighbour,"

"unselfishness," "patience"—terms into which everyone can read the meaning which suits his thoughts and feelings. Mankind has never lacked moral teachers. The Indian Shastras and the Chings, Confucius and Meng Tse, the prophets of Israel and Ben Sirach, Plato and the wise men of the Stoics, the Zend Avesta, Jesus and Paul, the platonic ethics of Nicomachus, those of Epictetus and Marcus Aurelius, thousands of years ago preached the principles which exhaust the whole field of Morality, and beyond the essentials of which none of the later moralists have gone; neither the "Imitation of Christ" nor Ibn Bachia, Spinoza, the Scotch school and Kant, up to Wundt and Guyau.

But what about the effect of the doctrines which they advocated gently or passionately, adducing proofs or uttering threats? To lend weight to them they either appealed to God, threatening mankind with His wrath and vengeance, or to Reason, which, according to them, could advise man only for his good. Perhaps they could intimidate those who had blind faith and convince the reasonable. But there are many of little faith, and more still who are unreasonable, and on these the persuasion, warnings and conclusions of the Moralists had no effect. For these it was imperative to clothe the minimum of Morality, the minimum without which no society can exist, in the definite form of laws, and so create the Law to which the weapons of the community lend compelling force. Thus the whole material of Ethics is divided into Morality and Law. The Theologians and Scholiasts who trace all binding rules of human conduct back to revelations of the Divine Will recognized on principle only one single law: but the aspect of practical life made even them distinguish between the "*lex indicativa*" and the "*lex præceptiva*," between an indication or counsel and precept or command. The "*lex indicativa*" is Morality, the "*lex præceptiva*" is the Law.

Codes are the normal expression of the Law. Not all Law is formulated in this way, for there is a recognized Law of custom, but all laws, codified or not, become a part of the prevailing Law. Naturally, and as is only reasonable, all Law is pre-existent in the consciousness of the majority, and the law-giver's rôle is limited to setting down in paragraphs universally acknowledged principles dictated by public opinion. However, there are an appreciable number of historical instances in which this procedure is reversed; the law-giver, without inquiring whether his ideas were in accord with the general conscience, arbitrarily clothed his dictates to the

community in paragraphs which it had to accept as Law. It is clear that this procedure is extremely risky. Even if the law-giver possesses superior wisdom, even if he is far in advance of his people and his age, even if his intentions are of the best, there is grave danger that the moral feeling of the people will revolt against the laws thus forced on them. Outwardly they yield to the pressure of public authority, but they obey the Law with a keen inner sense of opposition; a chasm yawns between conscience and the practice of the Law, ideas of Morality and Law become confused, the moral foundation of all laws totters, and the public gets into the habit of regarding the Law as something alien and hostile, which cannot be disregarded with impunity, but which it is not only not culpable, but even meritorious to evade.

An enormous amount has been written on the subject of what a law is, and all this literature expresses in endless words very few and, almost without exception, very mediocre thoughts. I should consider it an unpardonable waste of time to devote any considerable space to this rubbish, either in order merely to quote opinions or to investigate and confute them. Perhaps the best thing said of the laws is Hobbes's description: Civil Law (the law of the country) is nothing but a guarantee of natural Law. It is true that this definition implies a supposition: the existence of natural Law which, however, is not binding in itself but requires the sanctions of the law of the country. Moreover, it is only correct if we add the limitation that it does not guarantee all natural Law, but only a part of it. Hobbes is also forced by his definition of the law of a country to explain what he means by natural Law, and he does not evade this duty. "Natural Law," he says, "is the decree of true Reason (*ratiocinatio recta*) with regard to what we must do and what avoid for our self-preservation.... Transgression of natural Laws is due to false Reason (*ratiocinatio falsa*)."

In spite of its vagueness this explanation of Hobbes's shows that what he really means by natural Law is Morality, and in this respect his views on the relation of natural Law to civil Law, that is, of Morality to Law, practically coincide with mine. Nevertheless, he ignobly denies the moral decency of his doctrine of Law when later on he coldly and dryly remarks: All that the state commands is just, all that it forbids is unjust. Saying this he stupidly and obsequiously makes the civil code the source of Law, whereas by his own definition Law (he says "Natural Law") is the source of the civil code.

It is more pardonable for Pusendorf, a formal jurist, to say: "Law is the decree (*decretum*) with which a superior binds his subject (*sibi subjectum*)."
That interpretation of Law is possible if it is considered from outside; it is a means of coercion in the hands of the mighty to subjugate the dependant; this point of view ignores the essential; but Pusendorf has no concern with this, for he makes no claim to be a philosopher, he keeps within the bounds of juridical practice.

The Bishop of Seville, Saint Isidor, the most respected theologian of the time between the last patristic writers and St. Thomas Aquinas, gives the following definition of Law: "Law is an institution (*constitutio*) made by the people, by which the nobles (*maiores natu*), together with the common folk, have given a sanction to some ordinance." This says little about the essence of Law, but it leads to the question of the origin of laws. On this subject, too, whole libraries full of books have been written since the time of Plato and Aristotle; luckily, for the most part, they now only serve as food for moths and worms.

From this tangle of hair-splitting and sophistry, from this muddle of syllogisms, dogmatism and deep-sounding phrases which mean nothing at all, one thought emerges pretty clearly, to wit, that only the highest authority in the State has the right to make laws. On this point there is perfect unanimity; and that is natural, for it is so obvious that it has no need to be circumstantially investigated and proved in the fifty thousand books that have been written on the subject. It is perfectly clear that one cannot possibly force all the members of a state to obey certain commands and prohibitions which the Law contains, unless one is stronger than each one of them, and therefore the Law must necessarily emanate from the highest power in the state. It is beside the point to obscure this simplest and most transparent fact by questions as to the right of the law-giver. He needs no theoretical right since he has the might. To use Kant's expression, positive Law is not a creation of the mind (*voumevov*), it is a phenomenon; its existence is a matter of empiricism, not of reason; it is a matter of fact and is under no obligation to justify itself intellectually to the intellect. No law-giver has ever troubled to tack on a preamble or an addition to the law he promulgates proving that he has the right to enact it.

But in the literature dealing with this matter opinions differ widely as to who embodies or possesses the highest power in the state. According to some it is the king, because he wields the sword and therefore can enforce unconditional obedience; according to others it is the Church, because the Law, to be binding, must be moral, and Morality is established by God since the Church is the representative of God on earth. Others again regard the people as a whole as the highest power, because without their assent no law can prevail, and because even the king only has the power of which the people divests itself to transfer it to him. History has advanced beyond this quarrel.

To-day no one dares to dispute the fact that the nation alone is qualified to enact laws for itself through the agency of its chosen representatives, and that no law can be binding for the people without their explicit or tacit consent. In Switzerland, where they have instituted the referendum, the people by their vote can repudiate a law, made by their representatives in their name, before it comes into force; and in the other constitutional states they have recourse to the following expedient: whenever a law is promulgated which seems unacceptable to them, at the next Parliamentary election they vote for men who are pledged to do away with it. The people have the power to make laws, therefore they also have the right to do so, and they do not hesitate to revolt if this right is tampered with. In recent times no nation outside Russia has submitted to having laws forced on it, in framing which it has not co-operated, and which it has not expressly accepted. The United States tore themselves away from the Mother Country with the cry: "No taxation without representation!" and more than a hundred years before that the English people had irrefutably proved to the Stuart king, Charles I, that he had no right to make and unmake laws, by condemning him in a court of law with legal formalities and then having his head cut off by a masked executioner.

The legal code is the concrete form of the Law, and the Law is the crystallization of the most material part of Morality. And as Morality binds every member of the community, as man is only tolerated in the community on condition that he respects Morality, it is a matter of logic that he should also respect the Law; that is to say, that he must not only submit to it because he fears punishment if he fails to do so, but that he must feel obedience to the Law to be part of his Morality, that he must act lawfully at the dictate of his own conscience, and not because of the threat of the power of the state. This might be enunciated as a principle without reservation and without limitation, if in practice the laws always were, as in theory they should be, moral. But this is not necessarily the case. The law is a form, and every form can be abused by filling it with unlawful contents. If an unscrupulous adulterator of wine fills a champagne bottle of the usual shape, complete with metalled and wired cork and a label recommending it, with some disgusting mixture and puts it on the market, he is severely punished for adulteration of food and infringement of the law protecting trade marks. But if the government publish in the *Gazette* foolish, risky, and

perhaps absolutely immoral orders in the form of a law, duly arranged in chapters, articles and paragraphs, as the people are accustomed to seeing their moral laws expressed, who impugns them for it?

The examples of this in history are only too numerous. To this category belong all laws seeking to maintain the validity of state authority at the expense of the natural rights of thinking and feeling men, e.g. all religious persecutions, the maltreatment of socialists, excise laws and duties which hamper freedom of work and movement, or are tantamount to robbing a particular man or all citizens. As a rule, laws of this kind can be imposed upon the people only in a despotically ruled state, since the people in this case has no share in legislation; but constitutional government is no guarantee against it, for parliamentary majorities can be forced to enact tyrannical laws, by fanning the flame of national or party fanaticism, by encouraging prejudices, or by intimidation; this is proved by Bismarck's May laws and Socialist laws, and also by the laws passed by the National Assembly at Versailles against the rebels of the Commune and against Paris. Obedience to such laws cannot reasonably be demanded. Only a Hobbes will dispute this, for whom "everything that the state commands is just, everything that it prohibits is unjust," or the Digest according to which "*quod principi placuit, legis habet vigorem*" (what pleases the ruler has the force of law). Legal enactments, though they be immoral, are yet formal Law; as a matter of fact, however, they are wrong, and even if their originator has the power by brute force to secure obedience to them, no man who tries to evade them and to get them abolished will be accused of immorality.

A trivial objection strikes one at once. Only a despotic megalomaniac will forbid his subjects to make representations in the proper quarters, and in the proper way, for the purpose of getting a bad law abrogated; but as long as it is in force it must be obeyed. For if every citizen were allowed to make a selection of the laws according to his choice, acquiescing in some and rejecting others, this would lead straight to anarchy. The reply to this is that anarchy, although a terrible evil, is notwithstanding a lesser one than an immoral law, that is, a law which sins against Morality. For the maintenance of law and order which the State guarantees is only preferable to anarchy because it enables individuals to live together in peace, and guarantees liberty of movement and respect for persons, life and property. But if the

State acts wrongly, and interferes in the feelings and convictions of individuals, if it uses brute force to compel them to actions and abstentions against which all the good in them rebels, then its law and order is law and disorder, and it is the State itself which brings about a condition of anarchy by making force the ruling factor in the life of the individual. For the latter it is all one whether he has to yield to the force of the State or that of his neighbour. Nay, more, his position is worse in a condition of anarchy caused by the State, than in that which existed before the State was formed, because it is easier to meet force with force, when this emanates from an individual who is one's equal, than when it is exercised by the superior organization of the State. The State which enacts immoral laws denies its own principle and causes its own dissolution.

The intellectual constructions of the eighteenth century, of which the most famous is J. J. Rousseau's "Social Contract," are not taken literally by anyone nowadays. Nobody seriously believes that one day individuals living in a state of nature banded themselves together and made a contract, by virtue of which they renounced certain liberties and rights and transferred them to a superior authority which was to rule them so as to promote the general welfare, peace and happiness. But if the procedure was not quite so simple as this, at least it is certain that the State undertakes the task which Rousseau expressly prescribes as its aim. If, however, through its fault, the fault of its legislation, the welfare of the community suffers, and peace and happiness are not promoted but hindered, disturbed and destroyed, then every citizen has the moral right to revolt against the State and paralyse its pernicious might; not because it has broken a formal contract with its citizens, but because it has become inimical to the peaceful life of mankind, the purpose of every social community. If anyone is troubled at the thought that there is no reliable standard whereby to test the morality of a law and no place indicated where such a measure can be applied, he may take comfort by remembering that all Morality is surrendered to the feelings and judgment of the majority and has no other sanction than this. History teaches us that the majority does not acquit itself too badly of its duty. Public opinion suffices to maintain Morality at a certain level in a community. And if public opinion is capable of ensuring respect for the unwritten law of Morality without the sanctions of State Law, it may surely be recognized as a fit judge of the morality of a law.

That is the theory of the right of citizens to defend themselves by all means, even by force, against immoral laws. Practically, it is of no importance, because nowadays, at least in all progressive and liberally governed States, the people have constitutional means at their disposal to prevent or quickly to rid themselves of laws that are obnoxious.

Morality includes the Law, whereas Law is only a part of Morality. Owing to its coercive nature, the Law is obliged to be concrete and material and to ignore all the imponderable, barely perceptible, spiritual and dream-like things which hover round Morality, surround it with an atmosphere and transport it beyond definite boundaries into the realm of the unconscious and visionary. The total exclusion of the element of feeling which Morality includes, constitutes the most profound difference between it and the Law. Law protects order but knows no love. The separation of Law from Morality is due to the pressure of selfishness which thinks it has made the greatest possible concession when it rises to the height of saying with Ulpian: "*Neminem laedere. Suum cuique reddere. Honestè vivere.*" Injure no one; that is, refrain from the ruthless use of force; render to each his own; that is, do not retain in rascally fashion what belongs to another; live honourably; that is, give no offence to your neighbour by disorderly conduct and depravity.

Well and good. At a pinch one can live like that. But the words pity, kindness, love of one's neighbour do not occur in Ulpian's pithy statements, and the Law knows nothing of them.

The Law guards each man's well-earned possessions, but it bids no one make sacrifices. Morality can demand these. It can insist that the individual should freely, and urged by his own inner impulse, impose sacrifices upon himself, reduce his possessions in favour of another, disturb his personal comfort at any moment, perhaps even risk his life; that is to say, that of his own free will he should do just those things from which the Law carefully shields him. Where the Law says: injure no one! Morality says often enough: injure yourself to do good to your neighbour. Where the Law says: to each man his own! Morality not seldom says: to each man your own if he needs it more than you do. Morality counts on the existence of a quality of which the Law has no need: Sympathy. To be moral we must feel in our own being at the time, or retrospectively, the subjective experiences of our

neighbour, with the same quality of emotion that he feels; his pain must be our pain, as his pleasure must be our pleasure. For the man who cannot do this—who realizes in his mind the circumstances of his neighbour only as an image, and without the concomitant note of feeling—it is impossible to rise to the height of Morality. It is not his fault, for the gift of sympathy is an organic disposition, which you either do or do not possess, which you can develop or suppress, but which you cannot create if it is lacking. Nevertheless, the lack of sympathy is a pitiable infirmity, for it prevents a man from scaling the heights of Morality.

To respect the Law is to practise a wise selfishness. To act morally is to divest oneself of selfishness and attain the privilege of unselfishness. To behave in strict accordance with the Law earns the merited praise of civic blamelessness. But to act morally is a virtue which is of incomparably higher quality than that of mere blamelessness. The law-abiding man, the honest man, is praised as having been "*Integer vitae sceleris purus*." That is an acceptable epitaph. But the man of active Morality, willingly suffering for others, provides an example which reconciles millions to the hardships of life. The former is a worthy man, but the latter is a saint.

CHAPTER V

INDIVIDUAL MORALITY AND COLLECTIVE IMMORALITY

Men, who would be deeply offended if their Morality were called into question, quite coolly investigate the problem as to whether the State in its actions and omissions is bound by the same moral laws as the individual, and the majority of them come to the conclusion that in its relation to other States, the State must not be guided, that is to say, hampered, by moral considerations. They go further than this and not only liberate the State in its dealings with other countries from the trammels of Morality, but claim for the government the privilege of standing beyond and above the moral law in the conduct of public affairs, because to their mind both foreign and home politics move on a different plane to that of ethics. If anyone objects to this shameless contention, its advocates contemptuously dismiss him with the disdainful remark: "That is the drivel of a layman, and no man of science would waste his time on it." And if you were to reply: "Your views are those of gaolbirds who try after the event to hatch a theory justifying their misdeeds," they would probably shrug their shoulders and murmur scornfully: "The man is obviously mad."

Professorial wisdom has formulated pedantically what practical politicians, the heads of states and leading ministers have thought, said and done. Napoleon remarked at St. Helena to Count de Las Cases, who respectfully notes the fact in his *"Mémorial de Sainte Hélène"*: "The actions of a ruler who labours for the community, must be distinguished from those of a private individual who is free to indulge his feelings; policy permits, nay, commands, the one to do what in the case of the other would often be inexcusable." Perhaps it was under the influence of this remark, with which he, no doubt, was familiar, that Professor Nisard one day in a lecture at the Sorbonne in Paris propounded the theory that there was a dual Morality, one public or political, the other private, and that these two did not follow the same rules. That was shortly after the Coup d'Etat of Napoleon III, and it

was easy to descry, in the words of the celebrated professor of literary history, obsequiousness towards the new Emperor and the effort of a courtier to excuse the violence which the Emperor had just done to the constitution he had sworn to uphold. Nisard was one of the ornaments of the university, a teacher of youth, who was as popular as he was respected. But the sound ethical feeling of his hearers revolted against the depravity of the principles he had just enunciated, and the violent expression of their indignation drove him in shame and disgrace from his chair and out of the lecture hall.

Macchiavelli is the most famous advocate of the Immorality of the State and the right of politics to be unethical, and his name is identified with this infamous theory. An enormous amount has been written about the Florentine statesman, his book of the "Prince" and the doctrines he advances in it; among these works those in which his theories are endorsed preponderate to a horrifying extent over those which oppose and refute them. Mohl and Paul Janet have furnished us with the best abstracts of these very numerous writings, and I refer the reader to them. Here I can only dwell on the main points of the investigation.

Macchiavelli writes: "A man who wishes to be perfectly good is without doubt in danger among those who are not good. It is therefore advisable that a prince should learn not always to be good, so as to be able to put these rules of life into practice, or not, as circumstances may demand." "A prince cannot maintain loyalty to a treaty if it become dangerous to his interests." In short, the prince not only may, but must, do what is in his own interests. He need not stop to think whether his actions are honest. The only measure of their worth and appropriateness is the profit they promise. Their success always justifies them, only their failure proves them to be bad.

The most revolting thing in the arguments of the "Prince" is the equanimity with which the author adduces them. Never does he let slip a word of excitement, never does an indication of feeling appear. He treats his subject not as an investigation of principles to which one adopts a mental attitude and which one should approve or disapprove, but as a description of existing facts which arouse one's emotions as little as, for instance, the enumeration of the qualities and characteristics of a mineral. It has been said in his defence that his book is a concrete study, the presentation of the

character of Cæsar Borgia, of his psychology and of his principles of government; and that Macchiavelli wished to give an objective account of the philosophy of the events he had observed, but did not wish to judge them subjectively; and this, if for no other reason, because an expression of his own opinion would have been too dangerous for him. It is further urged that his personal views are revealed in the treatise on Livy.

This defence, however, is far from convincing. In the "Prince" Macchiavelli maintains the same unconcerned and cool note that prevails in his account of the treacherous assassinations perpetrated in Senigaglia by his hero Cæsar Borgia. The only personal feeling, which peeps out occasionally in both works, is a certain perverse, æsthetic satisfaction, experienced by the artist with the eye of a connoisseur who lingers over a work of nature, perfect in its way, and delights in the harmony of actions which, with absolute logic, almost with mathematical precision, result from the definite premise supplied by a certain character. Des Esseintes, the ideal æsthete invented by Joris Karl Huysmans, may appraise the worth of a monster solely by its beauty, without a thought for its morality. But by such appraisal he cuts himself off from the community of men, though he, in his arrogance, being morally insane, may abuse them as philistines.

Since it first appeared, Macchiavellism has found disciples and admirers in every age; and these, in liberating politics from all fetters of Morality, go further than its originator. The German jurist of the century of the Reformation, Schoppe (1576-1649), declares sententiously that politics differ from Morality and have their own principles, just as Morality has: he considers that the chief difference between them is that the latter takes as its subject of study that which should be; the former, that which is. For this one phrase this pedant, who has otherwise rightly deserved oblivion, has some claim to be remembered. For here he consigns Morality to the realm of pure thought, of theoretical and meditative idealism, while for politics he claims the sphere of practical reality and shows the first dim dawning of that practical policy (*Realpolitik*) which, two hundred and fifty years later, was to be as the light of the sun to statesmen.

The Frenchman, Gabriel Naudé, almost a contemporary of Schoppe's, constituted himself the champion of Coups d'Etat, if they promised political advantages; further, he justifies and praises the Night of Saint Bartholomew,

a very energetic measure taken in his lifetime to put an end to the religious strife which was weakening France and causing the government much embarrassment; his only regret is that the happy idea of slaughtering all the Huguenots was not carried out more completely; in other words, that the massacre of the obnoxious Protestants was not continued until they had been completely wiped out.

Even in Descartes, who confessed to a somewhat shady opportunism in questions of state and, for instance, concedes reasonable and moral justification to Absolutism, we find the depressing statement: "Against the enemy one is, so to speak ('*quasi*'), permitted to do anything," a conscious and determined denial of the Christian commandment "Love thine enemies," which perhaps demands too much of the average man and can only be expected from saints, but which, anyway, contains an exhortation for all the world at least to be just to one's enemies and act according to the dictates of Morality.

D'Holbach does not beat about the bush, but declares roundly: "In politics the only crime is not to succeed." Even Macchiavelli did not express it as baldly as that. To quote the Duke of La Rochefoucauld, he at least pays virtue the compliment of hypocrisy, for he gives this advice: "Do (the evil which is profitable) and excuse it afterwards." This is a paraphrase of the old advice given by a pettifogging lawyer for the benefit of the criminal: "If you have done it, deny it," and of the well-known phrase of Frederick the Great which runs something like this: "If I have a desire for a foreign country, I begin by seizing it, then I send for lawyers who prove that I had a right to it." This, then, was the opinion of that king who wrote an "Anti-Macchiavelli," of whom, however, Paul Janet neatly remarks: "Nothing is more typical of Macchiavellism than as heir presumptive to the throne to refute Macchiavelli's principles, and then as ruling monarch to apply them with the more determination."

For the sake of the incorruptible Morality which Kant defends in his little work "*Vom ewigen Frieden*" ("Of Eternal Peace"), he may be forgiven for his weakly worldly wisdom in following up the "Critique of Pure Reason" with the "Critique of Practical Reason." In "*Vom ewigen Frieden*" he bravely demands harmony between Politics and Morality. More sweepingly than the English proverb, "Honesty is the best policy," he demonstrates that

honesty is better than policy. It is an old tradition of all governments, and especially of diplomacy, to affect secrecy, since their inavowable intrigues shun the light of day and the eye of outsiders. To-day the democracy in all constitutional states demands that foreign policy should be given full publicity. Kant expressed his opinion shortly and sharply a hundred and fifty years ago: "All political actions which cannot be made public are unjust." In the eighteenth century, in which he lived and which began with the war of the Spanish Succession, went on to the wars of Frederick the Great, and ended with the war of the Coalition against the French Revolution, he does not dare to make a definite claim that force should be expelled from inter-state relations and Law put in its place, but he does say, if somewhat timidly, that one may "dream of" an ideal in which the quarrels of nations are adjusted, like those of private persons, by laws which have been framed and approved by all. Kant is a comforting exception amid the many teachers of constitutional law who are almost unanimously Macchiavellian in their attitude, and who regard his point of view with contemptuous and condescending leniency because he was an unworldly philosopher, a theorist in politics.

The English and Scottish moral philosophers, from Locke to J. S. Mill and Herbert Spencer, are all untainted by Macchiavellism and recognize only one Morality for the state as for the individual, for political as for private action. But it must be admitted that their doctrines have not yet been generally assimilated by the consciousness of their own people. Now, as ever, it is a fundamental principle of English law that "the king can do no wrong." That means that the king, the embodiment and epitome of the state, as the source of Law is Law itself, and is superior to all the laws of the country, which is a still more drastic paraphrase of the doctrine of the Digest: "*quod principi placuit legis habet vigorem*"; every whim of the potentate has the force of law, and the English have coined the horrible phrase, "My country, right or wrong," a dictum which allows ruthless deceivers of the people and destroyers of their country to hide their most appalling misdeeds beneath the mask of patriotism and to disguise deeds worthy of a criminal in the habiliments of virtue.

Real patriotism demands that a true citizen and an honourable man should with might and main, even at the price of his life, oppose any injustice about to be committed by his government and his misguided compatriots;

and, further, that he should strive to maintain his country in the path of Right and Morality even if, as sometimes happens, in a dispute between his nation and a foreign one the latter has Right and Morality on its side. On the plea of inevitable partiality a judge may refuse to try a case in which a near relative of his is involved. That is a permissible concession to that human imperfection which causes reason to fall silent when feeling raises its voice; and justice does not suffer, for there are other judges who can take the seat that has been voluntarily vacated. No citizen has the right to evade the duty of judging his country, because, if he fails, there is no other judge who can be put in his place and fulfil his duty. Every citizen is personally responsible for the just and moral behaviour of his community, responsible to his own conscience, to his nation, to the world, to the present and to the future; and if he is powerless to prevent depravity and misdeeds, he must at least solemnly and loudly condemn them, as this is his only means of avoiding joint responsibility for the infamy. If he fails to do this, the public crime becomes his personal crime as well. The elder Brutus, so much and so justly admired by the Romans, is an example to all, for without mercy he handed his own flesh and blood over to the executioner, when according to the law his life was forfeit. The state has no greater claim to indulgence and mercy than had Brutus's son, if knowingly and intentionally it indulges in vice. For if you allow the dictum, "Right or wrong, my country," to be valid, then you must also apply it to the state of filibusterers that once existed in the Antilles, and must demand of its citizens that their patriotism should approve and defend theft, piracy, rape and assassination, for the systematic perpetration of which their state was founded.

In contrast with this wretched "My country, right or wrong," the inflexible dictum of the ancients stands out: "*Fiat justitia, pereat mundus!*" (Let justice be done though the world perish!). And what does most honour to the French Revolution is the phrase so often mocked by political profiteers: "Sooner shall the colonies perish than a principle!" That was the standpoint of the prophets of Israel, who truly did not love their people less than do the wretched scoundrels who shout "hurray!" and yell songs, when their country deals Morality and Right a brutal blow, because the leaders think that this will profit the country, or themselves.

Frederick the Great and Napoleon, as heads of the state, acted in accordance with Macchiavelli's views. At their time this was expressed by saying that

they were guided by the necessities of the state. In the second half of the nineteenth century Macchiavellism received the name of practical policy (*Realpolitik*). The despisers of Morality, who call the misdeeds of the state *Realpolitik*, apparently do not know that this one word implies a very comprehensive admission. To their idea *Realpolitik* is a policy which reckons only with realities, not with desires, yearnings or hope, or as Schoppe brutally expresses it: with that which is, not with that which ought to be. It is active in the domain of facts, not in that of principles.

But, according to the advocates of *Realpolitik*, facts and realities mean nothing but the sole rule of interest, selfishness, ruthlessness, force, cunning and contempt for all foreign rights; whereas fairness, justice, the curbing and suppression of one's own desires, consideration for one's neighbour, love of mankind—all these are phrases, or let us rather say ideals, which are to be found, not in the world, but in the brains of a small minority of enthusiasts without influence. He who confesses to such views, to whom the worst impulses alone are real, while he relegates Morality to the sphere of the unreal, of visions far from reality, is a pessimist as long as his convictions remain theory; but if he puts them into practice, or urges the leaders of the state to do so, then he is an evildoer who breaks the moral law as soon as it appears unaccompanied by the police, the prison and the gallows. In private life a man with such views is a criminal who obeys his evil instincts whenever he may hope to evade the law of the state. The bandit, who is clever enough to manage so that police and court of justice cannot touch him, is a practical politician, for the riches he acquires by theft, robbery and murder are realities; the criminal code is but a scrap of paper, something visionary, as long as its minions do not seize him by the collar.

The immorality of politics, the way in which the foundations of Morality are ignored by the state, is the natural consequence of the power of rulers; for in them all the original instincts of the human beast still untamed by moral law are exaggerated by the intense realization of their loftiness, the glory and the illustriousness of their position, and they are not forced by wholesome fear of the means of coercion wielded by the moral administration to control themselves, to exercise and develop their organic powers of inhibition. The elevation of this fact of the Immorality of the state to a theory that the state is not bound by moral law, is derived from the

conception which philosophers of all ages, from ancient times to the present day, have formed of the character and the purpose of the state. Plato, in the Republic, maintains the omnipotence of the state, which nothing and no one can limit; and Aristotle, not rising to such heights of error as his master, says more soberly: "It is a grave mistake to believe that every citizen is his own master." The Italian philosopher Filangieri considers the guiding principle and motive power of the state to be "love of power," which a fool three centuries later called the "will to power," whereupon other fools declared this to be a brand-new discovery.

Hegel goes farthest of all in his idolatry of the state; according to him the state is not alone moral, but Morality itself, just as God is according to the theologians. As it would be arrogant blasphemy to characterize anything that God ordains as immoral, as it would be nonsensical to wish to impose upon God a moral law from outside, not emanating from Him, to which He would have to submit even against His will, so it is reprehensible to judge the actions of the state by the standard of individual Morality; and it is equally absurd to admit any moral coercion imposed on the state from outside, any guiding principle other than the law of its necessities and the logic which indicates the means needed to attain the necessary end.

According to Treitschke the state is the highest form of human existence; nothing higher than the state exists. He has never asked himself the question whether, after all, humanity itself is not superior to the state which is the form, a form, of its existence and therefore not its essence.

From his conviction that the state is the highest thing existing, Treitschke concludes that certain moral duties, e.g. that of self-sacrifice, cannot possibly exist for the state. "The individual is to sacrifice himself for the sake of a higher community of which he is a member; but the state is itself the highest thing in the outer community of mankind, therefore it can never be confronted with the duty of self-destruction."

How obvious that seems! How grossly mistaken it is all the same! First of all the state is not the highest thing; there is something higher, and that is humanity; if then we recognize a moral duty of self-sacrifice for humanity, theoretically this duty may arise just as much for the state as for the individual.

Secondly, the idea that owing to Morality the state might one day actually be in such a position as to be forced to sacrifice itself is the most shocking nonsense. How could that possibly be? If the state always acts with strict Morality towards its citizens and foreign states, it is simply impossible that it should have to sacrifice its existence in the fulfilment of some task; for tasks only arise when, and as long as, the state exists. Once it is disintegrated there can be no task, either theoretically or practically, for it to accomplish, therefore it cannot have to sacrifice itself for such a task. But if the Immorality of another state, or of a minority of its citizens, should endanger it, threaten it with an unjust attack from within or without, then there is no rule of Morality that can forbid it to defend itself to the last, and its self-sacrifice could then only be a result of its complete annihilation in a justifiable war of necessity. On the other hand, even the most unscrupulous practical politicians do not possess any absolute guarantee against defeat, though they declare a war of aggression to be permissible, whether waged on account of an itching for power, for purposes of conquest, for the winning of prestige, predominance or economic advantages.

Thirdly and lastly, the duty of self-sacrifice for the state can only be envisaged and seriously discussed, if the state be conceived as a person to whom the duty of Morality applies in every way; but this conception is mystic anthropomorphism, not sober, sensible recognition of realities such as the practical politicians love to boast of.

For, as a matter of fact, the state is not a person but a concept, an institution created by man in the interests of one individual, of a few, of many or of all; an organization of habits and interests, a relation in which individuals live together. The mysticism of the weak-minded has transformed it into a person with human features, with the qualities, desires, duties, and aims of an individual; these men are intellectually incapable of penetrating to the fundamental facts underlying the concept, and cling entirely to word-pictures which are mere verbalism. Scholasticism in the eleventh and twelfth centuries was chiefly occupied in a quarrel about Nominalism and Realism. It was allowed to drop and was not fought out to a decision. Perhaps because it is impossible to convince these superficial babblers who take a name or a word for an object actually existent in time and space, that they are in error. The fight between Abelard and Roscelin and that between the two of them and Duns Scotus ought to be taken up again. Above all, one

ought to knock it into the heads of those who make a fetish of the state that it is a mere word, the famous "*flatus vocis*" of the Nominalists, which they worship, to which they build altars and make human sacrifices.

This humiliating form of idolatry is practised by the school of sociologists known as organicistic, as well as by the practical politicians. This school maintains that the individual has no independent existence at all, that he continues to exist only in the community, by the community, as a totally subordinate, dependent and incomplete fraction of the community; that the only real thing in the species is society, the state; that this must be regarded as a living organism, in which the individual human being is merely a cell which in solitude, outside the community and detached from it, is as little capable of life and has as little significance as a cell separated from a highly differentiated creature, such as a man or some other mammal. In my book "*Der Sinn der Geschichte*" (The Meaning of History), I threw as much light as I possibly could on this superstition, and I pointed out in detail its lack of sense as well as its dangers. I can, therefore, content myself here with a résumé and a few indications.

There is nothing mysterious or supernatural about the historic or even the prehistoric origin of the state; part we can learn from reliable documentary evidence, part we can gather with certainty from obvious facts. From the primitive human family, which more probably consisted of a pair than of a man and several women, there arose the formless horde, a crowd of individuals of all ages, connected by blood; this developed into a tribe in which age, strength, courage and intelligence were appreciated in a certain order, and thereby were produced the beginnings of discipline, co-operation and regularized mutual relations; that is to say, of organization. This embryo of later formations, this sketchy beginning of an economic and political community, evolved more definite and differentiated forms when the wandering hunters and shepherds, seeking prolific hunting grounds and pasture lands, and later on arable land too, came upon other groups of men and fought with them for the possession of the desired domain. In the conflict strong and brave men came to the front, and the victor became the natural, and for the most part willingly recognized, leader and master of his companions, while any who opposed him were reduced by force to submit to his authority. The state crystallized around this war-hero, and by all its members its aim was clearly and obviously recognized to be defence and

the increase of property outside the state; that is, the warding off of attacks by foreign robbers and acquisitive invasions of neighbouring domains—wars of defence and conquest, but always war; and within the state the maintenance of a certain measure of safety for individuals. This safety, however, had to be purchased dearly by the limitation, often enough the complete surrender, of the right of self-determination, of independence of will and freedom; so dearly, in fact, that the price was far higher than the value of the advantages acquired.

The leader in warfare became the ruler and bequeathed his privileges to his descendants. The state was he himself, the land his property, the people his family in the old sense of the word—that is, his kindred, his servants, his slaves. His comrades in arms who had most distinguished themselves became an aristocracy of the sword, the supporters and tools of his power, though often enough they became his rebellious rivals and overthrew him. Defeated enemies were robbed of all their possessions and slaughtered; later on they were degraded to serfs, a position little better than that of beasts of burden. A regular parasitism developed, by means of which the ruler and his companions in arms exploited the subjugated and productive masses for their own profit.

The acute form of this parasitism was warfare in its chronic form, its prolongation in times of peace, the extortion of contributions and duties, the imposition of taxes and forced labour from the people. The ruler was clever enough to provide himself with a moral right to his exercise of brute force, by inventing a divine origin for his person and power, and making worship of his person an essential tenet of the national religion. The systematic suppression of the masses without rights became the universal practice of the ruler and of the instruments of his power, and this gradually spread to the higher classes who could still play the master to the lower strata, but were of no more account than the vulgar herd in the eyes of the ruler, having to bow their proud heads beneath the same yoke. A very few races followed a different course of development from the primitive horde to an organized state. They remained free members of the community with equal rights, they allowed no hereditary ruler from among themselves to become their superior, and governed themselves as republicans, who nevertheless also waged war without exception, either forced thereto by the attacks of greedy neighbours or lured into doing so by the example of the monarchies

within their purview or by lust for booty. In warfare they won slaves and subjects, and changed into oligarchies, most often into despotic states, and before they ultimately declined to the parasitism of a single man and his aids fell victims to a collective parasitism which gave the conquered and subjugated population up to the spoliation of the victors.

Up till modern times the state preserved the character of a private domain belonging to the ruler and his house. Wars were waged in the interests of dynasties, and as late as the eighteenth century the succession in Spain and in certain provinces of Austria was the origin and purpose of various campaigns. The French Revolution first wrought a change in this. Since this great event it has been impossible to plunge any European state into war in order to support the claims to property, more or less legally justified, made by its ruling house. The people have taken the place of princes, and now the principle of nationalities furnishes the reason or excuse for bloody conflicts between states; and this has become a factor in modern politics and history merely because dynasties had built up their realms regardless of the origin and language of the inhabitants of the districts which they had conquered, stolen, bought, or acquired by exchange, by marriage or by inheritance, and were indifferent to the national unity of their subjects as long as they could gain possession of the country and the people.

From the time of its first vague beginnings up till the rise of modern democracy, the state has been nothing but a means of parasitism in the hands of the ruling person or group, and an instrument for the preparation for, and the waging of, war. All the state's tasks, which apparently lie outside the sphere of war, if they are carefully examined, will be found, after all, to aim at efficiency in war, and it has gradually selected these tasks from the simple consideration that their execution increases the guarantees of success in warfare and in government.

The deification of the ruler in Asiatic and Egyptian lands, the unconditional identification of the realm with his person, the uniform enslavement of the whole people, its naïve exploitation for the sole benefit of the sovereign and his assistants are no longer possible in Europe at the present day. The development of the nations to a higher plane of civilization and a clearer consciousness of their own worth forced the state to alter its constitution to a certain extent and to devote itself, at least theoretically, more to the

interests of its citizens than the service of its prince. The intellectual constructions of the eighteenth century correspond to no historical reality. The Social Contract, the inception of which J. J. Rousseau described so graphically, was never made. Hutcheson, who had expressed the idea long before the enthusiast of Geneva, conceived it only as the epitome of the principles which the state should embody; according to Hume, the relations of the citizens to each other and to the state are a tacit contract which need not be explicitly formulated, because it originates in human nature; and Fichte even assures us that Rousseau himself did not mean his Social Contract to be taken literally. According to him it was only an idea. But societies must act in pursuance of this idea, and they were founded, if not actually, yet legally upon an unwritten contract. Anyway, the ideas of Hutcheson, Hume and Rousseau have nowadays been assimilated by the general consciousness. The masses believe in the natural, inborn rights of man, some of which he certainly has surrendered in favour of the community; they demand and expect of the state that it should serve their just interests, and they are no longer ready to be made use of by the ruler and a powerful, often very small, minority, for purposes which are foreign to them, which they do not know, and for which they do not care.

Those who juggle with words, who talk dark and mysterious nonsense about the concept of the state, or dogmatize fanatically on the subject, contemptuously call this conception of the nature of the state and the relation of its citizens to it shallow rationalism, and from the heights of their supposed knowledge they look down disdainfully upon arguments which they libellously call the laymen's babble. They are only in part bumptious fools who pretend that uncritical, parrotlike repetition of traditional formulæ is erudition and confused thought is profundity, and who declare the clear-headed men who mock their silly mysticism, their superstitious dread of word phantoms, to be simply incapable of understanding their depth. Partly they are very sly toadies, very cunning sycophants of power, or ruthless egoists, unscrupulous freebooters, who pretend to be enthusiastic and devout apostles of the divinity of the state and demand the most humble submission, adoration and unconditional devotion in order that, as priests in its temple, they may grind their own axes at its altars.

Such are those folk who maintain the double thesis that the state is everything, the individual nothing, the former the sole reality, the latter

without any separate existence, and that the state, as mankind's highest form of existence, need recognize nothing as superior to itself, neither right nor law, and may therefore take as sole guide for its actions its own interests and not Morality.

You cannot maintain a single one of these contentions unless you and all men are deprived of reasoning power; they crumble away instantly in the light of Reason. It is not true that the state alone is real and that it is superior to the individual, not only because of the forces at its disposal, the complex of which it represents, but also as an entity, as a thought, a principle. The individual alone in the species, that is, living, feeling, thinking and acting man, is real. The individual created the state out of himself. He can also destroy it. The practical politicians above all people should be of this opinion; as he can do it, he may do it; as he has the power to do it, he has the right to do it. The individualist will not make this a question of law, but will simply assert that, though the individual is the father of the state, yet he has no reasonable grounds for destroying it, so long as it makes no murderous attacks on its creator. The individual did not create the state consciously, intentionally and formally by means of a social contract, but naturally and organically, under pressure of circumstances. It is clearly to his interests to maintain it, to furnish the necessary means for its existence and efficiency, but always on the one condition that the state should really protect and promote the interests of the individual, lighten his burdens in the struggle for existence, and make that prosperity, comfort and happiness possible which he cannot secure unaided in his struggle with the hostile forces of Nature and with rival fellow-men.

But if the state oppresses the individual with burdens and duties which he feels no inner necessity to fulfil, if it confiscates him, body and soul, instead of respecting his freedom and his right to self-determination, then the assumption falls to the ground; the state is no longer an institution which benefits the individual; it is inimical to the individual, hinders him in his struggle for existence, destroys his happiness; and he obeys his primitive instinct for self-preservation if he turns against it, masters it as he would a monster, draws its teeth and claws, and forces it back to the place it was meant to occupy, that of a docile and industrious servant of the individual, not of one individual who aspires to rule the others, but of all individuals who are of the people that make up the state.

I consider it unnecessary and a little ridiculous to quote authorities in support of the statement that twice two are four; what is reasonable and clear is convincing without further recommendation; nevertheless, it is a fact that may be worthy of mention that some of the best intellects of all nations have sided with the individual against the state. On the one side we have Plato, whose ideal is Sparta and who would like to see the despotism of this model state and its communal meals completed by the addition of community of property, of wives, and of children; we have Hegel, who has gone farther than any one in his idolatry of the state; we have Auguste Comte, who, in his zeal for his newly founded science of Sociology, conceives society as an organism biologically superior to the individual, and thereby has become the father of the Organicists. But against these we can put the Englishman, Jeremy Bentham, the embodiment of sound common sense, whom the muddle-headed fools that pose as deep thinkers have good reason to hate and fear, and whom they try to depreciate as vulgar and shallow; further, his compatriot, Herbert Spencer, who is his kindred spirit; the Frenchman, Frédéric Bastiat, whose writings sparkle with flashes of wit; the German, Wilhelm Humboldt, who bravely and successfully combated the state tyranny defended by Fichte. All these are convinced individualists who adduce irrefutable reasons for their views. We may also include Kant among them, as he gave utterance to this decisive sentence: "Man is his own aim and end, and must never be a mere means"; consequently it is never permissible to sacrifice the sovereignty of one's own person to that of the state, or make use of it for the realization of political aims by disregarding, and doing violence to, one's right of self-determination. Harald Höfding contends that progress should be measured by the extent to which, in Kant's sense of the words, man is recognized to be his own aim and end; but that is not only a measure of progress, it is the measure of all civilization.

For civilization, to my idea, means a state worthy of man, implying his mental, moral and material independence of all motive forces other than those of his own nature; its aim is the most complete attainment possible of this independence; its measure the extent to which the individual determines his own fate and is able to ward off from it undesired outside influences. At the first awakening of his consciousness primitive man was aware of being exposed to unknown forces which controlled him at will and

against which his will was powerless. From the very beginning, at first dimly and then more and more clearly, man has felt this to be unworthy and intolerable. The best of the species have always laboured with all their strength to liberate themselves, and the great ambition of man throughout his development has always been not submissively to accept whatever fate was accorded him, but to work out his destiny according to his needs and his own ideas.

The anguish caused by wretched dependence upon external forces is the origin of religion as of superstition, which both spring from the same root. With the anthropomorphism peculiar to the earliest stages of thought, man personified the mysterious powers which ruled his fate. He created gods for himself, and then, as far as his knowledge permitted, he sought some relation between himself and them, and tried to get at them by every means available. He imagined them like unto himself, that is, vain, capricious, greedy, easily frightened by dark threats, and then, very reasonably on this hypothesis, he importuned them with prayers, sacrifices, hymns of praise and vows, as well as magic formulæ and incantations, always with the inflexible intention of making them serve his purposes, not of serving theirs. The contrite Jewish prayer: "Thy will be done, Lord, Thy will, not mine," is a new trait in the religious thought of man. The heathen always strives to have his will done in opposition to that of the gods, and to divert them from their decisions if he dislikes them.

In a state of advanced development theological thought gave way before the scientific. Man learnt to conceive Nature's rule, not transcendently, but intrinsically. He recognized that the forces around him, which so often crossed his purpose, are not to be influenced by prayer and sacrifice, but that it is expedient and possible to discover their character and the conditions of their activity. By dint of long-sustained efforts he has succeeded in effectively standing up to hostile Nature and in warding off her undesired interference in his destiny. If the tribulations, which formerly suddenly brought his schemes to nought and often destroyed him, are not entirely overcome, it is merely because his practice does not conform closely enough to the directions evolved by his theoretical knowledge, because he is too careless or too clumsy to make proper use of the weapons against the elements with which science has armed him.

But this same man, who has learnt to be a match for Nature, his creator, is powerless against his creature, the state. He can neither evade it nor escape from it. The state disposes of him without his consent, against his most obvious interests, in spite of his powerless opposition; it hurls him hither and thither, annihilates him, crushes him by its will and is unmoved by the will of the individual.

True, man has sought to maintain his right of self-determination against the forces of politics, as against all others that broke his will and intervened in his life without his consent. For thousands of years all state development has tried to protect the modest individual, lost in the crowd and featureless, but nevertheless a person, that is, a world to himself, against the arbitrariness of rulers or leading statesmen. That is the one unchanging tendency which leads from Harmodius and Aristogeiton, the slayers of a tyrant, the rebellion of the elder Brutus, the murder of Cæsar, by way of the Revolt of the Netherlands and the execution of Charles I of England, to the great Revolution, the risings of 1848 and the struggle for constitutional government in all states of the Old World and the New. The formula has long been discovered whereby the individual can maintain the dignity of his sovereign personality and his own responsibility for the shaping of his destiny. It is civil freedom, constitutionalism, sovereignty of the people. There are arrangements, carefully thought out, nicely weighed, cleverly worked out to the smallest detail, by which the individual is fitted into his place in the community without being deprived of the management of his own affairs, by which the sacrifices needful for the fulfilment of collective tasks are exacted without his being reduced to a condition of slavery, by which the independence of the individual is safeguarded and yet a state of chaos and anarchy is avoided.

But this formula fares as do the doctrines of science: hitherto it has remained a theory everywhere. The franchise, representation of the people, responsibility of ministers, constitutional limitation of the ruler's power, are infallibly effective weapons or instruments, but no people has yet learnt how to handle them rightly. That is why pessimists speak of the bankruptcy of civilization, that is why the aim of civilization, the liberation of the person and the enforcement of its sovereignty, has nowhere been attained, that is why, to quote Napoleon I in his interview with Goethe at Erfurt, "In our times the power of fate is politics." And yet all these institutions of a

modern constitutional state, from the ballot-paper and the voting of taxes in Parliament to the enforced resignation of the ministry on a vote of censure and the oath of the ruler to observe the constitution, recognize the rights of the individual as opposed to the state, and at least theoretically give the lie to the bold declaration that the state is everything and the individual nothing.

It is no less untrue to say that the state is superior to Morality and is not bound by it. In order to prove this we need only be brave enough not to be intimidated by the mysterious mien and gestures and the dark, pompous phrases of the mystics who worship the state, and to penetrate to the real, conceptual idea of the word.

The hocus pocus that the worshippers of the state perform around their idol puts one in mind of Kempelen, who created a sensation with his automaton in the beginning of the nineteenth century. This figure, got up as a Turkish woman, gave rise to astonishment and, among not a few, to superstitious fear. It played chess, and so well, too, that it almost always succeeded in winning, even against its most skilled opponents. People cudgelled their brains to solve the riddle, all sorts of explanations were suggested, one more impossible than the other, but still the mystery remained dark, until the owner, having made enough money and sick of the part of an itinerant swindler, revealed the trick. In the hollow figure there sat a clever chess player who worked its hands and with them carried out the moves on the board.

This anecdote can be applied literally to the state. Simpletons, drunk with phrases, and cunning cheats contend that the state is a supernatural creation in which the "spirit of the universe," the "spirit of history" takes shape, and through which it realizes its aims; these aims, utterly transcending the understanding of the individual, are unintelligible to man. Such overwhelming phrases strike the simple, credulous hearer dumb and send cold shudders of awe up his spine. But let us look at the inside of this magic machine whose works are driven by the "spirit of the world" and with whose help this spirit fulfils its impenetrable designs. What do we find? Men, quite ordinary mortals, who sit in the machine and work its levers; men whose intellectual powers are only in rare cases superior to those of

their enslaved subjects bereft of will; men who are, as a rule, of average intelligence and not seldom even below the average.

These men are the rulers, ministers who cling to office, high officials, party leaders and professional politicians who would like to become ministers, generals who seek to make themselves conspicuous, publicists who hope to derive personal profit by dint of bowing and scraping before the men in power, by flattering the stupidest and most despicable prejudices of the masses, or even by implanting such prejudices with persuasive talk and purposely leading them astray. These men are formed on the same model as all individuals of the species and are therefore full of human weaknesses, a prey to all human desires, moved by all human impulses. They are selfish, vain, the sport of likes and dislikes, of self-deception as to the value of their ideas, opinions and judgments, disputatious, arrogant, greedy of possessions, power and pleasure, spurred by the instinct to magnify and swell their personality and impose it upon others. And these men are to be liberated from the discipline of the moral law? They are to be superior to the moral law?

For whom, then, was the moral law created and developed if not for these men—whose actions, although they spring from the same motives and aspire to the same satisfaction of self as those of all other men, can be fraught with consequences incomparably more evil, because they make use of the state machine for their purposes. Through the force and momentum given by the machinery of the state these actions are boundlessly augmented, their range being indefinitely increased and their results multiplied a thousandfold. The simplest logic shows that these men within the state machine, rendered so specially dangerous by their terrible armament and weapons, far from being liberated from the coercion of moral law, ought to be subjected to it with extraordinary severity, a severity which should be greater than that which suffices for the average man, in proportion as their power to do harm is greater than that of the man in the street.

Now all this time, rather carelessly, or at any rate weakly, I am making a concession to the pious devotees of the religion of the state, by speaking of the state machine,—a dubious expression, coined to deceive by rousing superstitious ideas. The phrase is a picture, a rhetorical figure that one must

be careful not to take literally. There is no state machine. There is only a relation of men to one another and to traditional habits, organized rules of command, obedience and equable conduct—habits into which the community of men has fallen in accordance with the law of least resistance, in order to promote their own interests, at least theoretically, without being forced to exert themselves continually to form new judgments, decisions and arrangements which the ever-shifting, ever-changing conditions of life render necessary.

Here again, behind the word, we find men, always only men. Just as those who command, from whose will all state action emanates, are men, so also the instruments by which they carry out their decisions are only metaphorically speaking, levers and wheels, parts of a machine of steel and iron; in reality they are officials, soldiers and policemen, they are judges and bailiffs; in short, they are men. And these men, who in all private relations with their fellow men are sternly required to submit to the dictates of Morality and the demands of the Law, are the same on whom other men, the leaders of the state, impose the duty of breaking all these precepts and laws; as ambassadors they must deny and dishonour the signatures to treaties; as leaders or paid servants of the press bureau they must systematically spread lies; as attorneys of the state they must persecute and maltreat those who tell the truth; as policemen they must tear the fathers of families from wife and children and hunt them into the barracks; as soldiers they must invade a foreign land, murder unknown and innocent men, rob them of their property, burn down their houses, lay waste their lands, in a word, do everything that is punishable with prison and gallows; they must perpetrate all crimes which the aim and end of Morality and Law are to prevent and condemn. If one defends such action, where can one find the courage and the justification to require these men at one time to honour the Ten Commandments and at another to disregard them, to be criminals in the name of the state in the morning and to be moral private persons and law-abiding citizens in the afternoon? After all, they only have one nature, one mind, one character and one set of perceptive faculties.

To realize the monstrosity of this doctrine of twofold Morality, public and private, and of the non-compulsoriness of moral law for the state, it suffices to refer again to the fundamental concepts of Morality. Individuals have banded themselves together in a community in order to be able to live more

easily, or to live at all, under the present conditions obtaining on our planet. Lest society should be disintegrated by the quarrels of its members, and the latter should find themselves exposed single-handed to a hopeless struggle for existence, a limitation of their unfettered whims and desires, the curbing of their selfishness, control of their impulses and the exercise of consideration for their neighbours have been imposed upon them.

This coercion is Morality, and society can enforce it by vigorous measures; but for the most part this is unnecessary, for society has inculcated in its members the faculty of urging upon themselves in every situation the dictates of the community and of insisting on obedience to them. This faculty is conscience. The means by which conscience, inspired and assisted by reason, determines the will to keep in check or to suppress organic impulses and inclinations, desires and appetites, is inhibition; moreover, the development and strengthening of inhibition does not alone promote the aims of the community, but is of the highest biological importance to the individual himself, apart from his relations to society, as it renders him stronger and more efficient, differentiates him more subtly, and raises him to a higher level of development.

Now the state is a special development of society; it owes its existence to the same necessities as the latter, its task is to minimize the struggle for existence for the individual, to protect him from avoidable dangers and to ensure the safety of his life, the fruits of his labour and that measure of freedom which is compatible with life in a community. But if the state puts an end to the coercion instituted by the community and therefore by the state itself; if it does away with Morality for itself, that is, for a number of individuals, be they few or many, that act in its name; if it allows selfishness, appetites and ruthlessness to have the same free play as with creatures of a lower order than man, or as with men before they formed themselves into communities; if in the pursuit of its plans beyond the bounds of Morality it intensifies the struggle for existence in a tragic manner, exposes men to the most terrible dangers, brutally destroys their liberty, gravely threatens their life and property or even devotes them to ruin—why, then it destroys the assumptions on which the state itself is based, denies its own aim, deprives itself of any right to existence, and the individuals have thenceforward but one interest, namely, to drive away this bogey of the state and with all possible means to force the men, who make

use of it and the superstitions clinging to it, to respect the moral law which the community has created to overwhelm anti-social, immoral individuals, to render them harmless and if necessary to destroy them.

One point there is on which the Machiavellian or practical politicians are particularly fond of talking nonsense, and that is the state's loyalty to treaties. Is the state bound by a treaty? Must it honour its signature? Must it perform what it has undertaken to do? The detestable, unanimous answer is "No. A treaty cannot hinder the state from doing what its interest demands." Prince Bismarck is often cited on this point, as he once said: "The only sound foundation for the state is state egoism." And another time: "A treaty is only valid *rebus sic stantibus*, if the situation is the same as when it was concluded; if the circumstances change, it becomes invalid by the very fact." Such views are revolting, however great a name be appended to them. Contract, or treaty, is the basis of the law. Whoever breaks it is dishonoured, and doubly dishonoured is he who from the beginning enters upon it with the idea at the back of his mind of deriving every possible advantage from it and of breaking it when the time comes to fulfil obligations.

The phrase, "sound egoism," whether it refer to a private person or to the state, must make every decent man blush for shame. Egoism may be sound, but it is always the contrary of moral. It is just as convenient for the individual as for the state to think only of his own advantage and unhesitatingly to sacrifice his neighbour's rights to it; but Morality arose and was constituted a rule of human relations in order to break the back of this selfishness and to teach man consideration for his neighbour. It is no valid excuse to say that state egoism is no sin, but a virtue and a merit, that it is different in character from the egoism of the individual. That is not true. It is not different in character. It is of exactly the same character as in private life. The responsible leader of the state who is guilty of a breach of treaty makes believe to himself and others that he does not do it for his own sake, but in the interests of the state. But who is the state? I have already given the answer to this. The state consists of men, the interests served by a breach of treaty are those of men, not, as a rule, of all, not even of many members of the state, but of a few, of a class, a group, perhaps of only one family whose power, wealth and reputation it is intended to increase. So-called state egoism is in actual fact the private egoism of many individuals, who break the law, or tolerate and condone a breach of the law, for the sake

of pocketing ill-gotten gains; and no one is so stupid as to let himself be bamboozled into believing that the shameful crime of breaking a treaty for the purpose of "sound" egoistic grabbing becomes moral when it is perpetrated not by one individual but by thousands or millions of individuals.

The *reservatio mentalis*, too, of "*rebus sic stantibus*" is an unwarrantable and wicked reservation. Nothing prevents a decent man when making a contract from adding a clause reserving the right to terminate it if the essential conditions should change. If the other party to the contract does not agree to this, well, then the contract cannot be concluded. But to sign it with the mental reservation that one will disavow one's signature if the obligations undertaken become irksome, that is swindling. There is one consideration so simple that it is inconceivable that those who break contracts do not realize it. In some concrete case the leader of the state judges it to be profitable to the state to disregard good faith. What guarantee has he that his judgment is right? He is a man, and no man is infallible. But all mankind have made good faith the foundation of their life in communities, and if a single man has the temerity to draw a conclusion violating the immutable convictions and doctrines of all mankind, he must be mad not to see that most probably he is wrong and that all mankind in every age and every clime is right. I have left out of consideration the fact that any possible advantage arising from the breach of faith would not excuse him morally, and setting aside the ethical aspect of the case, I dwell only on the logical argument.

There is one case and one only in which a contract is not binding, either on the state or on the private individual, and that is when the signatory was forced to enter upon it with a knife at his throat. Obligations which a victor imposes on his defeated and disarmed opponent are by their very nature invalid. The old cry of Brennus: "*Vae victis!*" is might and cannot constitute a right. Civil law calls this kind of thing compulsion and decrees that it invalidates any contract. Only a pedantic mind, stupid and depraved, immersed in hair-splitting trickery and incapable of a straight thought, could complacently maintain in the face of all common sense that might and compulsion, far from doing away with right, are the source of all right. The silly formula coined for this is: "Might is right." Might may be a fact, but it is not right. The source of right is not might but Morality, which

might disavows and destroys. The necessary condition of any obligation which is to be valid is freedom. Kant proved this, but his proof was unnecessary, for it is self-evident. A forced treaty is no treaty, for it is the victor's fist which has guided the hand of the vanquished, and it is he who wrote the latter's signature under the document. The will, the consciousness of the seeming signatory were absent at the time.

But the worst and most immoral action of the state, beside which a breach of treaty for selfish reasons pales to insignificance, is the war of aggression for purposes of profit, that is, for the conquest of territory, extortion of money, increase of power, or fame. War is the quintessence of all crimes against life and property, against the body and mind of a person, the prevention of which is the aim and object of all Morality and all laws derived from it. Any means are permissible whereby this wickedness may be prevented; the war of defence, waged by the party attacked, is not only justified but sacred, as are the functions of the institutions that society has developed to hunt down and punish those who do not respect Morality and Law. And just as it is the duty of every society to maintain courts of justice, police and prisons, so it is the duty of every state to be well armed, well versed in the use of weapons and strong, so long as it must count on the fact that there are practical politicians who do not recognize Morality as binding the state, and nations that are ready on the first hint of their leaders to perpetrate every crime that conscience, the Ten Commandments and penal law forbid.

It is idle, in my opinion, to discuss the question whether war will ever disappear from the world. It serves no purpose to contradict those who declare it to be eternal. It is possible that it will continue to exist as long as there is vice, sin and crime; and I do not believe that these will ever be completely exterminated. Among mankind there will probably never be a lack of sick and depraved people whose selfishness is monstrously exaggerated, whose instincts urge them with stormy violence, whose powers of inhibition are scantily developed or altogether wanting, who suffer from anæsthesia of the feelings and are therefore incapable of any sympathy with their fellow men and who are mentally too weak to foresee the results of their actions. Individuals of this kind are born criminals whose existence society will probably never be able to prevent and against whom it is obliged to protect itself. Now war arises from the same psychic

conditions as the antisocial actions of these born criminals, and therefore the pessimists may be right in maintaining that it can never be abolished. But it is one thing to assert the existence of a deplorable fact and quite another to glorify it. To say that war is a part of the universe constituted by God is blasphemy, even though the saying emanates from Moltke. To extol war ecstatically and to sing hymns of praise to it, to declare that it evokes the highest virtues of man is a panegyric of crime, a thing anticipated and punishable in the penal code.

I am not here attempting to solve the problem of what practical measures can be taken whereby right may be set in the place of might in inter-state relations, and instead of ruthless selfishness, Morality, that is, self-control, consideration and respect for the just claims of one's fellow men and love of one's neighbour. That is as far beyond the scope of this work as is the investigation of the methods of education, criminal justice, police organization or prison conditions intended to deal with the tide of crime and to stem it as far as possible. I am concerned with moral philosophy, and from that point of view I show that all Morality is rooted in the desire of men to live together peaceably in a society, to have greater security of life and property, greater possibilities of happiness, and that the same needs must impose the rules of Morality upon states in their relations to one another. According to Hobbes the primitive condition of mankind is that of a war of every man against all other men, and only the creation of society makes an end of it. But if the state unleashes the dogs of aggressive warfare it hurls mankind back into its primitive condition and destroys the work it was created to do. The Stoic Seneca says: "*Homo sacra res homini*," "Man is sacred to man." The practical politicians who praise war repeat with Hobbes: "*Homo homini lupus*," "Man is a wolf to man." The moral man demands a return from Hobbes to Seneca. If it has been possible in the state to tame the wolfish instincts of the individual and to make him bow down before Custom and Law, it must be equally possible to do so in the relations of states to one another. He who denies this in principle disavows Morality altogether, not only for the state but also for the individual; he who admits it in principle but in practice scornfully disregards it is a bandit, and it is desirable to treat him like any other robber and murderer who, to satisfy his wolfish appetites, tramples on Morality and Right and acts like a wild beast.

To this, however, the Moralist will object sadly, and the practical politician with scornful superiority, that the state has created institutions for suppressing the bandit, but that there are none such to control bandit states, and that self-defence alone, the only means of self-protection for man in Hobbes's primitive condition, can gain a footing between them. Clearly only the party attacked is in a state of self-defence, but the bandit who has a sufficient sense of humour to play the pettifogging lawyer can always maintain that attack is also self-defence, the preventive form of self-defence. The answer to this is: if society has managed to provide judges and police in order to secure peace, then mankind will for the same purpose learn how to provide courts of justice and a police force to deal with the bandits of practical politics who endanger peace among nations. But that is a practical question, not a theoretical one, not a principle of moral philosophy. The latter shows irrefutably that there is only one Morality, not a private one and a public one which is its negation, not one kind for the individual and another for politics, for the state.

He who defends the thesis of a twofold Morality merely shows that he does not possess simple Morality.

CHAPTER VI

FREEDOM AND RESPONSIBILITY

Theological thought is faced with a problem in ethics which presents the greatest difficulties. It is the problem of Free Will.

Is man who perceives, judges, has volition and acts, a free being inwardly? Can he, guided only by his own reasonable thoughts and conclusions, determined entirely by his own inner impulses and uninfluenced by outer circumstances, choose one or the other of two conflicting possibilities? When he has to make a decision, is he always like Hercules at the cross-roads who has to make up his mind alone as to which path he shall take, whether he is to follow quiet, modest virtue, or alluring, voluptuous vice? Does he do evil because he willed to do so and not otherwise, although it was in his power to avoid it? Does he decide for the good, because after due investigation and consideration he recognized it as preferable, though he might have rejected it? Or is man always subject to coercion from which at no time and no place he can escape? Are all his actions determined by the law of Nature which regulates every one of his movements just as mechanically as the course of the stars or the fall of a body to our earth when its support is removed? Is he an automaton, set going by cosmic forces, who possesses the doubtful privilege consciously to be able to follow the turning of his wheels, the action of his levers, rods and indicators and to listen to their humming and knocking without being allowed to interfere in their movements or to change the least thing in their functions or work? Is he fettered by the chain of causes which have existed eternally and continue to act immutably to all eternity?

Theological thought is condemned to find an answer to the question of freedom or determinism, as it is the necessary condition for the essential concepts of the theological doctrine of Morality, that is, the concept of responsibility and those consequent upon this, namely, sin, reward and punishment. For the true believer God is the source of Morality. He Himself is Morality. What He ordains is good in itself and cannot be otherwise, for

there is no room for evil in His nature, since if He could be conceived to do evil, it would by the very fact of His doing it become good. A man, to be moral, must approximate to the nature of God as nearly as it is granted to mortals to do. The moral law is revealed by God's mercy to give man a light which shows him the right path and lights him on his way. Thanks to Him the poor mortal is relieved of the incertitude due to his limited mental powers and is endowed with the priceless possession of a certain precept which he need only obey in order to be sure of salvation.

However, granted the correctness of this assumption, it is not comprehensible how evil came into the world. It contradicts all attributes with which faith has endowed the deity. It cannot appear without God's knowledge, for He is omniscient and nothing is hidden from Him. It cannot occur against His will, for He is omnipotent and nothing resists His bidding. But least of all can it rage with His knowledge and consent, for He is infinitely good and therefore does not permit his creatures to fall victims to evil. But experience teaches us that evil has a permanent place in human life, and this forces one to the conclusion that either God is hard and cruel, and therefore not infinitely good and not Morality itself, or that He has no knowledge of evil and therefore is not omniscient, but, on the contrary, blind as well as stupid, or that He sees the evil but cannot prevent it, and therefore is not omnipotent and must recognize the existence of higher powers than Himself against whom He is impotent.

These terrifying conclusions have not escaped the notice of the devout, and they have always made the most desperate efforts to evade them. Some have chosen the easiest way out of the difficulty; they close their eyes before the yawning abyss, fold their hands devoutly and invent pious phrases about the inscrutable ways of Providence and its infinite wisdom, which the weak intelligence of mortals cannot grasp. Others take infinite pains; in the sweat of their brow they with difficulty evolve tortuous and hypocritical explanations, which in reality explain nothing, but in a mind which lends itself willingly to them give rise to the illusion that the contradiction has been solved. Perhaps the most astounding piece of work accomplished by this miserable juggling, or this delusion of self by means of an exuberant flow of words, is presented in the four volumes of the "Théodicée," by which Leibnitz made himself a laughing-stock. Mazdeism has invented an alluring but at the same time risky expedient. It lightly

assumes that two principles obtain in the universe, a good one and a bad one, the creator and the destroyer, the merciful God and the cruel demon, Ormuzd and Ahriman. In this way everything is easy to understand. Good is the work of radiant Ormuzd, evil the deed of dark Ahriman. The two fight together with very nearly equal forces, but this doctrine reveals the comforting prospect of a distant future in which Ormuzd shall finally triumph over Ahriman, and fills the trembling believer with elation at the thought that after æons of the tragic struggle between good and evil, at the end of the world the curtain will fall on the victory of good. By this victory Mazdeism, which claims to be monotheistic, rescues its single god, although the introduction of a second principle of very nearly equal power, which holds the one god in check for an immeasurable period of time, brings this system perilously close to polytheism.

To the purer monotheism of Christianity there is indeed something repugnant in the assumption of a second, opposite principle of almost equal power, but yet it has admitted the existence of the devil, who is undoubtedly reminiscent of Ahriman. Only he lacks the independence of the Mazdean demon. He is not on a footing of equality with God, but is subject to Him as is every creature. He is not strong enough to oppose God and can only do evil because God allows it. But why does He allow it? Why does He tolerate the devil? Why can the latter proceed with his evil work with God's consent? To this theology gives a crafty answer which Goethe has clothed in the glorious beauty of inimitable poetry. God has assigned to the devil the task of tempting man with all the arts of seduction in order to give him the opportunity of testing and developing his moral strength in resistance, of purging himself, of attaining purity and salvation by his own efforts. In short, he exists in order to give man a sort of Swedish gymnastics in virtue. The struggle is not quite fair, for the devil is held by a halter and is pulled up if he gets too big an advantage, and man is always assisted by redeeming mercy, a hand being stretched out to him from the clouds which sets him on his feet as often as he stumbles. But theology is not bound by rules of sport. That is how the picture of the universe is presented in "*Faust*." But he who painted it is the same Goethe who on another occasion angrily complains: "You allow man to become guilty—and then leave him to his suffering." Does the divinity allow man to fall a victim to evil without turning it aside from him? Does he only try him in order mercifully to rescue him at the

moment when he is about to succumb? Goethe does not answer this question without ambiguity. That is not his business either. He may contradict himself. He is a poet who is allowed to express contradictory views. He is not a theologian whose duty it is, by means of a definite dogma, to support those who totter in doubt.

All these attempts to reconcile the attributes of the deity with the fact that there is evil in the world which continually leads man into danger, emanate from the explicit or tacit assumption that man possesses Free Will. For if his will is not free and he does evil, then he does it because he must and because he cannot do otherwise. But this must can only come from the deity who is almighty; it is the deity who condemns man, who forces him to do evil. Man therefore does evil as God's tool without volition; therefore, as a matter of fact, it is God Himself who does evil. But if God is capable of doing evil He is not Morality itself, or every distinction between good and evil is destroyed, and we must recognize what seems evil to us to be just as moral as what seems good, because the one is as much the work of God as the other. But if this is admitted, and it is logically impossible not to admit it, then the whole foundation of transcendental, that is, of theological, ethics breaks down. The latter is therefore forced, on pain of suicide, to maintain that man has Free Will.

But with this assertion theological ethics by no means disarms all the objections which threaten its life. Renouvier's book on Free Will is probably the most thorough and exhaustive work on this subject which has been treated by thousands of thinkers and not a few babblers since the time of the ancient Greeks, and he describes it as follows: "Will is free and spontaneous if Reason cannot foretell its untrammelled action at any time other than that at which it actually takes place." Renouvier makes no limitation and no reservation. He does not say, "if human reason cannot foretell its action," and this omission of the particularizing adjective is not carelessness or a mistake on his part, it is duly considered; for the prudent dialectician knows very well that he would ruin his theory of Free Will if he only maintained that human reason alone should be able to foretell its action. There are many happenings which human reason cannot foretell, and which nevertheless obey immutable laws and take place according to absolutely fixed rules without the exercise of any inner freedom or authority on the part of the individual. If human reason cannot foretell these happenings, it

is not because no external force of the universe determines them and they are entirely spontaneous, but simply because the laws controlling them are unknown. Therefore the impossibility of foretelling them is no proof of their freedom, it is only a proof of the ignorance of the human mind. There was a time when no human intellect could foretell the occurrence of a solar or lunar eclipse. Was that because the heavenly bodies act freely and are eclipsed only at their own spontaneous desire, when and how they please? No, because man had not discovered and comprehended their movements. To this very day we are unable to foretell the weather on a particular day next year, or the result of the next harvest, or an earthquake. Does this prove the freedom, the absolute independence of these occurrences? No; it only proves the inadequacy of our knowledge. Renouvier therefore would achieve nothing for his theory of Free Will, if only human understanding were to be unable to foretell the actions of the Will. That is why he does not say "human reason," but simply "Reason." The essence of Free Will is that its actions altogether shall be incapable of being foreseen; it is not in its nature to act in accordance with some predetermination which must necessarily reckon with outer circumstances and given forces; and the impossibility of foretelling its actions exists not only for human Reason but for every Reason—for Reason in general.

For every Reason and therefore for the divine Reason as well. And now theological ethics must find a way out of this dilemma: either God does not foresee the decisions of free human Will, then this is a denial of his omniscience, that is, of one of His essential attributes; or God foresees the decisions of free human Will, then this is a denial of the Freedom of the Will, the essence of which, according to Renouvier, lies in the fact that it cannot be foreseen. For this impossibility of being foreseen is indeed the quality by which Free Will stands or falls. Let us realize the significance of this concept. Nothing can be foreseen which will not with certainty occur. But whatever at some future time will become a reality, must even now be virtually a reality for an omniscient Reason not bound by the human categories of time and space, since for this Reason neither proximity nor distance exists, but everything is on one plane, and there is no future or past, but everything is present. So if the divine Reason foresees now how the free Will of man will act in the future, that is equivalent to saying that this free Will is forced to act in the particular way which God foresees and

not otherwise. Therefore the Will is not free but, on the contrary, strictly bound. It is obliged to make the event foreseen by God a fact, as God can only foresee what must certainly come to pass, and a foreseen event that does not happen would mean a mistake, a false assumption, of which one cannot believe God capable without denying Him. This apparent free Will is coercion at sight. As its action is foreseen by God, the Will is subject to the law of fate, but a period of delay is granted. Every movement of the supposedly free Will becomes a part of the order of the universe which has been unalterably laid down from eternity, and which the human Will cannot upset without burying God in the ruins. Man may imagine that his Will is free. But that is self-deception, and he can only indulge in it because what God sees clearly is hidden from him, namely, the goal towards which, though he does not realize it, he is inevitably led along strictly defined paths by the iron hand of fate.

It would be unjust towards theology to say that it has never seen the incompatibility of Free Will with divine omniscience. This has not escaped its notice, but it has attempted by the use of familiar formulæ to get out of the difficulty. In his book *De libero Arbitrio* Saint Augustine stoutly maintains that the human Will is free, but he tries to rescue the attributes of the deity by reserving to it the right or the power to intervene by its mercy in the actions of the Will, if in its freedom it comes to a decision which endangers the salvation of the soul. Saint Thomas Aquinas takes good care not to differ in opinion from the Bishop of Hippo. The reformers, Calvin, Luther and Bishop Jansen, too, were better logicians than the patristic writers, and unhesitatingly denied the freedom of the Will, but they did not notice that they made God responsible for all the misdeeds of man, lacking freedom and acting with God's foreknowledge and at His behest. The Council of Trent scorned all these contradictions and unintelligible points, and declared with infallible authority that man's Will is free and that at the same time God is omniscient. The Catholic Church at the time was in some countries still in a position to meet Reason, if it raised objections, with an unanswerable argument: the stake.

That is the peculiarity of theological as distinguished from scientific thought, the purest form of which is mathematics. The former never follows a train of thought to its strictly logical conclusion, but only follows a certain distance, to a point where it loses itself in an impenetrable black fog, or in a

cloud of glory which dazzles the beholder. Mathematical thought, on the contrary, develops the train of thought to the bitter end, to its ultimate conclusions. These are necessarily absurd if the premises are erroneous, and their absurdity is so clear that it convincingly proves the mistake in the point of departure. Such a scrupulous confutation of self is to be expected as little from mystic visions as from arrogant dogmatism. The former obey the laws of dreams, in which the association of ideas, unfettered by logic, holds sway and strings together the most incompatible ideas to form an apparently connected series; the latter demands the privilege of being independent of the judgment of Reason, and of being tried by Faith, a judge who always decides in its favour.

Those who believe in Free Will adduce a proof of it which they derive by the method of introspection. Man, they say, will never be convinced that he is not free, that his actions are not determined by his own will alone, for he has the incontrovertible consciousness of the contrary. He is quite clear on the point that he does a thing because it is his will to do so, that he had the choice of doing it or not, that he does what he wants, that he comes to his decision owing to considerations, inclinations, moods or intentions which are perfectly known to him, if to him only. At the Sorbonne in Paris they still remember the professor—when the anecdote was told me Victor Cousin was named as the hero, but I cannot guarantee that it was he and no other—who used to say in his lecture on Free Will: "Man's will is free. There is no need to prove this by giving reasons. We feel it immediately as a truth. I will show you. I will raise my right arm. I raise it"—here he raised his right arm with a commanding gesture, kept it for a short time in this position, and added triumphantly: "You see that my will is free." His hearers broke into enthusiastic applause at this triumphant demonstration. To-day they would receive it with loud laughter.

We have learnt to seek the roots of most, perhaps of all, human actions in the subconsciousness. There they are worked out under influences which cannot be perceived by introspection and in which inborn and acquired inclinations, experiences, organic conditions at the time, instincts, attractions and repulsions play a decisive part. They rise ready made into consciousness, and the latter, not having seen them being formed, persuades itself that it has produced them spontaneously, and imagines reasons why it willed to do actions that were determined outside its sphere. The professor

who authoritatively states, "I wish to raise my right arm and therefore I do it," certainly says this in all good faith, but equally certainly he is ignorant. He is not aware of the play of forces which end in his gesture. He raises his right arm, which he believes he chooses with complete freedom, because he is in the habit of using his right arm by preference; if he had been left-handed he would have announced his wish to raise his left arm, and would have been equally convinced that he had decided, with complete freedom, for his left arm. If he suffered from chronic muscular rheumatism in one of his arms, so that it would trouble him or hurt him to move it, he would unconsciously choose the other, sound arm, and maintain just as positively that he had done so with complete freedom. I have mentioned as instances two particularly crude and therefore very obvious reasons which may determine the action of this simple-minded professor without his being aware of it. But each one of our more complicated, and even of our simplest, movements is the outcome of numberless subtle causes which are partly due to the organized experiences and habits of our individual life, partly a necessary consequence of our inherited qualities, our bodily and intellectual constitution, and their origin goes back to the far distant past of our species, to the beginnings of life, we may even say to eternity. Our consciousness can tell nothing of these causes. They elude our observation and investigation and remain ever unknown to us. Renouvier is quite right when he says no understanding—and I say without his ambiguity no human understanding of the present time—can foretell the actions of another, nor indeed his own, but not because they come to pass independently of inevitable causes, but simply because these causes cannot be described by our ignorance.

It is vain labour to try and derive the solution of the question of Free Will, or even a contribution towards it, from introspection. It is a method unsuitable for this purpose. The Greek sage well knew what a great and difficult task he set man when he admonished him: "γνῶθι σεαυτόν." That is easy to say but difficult if not impossible to do. Spinoza very happily characterized the self-deception in which the individual is plunged with regard to the part played in determining his actions by his conscious Will aided by Reason; he says that if a stone, flung by some hand, had consciousness, it would imagine it was flying of its own free will; and in another place he points out without any illustrative metaphor, that a drunk

man and a child, who certainly do not act on their own initiative, also believe in the freedom of their will. It has been possible to prove experimentally how ignorant of the real motives of his actions the individual may be. It is suggested to a person who has been hypnotized that on awakening he is to carry out a certain action, something particularly absurd, unjustified and aimless being intentionally chosen. The subject of the experiment on awaking faithfully carries out the suggestion, and as he has no memory of what happened while he was in the hypnotic state, he is convinced that he is yielding to a sudden idea, a whim, but that in any case his action is determined by his own will. But since he must realize the absurdity of what he is doing, he seeks for some sufficient motive to explain it, and always finds one to his own satisfaction.

All the efforts of anguished sophists to prove their thesis of the Freedom of the Will from data supplied by introspection have failed miserably. But they were forced to undertake them, for theology cannot give up the contention that man acts with free Will. It is an important part of the religious conception of the universe and of the relation in which, according to this, man stands to God.

To put it shortly, religion sees in man's life on earth a preparation for eternity. It gives him the opportunity of coming nearer to God by his own efforts and thus making himself worthy of the salvation which secures him a place in the sight of God to the end of time. Thus the life of the flesh is made a method of selection by which the sheep are sundered from the goats. God provides man with free Will for this special purpose, so that he may make use of it to choose good of his own accord and to avoid evil. This undoubtedly wearisome task is made much easier for him, because God in His goodness has given him laws, doctrines of Morality and examples which point out the way of salvation. If man makes proper use of his gifts, if in pursuance of divine admonition, he treads of his own free will the path of virtue, he acquires merit which gives him a legitimate claim to the reward of finding favour in God's eyes and to be admitted to the company of the just and pure. But if man purposely turns to evil, of which he is warned by revelation and which he has been given the power to avoid, then he is a sinner and deserves the punishment of damnation, which, however, he may yet escape if God in His mercy forgives him his sin. Therefore man holds in his hand the fate of his immortal soul. It depends on him whether

this fate be salvation or damnation. He is responsible for directing it to the former or the latter. Of course, God has the power to force him to virtue and to stop him from vice. But it is not His plan to condemn man to be the slave of virtue. He wants man to choose virtue of his own accord, He wants noble souls about Him who by freedom have attained Morality.

This religious view of the universe, which deals in assertions and disdains on principle to prove even one of them to Reason by facts that can be tested, contrasts with the scientific view of the universe which asserts nothing but what can be objectively ascertained to be true, which distinguishes sharply between the account of what has been observed and can be tested by everyone and hypotheses for which it demands no belief, but only the recognition of their possibility or probability, and which it discards as soon as an ascertained fact definitely disproves them. No compromise is possible between these two views of the universe. Nothing can bridge the chasm between them. It would be superficial to say that the theme of the scientific view is realities and that of the religious one imagination. Imagination is also a reality, only of a different order to that which is called so in common parlance. It is a subjective reality; it exists only in the mind that conceives it. Reality itself is for the thinking mind only a state of consciousness, but it is an image of conditions which have an objective existence, though in another form, outside the consciousness. The supporters of religion maintain that there is an objective reality corresponding to their concepts, but this cannot be ascertained by any of the senses which the living organism has developed in order to establish a relation between the world, of which it is a part, and itself. It is perfectly useless for supporters of the one view of the universe to try and convince those of the other. Each of them moves on a different plane and is unapproachable to the other. All that can be done is to define both the one and the other as clearly as possible and prove their incompatibility.

For the scientific view of the Universe the problem of Free Will does not exist and cannot exist. All facts that science has observed force it to the assumption of causation, which does not only mean that every phenomenon is produced by a cause, is the effect of a cause and could never have occurred but for this cause, but also means that the effect represents the exact equivalent of the energy which was its cause. Thus the hypothesis of the indestructibility of the total energy in the universe is an essential part of

the concept of causation, the fundamental hypothesis without which the phenomenon of the universe and the things which occur in it are simply unintelligible to Reason; and everything in and outside ourselves, everything that we perceive, becomes chaos, chance, lawless whim or miracle in the theological sense of the word.

It is inconceivable that an effect should be anything other than the reappearance in a different form of the exact quantity of energy that caused it; for if the energy of the effect exceeded that of its cause, then part of the effect would have been produced without cause; and if the energy of the effect fell short of that of the cause, then part of the energy of the cause would have been expended without producing an effect. That, however, would be the negation of causation, it would be an admission that part of the effect (i.e. an effect) could be produced without sufficient cause, i.e. out of nothing, and that a part of the cause (i.e. energy) could disappear (into nothing) without producing an equivalent effect, which is obviously absurd.

The human Will manifests itself by an action or the prevention of an action according to the impulse felt by our organism. Both these are an exercise of force, the amount of which can be measured. Indeed, inhibition, too, is a dynamical effort which represents the exact equivalent of the force with which the impulse which it has checked acted on the motory centres. The Will, therefore, expends energy which does work that can be measured. But the Will must derive this energy from some source. It therefore also only converts energy derived from the energy of the universe, the total amount of which can neither be augmented nor diminished; the Will consequently is a part of the dynamic energy of the universe, and must necessarily be subject to its mechanical law; that is, to the law of causation. It is therefore not free, but dependent, as is every phenomenon in the universe. Whoever maintains its freedom maintains that it is independent, that it is not subject to the law of causation, that it has no cause of which the elements, if they could be fully known to us, would be measurable, that it expends energy which it derives from nowhere, that it produces energy out of nothing. Whoever maintains this contradicts all experience from which the knowledge of Nature and her laws has been built up; it is obviously hopeless to expect a reasonable discussion with such a person.

Now the supporters of free Will may reply that they do not deny that the Will derives its energy from the organism and therefore from the universal source of cosmic energy, and that it makes use of it according to the laws of mechanics; but they assert that the direction in which energy is expended by the Will is freely determined by it; further, that the direction does not affect the amount of energy used, and consequently the Will can act absolutely in accordance with the mechanical laws of the universe and yet can, independently of outside causes, determine the manner in which the energy shall be expended; that is to say, the Will can be free. But this objection is pure sophistry, for the determination of the direction, in so far as it is not mere imagination and therefore ineffective and sterile, but really controls the action, is an expenditure of energy. The controlling power uses up energy and obeys a cause, so we have arrived at the same dilemma again—either the controlling Will is subject to the law of causation, then it is not free; or it is free and is determined by no outside cause, then we must ascribe to it motion without driving power and energy derived from nothing—which is absurd.

No. There is no such thing as Free Will. The concept of freedom itself is an illusion of thought which cannot survey sufficiently extensive connexions. Nothing in the universe is free; all things mutually determine each other. All are cause and effect, and they fit into one another like cog wheels. Everything is linked up and dovetailed. The philosopher's phrase, "Everything is in flux," is the description of the outward appearance of things. Against it we must set the reality which is: "Everything is eternally at rest." For a circumscribed system of motion without beginning or end may mean motion for every individual point which describes the course, but is, as a whole, virtually at rest. Everything that exists, or ever will exist, has its necessary and sufficient cause in that which has always been; the sequence of phenomena has been unalterably determined since all eternity for all eternity; what we call chance is an occurrence for which our ignorance cannot perceive the necessary causes and conditions; past and future would be in the same plane, therefore would be present for an omniscience, which knew and understood the machine of the universe down to its smallest wheel and pin.

One of the logical consequences of this is that, without any miracle or the assumption of any supernatural influences, it would be possible to foretell

the most distant events in all their smallest details. An intelligence sufficiently wide and penetrating would, following the strict law of causation, be able to produce all lines of the present with absolute certainty immeasurably far into the future. As everything that ever will be necessarily must be, it virtually exists at present and has always existed; therefore it is only a question of clarity of vision, which however, is denied to man, to see it at any time and to any extent.

The illusion of flux is explicable. Life, which like all world processes is a cyclical motion, is passed in an endless alternation between the shining forth and extinction of consciousness, the bearers of which are an everlasting series of organisms following one another. Every organism lasts a limited time, during which it is carried along an inconceivably small fraction of the tremendous cycle. It sees all the points of this short stretch but once, and does not learn that they are eternally the same. It gathers the false impression that they fly past it, whereas they are at rest and it passes them, until it ceases to be a suitable bearer of consciousness and disappears, making room for a successor. This rigid immutability of the whole Universe is certainly intolerably gruesome to the imagination, but then, every time we look beyond the narrow confines of life and human circumstances, to peep into the infinity and eternity which surrounds us, do not terrifying vistas open up before us?

Not only the religious minded, but many free thinkers, too, have Free Will at heart, though the latter are otherwise guiltless of any mysticism. They claim it in the name of man's dignity, which would be deeply humiliated if we had to confess ourselves the slaves of outside influences, automata moved by universal causation without our having any say in the matter. We are not entitled to such trumpery pride. Let us seek our dignity in our striving for knowledge, in the subjection of our own instincts to the control of our Reason, but not in an imaginary independence of the laws of Nature, whose commands we should oppose in vain.

With Free Will responsibility also disappears. That is obvious. But that means a collapse only for theological Morality. Scientific ethics can manage very well without responsibility. Nay, more; there is no room in it for this concept. In the system of theological Morality responsibility has a transcendental significance. To sum up once more shortly what has been

dealt with in detail above: according to this system Morality is a divine command, obedience to, or disregard of which results in salvation or damnation; in order that reward and punishment may be just, one as well as the other must be merited; that implies the assumption that virtue is practised or vice chosen intentionally and with forethought; but this mode of action must be freely willed if man is to be responsible for it before his divine Judge.

Scientific ethics knows nothing of this supernatural dream. In its view Morality is an immanent phenomenon which occurs only within humanity—or to define it more accurately, within humanity organized as a society. It arose from a definite necessity; from the undeniable need of men to unite, so as to be able, in company with one another, shoulder to shoulder, to succeed more easily, or indeed to succeed at all, in the struggle for existence which is too hard for the solitary individual. It has a clearly recognizable aim: to teach man to curb his selfish instincts and to practise consideration for his neighbour, by which means alone peaceable life in common and productive co-operation are possible. The instinct of self-preservation supplies society with the laws of Morality which it imperiously imposes on all its members, and unconditional obedience to which it demands. Society does not dream of saying to the individual: "You are free; you must yourself decide whether you will follow the path of virtue or that of vice." On the contrary, it says to him: "Whether you wish it or not, you must do that which my doctrine of Morality indicates as good and eschew that which it declares to be evil. You have no choice. I tolerate you in my midst only if you submit to the laws of Morality. If you transgress them I shall draw your teeth and claws or destroy you altogether." By discipline lasting many thousands of years society has developed in the individual, though not in all, an organ that watches that his conduct is moral, and this is the conscience. But this is only supplementary to, and representative of, society, which in the main exercises police supervision itself, and sees that in general the moral law is obeyed. It judges all the actions of the individual that come to its knowledge. Conscience only is the competent authority where occurrences are concerned which take place simply in the consciousness of the individual, and which he alone is aware of. Conscience is only too often a lenient judge who acquits the individual too easily and nearly always admits extenuating circumstances. Society does not let him

off so lightly; his punishment is certain if he cannot prevent his sin from becoming known.

Responsibility therefore also exists in Morality as understood by sociologists. As far as his intentions are concerned the individual must come to terms with his conscience, which, as a rule, he does not find difficult. For his deeds he must account to society, and it does not ask what took place in his consciousness, but only how his spiritual impulses were manifested. For his deeds, then, he is summoned before society's court of justice and must answer for them without having recourse to the excuse that he acted as he was forced to do by his disposition and the pressure of circumstances, and that he had no choice and could not act otherwise. Though Morality has always been necessary for the life of the community, and though the latter has, under the pressure of the law of self-preservation, always had to make its members strictly subservient to Morality, it has ever had a dim idea that the responsibility of the individual for his actions is only of practical, not of fundamental or ideal significance. It has never pushed investigation as to how far the individual acted freely or not to any great lengths, never attempted to trace it to the foundations of his consciousness, to the inception of the impulses of his Will. Where the lack of freedom was obvious, for instance, where every layman could see there was insanity, the Moral law has been disregarded ever since ancient times, and society has contented itself with protecting itself from the intolerable actions of the lunatic by rendering him harmless. Since positive Law, made concrete in the laws with penal sanctions, was evolved from the universal Moral law, it has admitted the plea of irresponsibility and refrained from exercising its coercive powers where such irresponsibility has been established. In addition to madness, demonstrable coercion and self-defence relieve the individual from responsibility for the crime and render him immune from punishment.

In the course of evolution society has conceded still further limitations of individual responsibility. It willingly admits new knowledge gained by scientific psychology and concedes limited responsibility, not only in case of madness, but in such cases, too, where experts can convincingly prove to the judges, the guardians of its Law, that the individual was in an abnormal condition and affected by morbid influences at the time of the crime. Farther society cannot go, if it does not want to put an end to Moral law and

do away altogether with positive law. Concern for its continued existence forbids this. It must leave it to the philosophers to continue the investigation. They must show that the Will is never free, always fettered, not only in the extreme cases of madness or when under the influence of suggestion. They must make it clear that there is only a difference of degree and not of kind between the determining influences under which the individual is constrained to act, and that the causation which binds him proceeds by imperceptible degrees from the delirium of the maniac and the obsession of the abnormal man to the passion, lust and desire of the man with strongly developed instincts, and to the slight stimulus of habits, the colourless judgment and shallow considerations of the ordinary man with a deformed character and no definite features. Society can draw no practical conclusion from the theoretical recognition of the lasting limitation and lack of freedom of the Will, because moral law by its very nature implies coercion, and therefore excludes freedom. Whether the individual submits to the Moral law of his own accord, or because he is forced thereto by the community's powers of coercion, is of no account to society. It deals only with the visible results.

But it is not merely a matter of flat utilitarianism, it is not even unjust, if society, without inquiring whether the Will is free or not, makes the individual responsible for his actions and only makes an exception from this universal rule in extreme cases. Even though his will is subject to the law of causation, and the individual always acts as he must, he nevertheless has a means of keeping within the moral law despite inner impulses and outer pressure, and that is by his judgment and its instrument, inhibition. Like every organic function which is not purely vegetative and therefore beyond the influence of the Will, judgment and inhibition can be strengthened and perfected by methodical exercise, while total neglect of them will weaken and finally atrophy them. The community may demand that each of its members shall devote attention to the development of the natural functions which permit him to discriminate and to suppress any inclination to evil which may appear. It facilitates this duty towards itself and himself for the individual—for it is a question of the increase of his organic efficiency and of his personal worth—by the institutions it founds for the education of youth, by schools which not only impart knowledge, but also form the character, by instruction after the school age, by the honours with which it

distinguishes especially excellent persons, thereby holding them up to example. The community prescribes that everyone should acquire a certain minimum of knowledge, and for this purpose forces each individual by law to go to school for a certain number of years. It may and ought to force him also to render himself more capable of obeying the moral law by methodical exercise of his will. Every citizen is responsible to the state for being able to read and write. In this sense the individual is also responsible for sufficiently strengthening his faculty of inhibition to be able to control his selfish, anti-social and immoral desires.

The particular purpose for which he is to employ his faculty of inhibition depends on the current moral law of the age, which is determined not by the individual, but by the community. The individual does quite enough and is free of blame if he strives with all his might to approximate his actions to the ideal which the community demands at a given time for the life of its members in common and for their mutual relations. To alter and perfect this ideal is the business of a few select men with wider judgment, stronger will and warmer sympathies than the average. In these exceptional cases it is not the community which imposes its ideal on the individual, but, on the contrary, the individual who works out a new ideal for the community, and, so to speak, thanks to his personal qualities, establishes a new record in the gymnastic of the Will which beats all earlier ones.

Finally, it is true, the individual is dependent on his natural disposition. To say that he can be, and is to be, raised above himself is a very impressive, but really nonsensical, phrase. He can get out of himself only what is in him by nature, and however hard he may try to reach out beyond the boundaries drawn by his organic disposition, he finds it impossible to overstep them. But, as a rule, they are far wider than the individual has any idea of until he attempts to reach them, and he will find many surprises if he labours untiringly to develop to their fullest extent all the possibilities latent in him. Even a born weakling can, by dint of methodical practice, harden his flaccid muscles sufficiently to become a gymnast of average skill, though he is hardly likely to become a first-class athlete.

In just the same way a weak-willed or simple person can by earnest endeavours rise to a consistent morality; if, nevertheless, there appear in him, continually or occasionally, organic impulses which carry him away, it

is not his fault but his misfortune. In that case he is subjectively not responsible for his immorality. But the community can, all the same, not liberate him from responsibility, because the law of self-preservation forces it to insist on observance of the moral law, and it has no means of accurately measuring how strong the pressure of instincts and the power of inhibition is in any individual, and to what extent he has fulfilled the duty of exercising and strengthening the latter. The phrase "To understand everything is to forgive everything" shows insight, but is only true in the sense that one must not blame an individual for his natural imperfection. It comprehends recognition of the Will's lack of freedom, and the inadmissibility, from the philosophical point of view, of the concept of responsibility, but it does not affect the right and the duty of the community to demand moral conduct regardless of this lack of freedom. It is not permitted to forgive because it understands. Moreover, there would be no sense in forgiveness by the community, for the concept of forgiveness implies feeling and kindly forgetfulness of an injury inflicted of malice prepense; but insult and offence play no part in the punishment by society of transgressions of the moral law, and indulgence due to sensibility would endanger its existence.

The certainty possessed by the individual that his evil deeds, if they become known, will have evil consequences for him is one of the determining factors which is indispensable in helping him to make a decision. It is an inadmissible affectation to condemn the fear of punishment as a motive for moral action, because it ought to be the result of the conviction that it is absolutely right. It is a powerful aid to self-discipline, as also are the thought and the foretaste of the satisfaction upon which self-respect may count if general respect and praise are to be the reward of exemplary conduct.

The great weakness of the Kantian doctrine of Morality lies in the fact that it retains Free Will, even though it gives it another name. It is called autonomy of Will and is contrasted with heteronomy. This doctrine demands, and considers it possible, that the Will should be its own lawgiver and should not allow others to lay down laws for it; but it fails to examine how the Will comes to make laws for itself, of what hypothesis these laws are the necessary conclusions, by what means the Will secures respect for its law, and whether this seemingly self-imposed law is not really the inner

realization of a ready-made law of extraneous origin. The dogma of the autonomy of the Will is a consequence of the preliminary error of excluding utility from Morality and of declaring its imperative to be categorical, that is, not dependent on the aim, but independent and regardless of any aim. The whole tomfoolery of the categorical imperative and of the autonomy of the Will is transcendental mysticism, and is all the more surprising as it is the result of an investigation which claims to be the work of pure Reason. It is the shadow of the ghostly bogies of religious conceptions in the daylight of "pure Reason."

From the point of view of the community we may speak of merit and sin, but not from the subjective point of view. For the community the moral conduct of the individual is useful, immoral conduct is disadvantageous, therefore it praises the one and condemns and punishes the other. That is opportunism, but not moral philosophy. Considered subjectively, moral conduct is just as little meritorious as beauty, great stature, muscular strength, keen intelligence, health, a good memory, prompt reactions of consciousness and all other advantages that the individual has received without his personal intervention as a gift of nature. And immoral conduct is just as little blameworthy as ugliness, stupidity, sickness and other misfortunes which the individual is burdened with by heredity or which a hard fate has imposed on him. Happy is the favoured man! Pitiably the unfortunate one! Both are the work of forces which are absolutely beyond the control of their wills. In the same way the good man acts morally because he possesses insight and restraining will-power, and the bad man acts immorally because these perfections have been denied him, and neither the one nor the other can do anything in the matter.

That does not relieve man of the duty of labouring assiduously at his moral development, but it does relieve him of responsibility for the result of his efforts. On one point the sociological, the biological and the theological moralists agree: they all bow down humbly before Grace.

CHAPTER VII

MORALITY AND PROGRESS

I have fully investigated in another book ("*Der Sinn der Geschichte*") the problem of progress in all its details. I therefore refer the reader to that for all particulars, and will here give only a summary of the main points.

Progress implies motion from one point to another. This simple concept is supplemented by others, some clear and some dim, which group themselves round it: the conception that the point towards which motion is directed signifies something better and more desirable than the one from which the motion takes place, and the assumption that the motion is due to an impulse, either inherent in the moving object or complex of objects and an essential part of it, or else impressed upon it by outside forces; further, that the impulse connotes a conscious image of the goal arrived at, recognition of its higher worth and the desire for greater perfection.

All these ideas, which are concomitants of the concept of progress, are childish anthropomorphism when applied to the universe. To define progress as motion from a worse point to a better one implies the existence of a scale whereby value may be measured. Now values are clearly determined and graded as far as human beings or any similar creatures are concerned. Worse or better means to man less or more pleasant, useful, pleasing; progress, therefore, is a development to a condition which man considers more suitable and useful for him and feels to be more harmonious and pleasanter. The universe, from this standpoint, would make progress to prepare itself for the appearance of man, to become more intelligible, habitable and comfortable for man, to please and delight him. Whether it obeys its own natural disposition or a higher intelligence, a god, in carrying out this work, in either case it would realize progress to serve mankind. But if this ceases to exist, there is no point in characterizing a development as progress in the sense of amelioration, beautification and perfection. One would then have no right to describe, for instance, the solar system with its planets as indicating progress from the original condition of nebula, because

the latter in itself, apart from man and the conditions of his existence, is not better or worse, not more beautiful or uglier, not more perfect or more defective than the former; the original nebula and the solar system are equally the result of the play of the same cosmic forces, and the dynamic formula of the one is the same as that of the other. But Reason rejects as nonsensical any view which declares man to be the aim of the universe, which puts all the work of the universe at his service, and conceives it as a huge machine functioning for his advantage.

For reasons of formal logic, too, the idea of progress in the universe is unthinkable. The understanding cannot conceive of the universe as other than eternal. Now in eternity all progress, that is, all motion from a point of departure, must have reached its goal eternities ago, however slow the motion, however distant the goal. Eternity and progress are two concepts which logically exclude one another.

In the universe there can be no progress in the sense of ascent, of motion from a worse to a better thing; the only thing in the universe, in Nature, which is comprehensible to the understanding and which experience, derived from sense perceptions, can establish, is evolution, an eternal, equable motion always on the same level; and human standards of value are not applicable to its regular, successive stages. One state is merged without a break in another, the simple becomes more manifold until a maximum of complexity is reached; thereupon what is intricate gradually falls to pieces, and the complicated is dissolved and returns to the simple; then, when this point is attained, the same course begins again, and so on for all eternity. Thus evolution in the universe is an endless succession of cyclic movements from the simple to the intricate and back to the simple; with a constant alternation from one point of each single circle to the other; with the most extreme, crushing uniformity in the totality of all cycles; with absolutely equal dignity of all the phases of the endless course as they develop one from the other; with a synchronism, inconceivable to man, of all forms of evolution in numberless circles revolving side by side within the infinite whole of the universe.

But the concept of progress, which cannot be derived from the processes in the universe and has no sense when applied to them, becomes a reasonable one as soon as its validity is limited to the evolution of humanity. Here we

no longer deal with conceptions of eternity and infinity. It is a question of temporal and spacial phenomena. The existence of man had a beginning. No doubt it will have an end. It appeared on earth latest at the commencement of the Quaternary geological period, but more probably towards the end of the Tertiary period. It must necessarily disappear when the earth, owing to cold and evaporation, becomes incapable of supporting life, a state of affairs which, according to our present knowledge of natural laws, must inevitably come to pass. A few million years are allotted to it in which to fulfil its destiny, certainly a short span of time compared with the eternity of the universe, but compared with the duration of individual and national life, with personal destinies and historical occurrences, an immeasurably vast prospect. Within the limits of its genesis, its being and its disappearance, it is in a constant state of evolution. It is impossible to deny this. Comparisons between the skulls found among remains of the paleolithic age and those of our times, between the state of the undeveloped tribes of central Africa and Australia and that of the peoples of Europe and America, between the beginnings of human speech and the present-day languages, between the thought, knowledge and abilities of former generations and ours—all these prove this incontrovertibly.

The purpose of this evolution is unmistakable. It is directed towards an ever closer, ever subtler adaptation to the unalterable conditions which are imposed on men by Nature, and which they must make the best of if they are not to perish. And it is synonymous with progress; that is to say, not only with change, simple motion from one point to another, but with amelioration and improvement.

Here we may apply standards of value. The aim and object of evolution, which we know and desire, supply us with them. Here we may judge and appraise anthropomorphically. Not only may we do so, but we must, for it is a question of matters which concern mankind alone. All evolution of mankind, corporal and intellectual, the enlargement of the brain case so as to accommodate a larger brain; the development of the muscles of the larynx, palate and hand, and the accurate co-ordination of their movements, which things make clearer and more emphatic speech possible and render the hands defter; the acquisition, interpretation and storing up of experiences leading to discoveries and inventions, all are directed to the same end: to provide men with more reliable weapons in the struggle for

existence; to defend them from the dangers surrounding them, the destructive forces of Nature; to render their life more secure, longer and richer; to save them from fatigue and suffering; to give them pleasurable emotions and possibilities of happiness. And as we have a clear idea of the object of our evolution, as we desire this object and continually seek to find new means whereby to reach it, we are absolutely justified in calling every movement that brings us nearer to the aim we have in view, and aspire to reach, a progressive step, and in calling every stage of evolution which realizes a biggish part of the object desired an amelioration, an improvement, an ascent.

The total amount of progress which has secured to mankind its development we sum up in the concept of civilization. The latter, however, is still far removed from ideal perfection. What we know is infinitesimally small compared with the tremendous bulk of the unknown, perhaps the unknowable, which greets our view on all sides. Our technical achievements often leave us in the lurch and indicate no way out of many difficulties. In the human being who knows and can do something, too much still remains of the stupid, helpless, untamed, primitive beast.

Nevertheless, what has been achieved is of value, and it is childish to depreciate it. Paradoxical minds, like J. J. Rousseau and his parrot-like imitators, may deny the use of all civilization and declare that the so-called state of nature, the ignorance and helplessness of undeveloped man amid all too mighty Nature, is preferable. That is an intellectual joke which is not very amusing. We have not vanquished death, but we have prolonged life, as the mortality statistics prove. We cannot cure all diseases; crowded dwellings in great cities, the nature and intensity of our occupations—civilization, in short—bring diseases from which we should probably not suffer if we were savages; but the cave-dwellers, too, were subject to illnesses, and our antisepsis and hygiene effectually prevent many and grave bodily ills. Division of labour makes the individual dependent on the whole economic organism; it makes it easier for the favoured few to exploit the many and to be parasites at their expense, but nevertheless the individual can more easily satisfy his needs than if, being completely free and independent, he alone had to provide all the objects he requires. The speed and facility with which the exchange of goods is effected, thanks to ever new and ever more excellent means of communication, often give rise

to artificial wants; cheap travel occasions useless restlessness, but the emancipation of the individual from the place of his birth, the conversion of the whole globe into one single economic domain, of which every part with its own particular superabundance of men and products supplies the lack of the same in other parts, has at least this invaluable advantage, that it makes man more independent of local hazards and makes the earth more habitable for him. Many things provided by civilization are obtainable only by the rich, and the spectacle of the luxury of these favoured mortals makes the lot of the poor harder to bear, but the possibility of working one's way up into the ranks of the fortunate is a mighty spur to strong characters, and gives rise to efforts which are profitable to many. All the great technical achievements of civilization can certainly not bring happiness either to the individual or to the community, because happiness is a spiritual state which does not depend on bodily satisfactions and, though it may be troubled by material conditions, can never be created by them; but the moments of happiness which the individual experiences derive an extraordinary intensity from the instruments of civilization which surround and serve us.

Certainly civilization has its bad points, and it requires no great cleverness to discover them, to point them out and to exaggerate them. Certainly many of its most boasted, supposed benefits are not really a blessing, but either merely imaginary or else unimportant—little, superfluous things which may be pleasant, but lacking which we can live without great deprivation, and for which we undoubtedly pay far too dearly. But, on the whole, it is a mighty achievement of man's struggling intellect, an invaluable improvement of the lot of man, and if anyone denies this he forfeits any claim to serious refutation. Rousseau's state of nature may be a very pleasant change for a summer holiday, but every man of sound common sense would decline it as a permanent abode.

We may therefore freely concede the fact of progress in civilization in so far as the latter implies greater safety, facility, order and equability of life, deeper and more widely diffused knowledge and more perfect adaptation of man to the natural conditions in which he finds himself. For it is no reservation to note in the course of evolution both individual deviations from the path which leads to the goal of civilization, the amelioration of the constitution of mankind, and occasional relapses into bygone barbarisms. To make use of Gumplowicz's expression, it is not an acrochronic and

acrotopic illusion (that is, a form of self-deception which consists in thinking the time when one lives and the place where one lives the best of all times and the most wonderful of all places) if we place the present far above all past ages and declare our civilization to be incomparably richer and more perfect than anything that has preceded it. The *laudator acti*, the cross-grained Nestor who praises the past at the expense of the present, the enthusiast for "the good old times," is a figure that has always been familiar. But it proves nothing. This tender love of the past is not the outcome of objective comparison and consideration, but an impulse of subjective psychology. It is simply the emotion and longing which fill an old man's heart when he looks back on his youth. He remembers the pleasurable emotions which once accompanied all his impressions and which are now unknown to his worn-out organism, and he thinks the world was better because he found more joy in it. The aged man is convinced that in his youth the sky was bluer, the rose more odorous, the women more beautiful than now, but an impartial observer would pityingly shake his head at this.

But can the progress, which cannot reasonably be denied in civilization, also be traced in Morality? Philosophers who are by no means negligible have roundly replied in the negative. Buckle declares uncompromisingly that the only progress possible to man is intellectual, and by this he means that mankind grows in knowledge, foresight and clarity of thought, but not at the same time in Morality, which, according to him, differs from the intellect and understanding and is not included in them. Buckle's unfavourable judgment has been turned into a formula which has often been repeated. Scientifically, technically, we progress; morally we stand still or slip back; the two orders of development move neither in the same direction nor with the same speed. That is a view that is widely held. Fr. Bouillier comes to the same conclusion as Buckle, though from different considerations. He asserts that "a savage who obeys his conscience, however ignorant this may be, can be as virtuous as a Socrates or an Aristides; one can even go so far as to defend the view that social progress instead of strengthening individual morality weakens it, for society, in proportion as it is better ordered, saves the individual the trouble of a great many virtuous actions."

However, there are other moralists who take the opposite view. Shaftesbury cannot imagine a moral system in which there is no place for the idea of

constant progress, of continuous improvement. The great Frenchmen of the eighteenth century are convinced of the moral rise of humanity. "The mass of mankind," says Turgot, "advances constantly towards an ever-growing perfection," and elsewhere: "Men taught by experience grow in ever greater measure and in a better sense humane." Condorcet defends no less emphatically the view that the faculty of growing more perfect is inherent in man. This is a case of pessimism and optimism which have their roots less in reasonable thought than in temperament. A worn-out, weary individual, or generation, looks back and spends the time in futile yearning and melancholy visions of the past; but a sturdy generation, full of life, and conscious of it, looks forward, and planning, inventing, and determined to realize its creative ideas, it conjures up the image of the future. Pessimism regrets and groans; optimism hopes and promises. The former, like Ovid, thinks the Golden Age is in the past, the latter, like the fathers of the great Revolution, looks for it in the future. In neither case do they reach conclusions as a result of observation and logical thought, rather they invent reasons afterwards for their conclusions, as they do interpretations of their observations. But he who regards life neither with bitterness nor with pride, and tries to understand it objectively, will come to the opinion that Morality too has its fair share in the progress of civilization.

Theological thought interprets moral perfection differently from scientific thought. According to the former it is independent of intellectual development and purely a matter of faith. God is the ideal of Morality, belief in Him the necessary condition for a moral life. Through its fall mankind withdrew from God and was left a prey to Immorality; original sin perpetually burdened it; by redemption and grace it has been purified from this inborn stain, led back to God and once more rendered capable of Morality. For mankind only one kind of progress in Morality was possible, and this took place, not gradually and step by step, but with one sudden swift advance, by which it immediately attained the highest degree of moral perfection possible, and that was when the true faith was revealed to it. Before the revelation mankind did not know real Morality, only its dim shadow, only a vague yearning for it; by the revelation at one blow it was in full possession of Morality, and now it is the business of every individual, whether he will draw near to the divine example by pious efforts or ruthlessly withdraw from it. Since the glad tidings of faith were announced

to humanity there can be no question of moral progress for mankind as a whole; it has become a personal matter which everyone has to deal with himself. Criticism of this dogmatism is superfluous. It is quite enough to place it before the reader.

It is quite comprehensible, too, that those whose views permit them to talk with Bouillier of a savage who obeys his conscience should deny moral progress. They assume that a savage has a conscience, that conscience is an element of human nature, that it is a quality or a capacity like sensation or memory, that it is born with man like his limbs and organs. In that case it might well be asserted that subjective Morality has made no progress in historic and perhaps even in prehistoric times, and that actually a "savage who obeys his conscience can be just as virtuous as a Socrates or an Aristides."

It would hardly be possible to give a concrete proof of the contrary; if for no other reason because for a long time there have been no savages in the strict sense of the word anywhere on earth. By savages we mean human beings in their primitive, zoological condition who have developed solely according to the biological forms of the species and under the influence of surrounding Nature and have taken over nothing of an intellectual character from the group to which they belong. All savages of whom we know form societies which for the most part are not even loosely, but firmly, knit together, with laws that may seem nonsensical and barbaric to us, but are none the less binding with clearly defined duties which they impose on every member, with sanctions whose cruelty supersedes that of any punishment permitted by civilization. A man who is a member of a society, no matter how primitive it may be, may certainly have a conscience, but the point is that he is not a savage, but the contrary of a savage, namely: a social being who has received an education from his society, who is bound to conform to its habits, customs and views, and who in all his actions must consider its opinion. But these conditions, as I have shown, produce a conscience, the representative of society in the consciousness of the individual. Conscience is no innate feature of man uninfluenced by society, it is not a product of Nature, it is the result of education; he who possesses a conscience is no savage, but a person formed by discipline and subservient to it; conscience is the fruit of civilization, of a certain civilization; in itself it represents progress compared with the primitive state of man.

Consequently it is an objectionable contradiction to talk of conscience and at the same time deny moral progress.

It is peculiarly arbitrary, too, to think that a savage, if he had a conscience, could obey it to the same extent, that is, be just as virtuous, as a Socrates or an Aristides. This would contradict all the observations and experience from which I have derived the doctrine that conscience works by means of inhibition, and that Morality and Virtue from the biological point of view are inhibition. For inhibition is developed by practice and use. Except in cases of morbid disturbance it develops simultaneously with the understanding which manipulates it and demands efficiency from it. There can be no two opinions about the fact that the understanding and the faculty of inhibition in living beings have developed progressively. There is no need to adduce any proof that the frog is intellectually superior to the zoospore, and man to the frog, and that as we ascend the scale of organisms we find their reactions to stimuli are increasingly subject to individual modification, and that there is a gradual transition from the original, purely mechanical tropism to differentiated reflex action, which, however, is still beyond the control of the will, and finally to resistances which suppress every externally visible reply on the part of the organism to the impression it has received.

In the course of this development the faculty of inhibition grows stronger and more efficient and obeys the behests of the understanding more and more swiftly, surely and reliably; it can reach a pitch of invincibility against which all the revolts of instinct, all the storms of passion, are powerless.

In the savage, or rather in man at a low stage of civilization, the power of inhibition is far from having reached such perfect development. It is not very robust, works defectively and often fails. Little civilized man, if he has a conscience, cannot even with the best intentions always obey it punctually. His instinct is stronger than his insight. He is not master of his impulses; rather it is they that master him. All who have described tribes of low civilization have observed that their reactions resemble reflex movements and that they lack self-control. Moral conduct, that is, control of their selfishness and consideration for their fellow men, is difficult for them if it demands effort, sacrifice and painful renunciation. However, we need not trouble to go to the negroes of the Congo or the inhabitants of the

Solomon Islands to observe the inefficiency of the power of inhibition. We need only look around us. We shall find enough instances among ourselves. The uneducated, the badly educated and abnormal people on whom teaching and example make no impression cannot follow the precepts of Morality, although they know them. To express it as the Roman poet does, they know the better and approve it, but they have a longing for the worse. So it is wrong to say that a savage can be just as virtuous as a Socrates or an Aristides. He could not, even if he would. He would lack the organic means: a sufficiently trained intelligence to point out his moral duty, a sufficiently developed faculty of inhibition to follow the admonition of his intelligence. Bouillier's objection to moral progress will not hold water. The Romantics who have invented the fairy tale of the noble savage and who declare in Seume's words: "See, we savages are better men after all," are out of touch with reality. Like civilization, and simultaneously with civilization, Morality progresses towards improvement, towards perfection.

The Kantian moralist, like the theologian, is forbidden by the logic of his system to admit the possibility of moral progress. If the moral law is categorical, that is, unlimited by any special purpose, if it exists within us, eternal and immutable as the stars above us, we should be hard put to it to say how this unalterable block, placed in our souls we know not how or by whom, could receive an impetus to progressive development, or in what way this development could be carried out. That which is categorical is absolute, and the concept of progress in the absolute, as in the infinite and the eternal, has no sense. But whoever regards Morality from the biological and sociological point of view is forced to assert its progress, just as the dogmatic mystic, who believes in the categorical imperative, is forced to deny it.

Let us recapitulate the fundamental concepts. Regarded biologically Morality is Inhibition, the development of which is of the greatest importance to the individual, as it enables him not to waste the living force of his cell plasm and of his organs in sterile reflex movements, but to store it up and hold it ready for useful purposes. The stronger his power of inhibition the better he is armed for the struggle for existence, and the better he is armed the more efficient he is. Denial of the progressive development of Inhibition implies a denial that modern man can maintain himself with more ease and security against Nature and hostile or injurious natural

phenomena, and that he is more successful in competition with other men than his predecessors on earth. But this latter denial is obviously nonsense. The only individuals who do not take part in progressive development are the degenerates. They are organically inferior, their faculty of inhibition is defective or altogether lacking, they are slaves of impulses which their will and intelligence have no means of controlling, they are the outcome of morbidly arrested or retrograde development, they are the victims and refuse of a civilization too intensive, too exhausting and wearing for some men, and they are destined to fall out of the ranks of a race moving majestically forward and to lie helplessly by the roadside.

From the sociological point of view Morality is the bond which unites the individuals in a community, the foundation upon which alone society can be built up and maintained. For it implies a victory over self, consideration for one's neighbour, recognition of his rights, concession of his claims, even when valued possessions must unwillingly be given up and painful renunciation of attainable satisfaction is required. This is neighbourly kindness and the charity of the Bible, Hutcheson's and Hume's benevolence, Adam Smith's sympathy and Herbert Spencer's altruism; it is the necessary condition on which alone individuals can live peaceably together and helpfully assist each other to make life easier. If most or all individuals lack it, we have Hobbes's war of all against all; then man is as a wolf to other men, and each one is condemned to the state of a beast roaming in loneliness. If a few, a minority, lack it, then the majority will not tolerate them in its midst, but will expel them from the community as a dangerous nuisance and deprive them of the privilege of mutual aid and of the advantage of joint responsibility.

The species of man, like every other species of organism and like every individual, wants to live. It can only achieve this by adapting itself to existing natural conditions. The more suitable and perfect the adaptation the more easily and securely it lives. Under the present conditions of the universe and the earth a solitary human individual could not manage to exist, let alone develop into an intelligent being. The form his adaptation to circumstances has taken is that of union in an organized community. For the existence of society and the adjustment of the individual in it is the indispensable condition for the life of the species as well as of the individual. Society can only continue to exist if individuals learn to

consider one another and practise benevolence towards each other. Society therefore created Morality and inculcated it in all its members, because it was its first need, the essential condition which rendered its existence possible, just as the species created society, because it could only continue to live as an organized society.

Thus Morality with the strictest logical necessity has its place in the totality of efforts which human beings had to make, and still have to make, in order to preserve life, to make it sufficiently profound and to enrich it with satisfactions, that is, with pleasurable emotions of every kind, so that they may continue to have the will and the eager desire to maintain their existence by effort and struggle; in short, in order to make life seem worth living, even at the cost of constant toil and moil. Without society it is impossible for the individual to exist; without Morality it is impossible for society to exist; the instinct of self-preservation furnishes society with habits and rules governing the mutual relations of its members and with institutions for economizing force; all these together we call civilization. The development and improvement of civilization is obvious; it is proved by the fact that it draws nearer and nearer to its goal, namely, the establishment of satisfactory relations between individuals and groups, and the attainment of a maximum of satisfaction with a minimum of individual effort. But it would be incomprehensible if Morality, the essential condition for the existence of society which creates civilization, should have no part in the indisputable, because easily demonstrable, progress of the latter.

Morality occupies such a large place in civilization that the mistaken view has arisen among many moral philosophers that it is the aim of civilization and has no aim other than itself. Closer investigation shows this to be an error, a reversal of the true relation. Morality is no aim, certainly no aim to itself, it is a means to an end, the most important, most indispensable means to the one end, to bring about civilization, to maintain and refine it, and adapt it more and more to its task. But the task of civilization, as I have shown, is to preserve, facilitate and enrich the life of the individual and the species. Morality therefore is the most important form in which the instinct of self-preservation in the species is manifested, and to deny progress to it implies the assumption that the species does not possess the impulse to preserve and beautify its existence, that its instinct of self-preservation flags, that it does not recognize its aim and is ignorant of the path leading to

its goal. This assumption, however, is contradicted by all, and supported by none, of the phenomena observable in the life of the species—the absolute increase of the population of the earth, the prolongation of individual life and of the age of efficiency, the combating of every kind of harmful thing.

The steadfast self-control of civilized man compared with the unreliability of the savage, who appears capricious and unaccountable because he freely obeys every impulse, proves the progressive development of the faculty of inhibition in the individual organism. The order and definite organization of modern society, the rule of law, men's equality before the law, the guarantee of freedom and respect for the person, all these compared with the state of nations in earlier times (actually anarchy under a mantle of tyranny and the unlimited power of a few mighty ones over the helpless masses) prove the progressive development of civilization in the social organism. But logically the progressive development of Morality itself must correspond to the progressive development of its instrument, inhibition, and of its product, civilization.

The conclusion to which we are forced by theoretical considerations is fully endorsed by observation of actual life. It is sufficient to indicate broad facts to one who denies moral progress. Slavery, which Aristotle thought a law of Nature, which Christianity tolerated, which modern states, such as England, France, the United States and Brazil, defended and protected by law, was everywhere abolished some years ago. The objection is raised that modern hired labour is merely slavery of the proletariat under another name, that the exploitation of workmen by employers is a hypocritical continuation of serfdom. But that is sophistry. The hired labourer is not bound to his contract. He can break it. "Yes, at the price of starvation." That used to be the case, but nowadays organized working men are no longer at the mercy of powerful capital, and therein lies progress. They are in a position to make conditions and not seldom to force their acceptance. They have the right to strike, to move from place to place, to form unions. The community has recognized the duty of mitigating, at least to some extent, the evils to which faulty economic organization exposes the workman. It has instituted accident and health insurance, old age pensions, and, in some places, assistance for those who are out of work through no fault of their own. All this is still very defective, but these are hopeful beginnings, all the same,

and, above all, it shows the awakening of a social conscience that earlier ages did not know.

Justice is administered more and more humanely, that is, morally. It is a century since legal torture was abolished. Society is ashamed to get at the truth easily by torturing a suspect who after all may be innocent. The condemned man is no longer branded or mutilated; he suffers no corporal ill-treatment of which the results can never be obliterated. Capital punishment is still a blot on the honour of civilization. But for more than a century now, since the time of Beccaria, it has been violently opposed and has already been abolished in some states; the others will no doubt have to follow suit within a short time. Consider that in England at the beginning of the nineteenth century a thief was hanged if he had stolen a thing of no more value than the rope that was to hang him, and even children of fourteen years were condemned to this fate. To-day the judge pronounces sentence of death, even where it is still legal, with grave misgivings and searchings of conscience, and the execution, formerly a public spectacle, is carried out more or less secretly, because the conviction is gradually ripening in society that by the cold-blooded killing of a man it is perpetrating a crime which it must keep as secret as possible. The sentence is now almost everywhere deferred, and thus the conviction becomes a very emphatic warning which points out the path of repentance, of conversion and improvement to the guilty man, and leaves him the possibility of becoming a decent human being again. Special courts for children mitigate the stern penal code and modify it according to the needs of unripe, youthful characters. Imprisonment for debt is a half-forgotten thing of the past and regarded more or less as a joke. What these changes have in common is that they one and all indicate a deepening of the community's feeling of duty and responsibility towards the individual, greater respect for persons on the part of the law, an increase of the will to resist the first impulse of anger, revenge and mercilessness. These tendencies, however, are the very essence of Morality.

I forbear to adduce as a proof of progress that the Inquisition no longer rules and nowhere burns its victims. For actually there is no greater toleration of those who hold other opinions than there was formerly. Religious toleration is explained by the fact that the people's consciousness no longer attaches such enormous importance to religion as in past

centuries. But political, æsthetic and philosophical antagonisms arouse as much bloodthirsty rage to-day as did formerly heresy in religion, and opponents would unhesitatingly apply torture and the stake to one another if the great mass of the people would develop sufficiently enthusiastic zeal for their views to allow their raging fanaticism to have recourse to violence, as it once permitted domineering religious orthodoxy to do.

Other aspects of civilization, not so essential, are hardly less encouraging than the developments on which I have hitherto dwelt. Drunkenness, formerly an almost universal vice, is on the decrease. Among the educated classes it is only met with exceptionally, and is recognized as a morbid aberration; among the lower classes it continually grows less. The statistics of the savings banks show an ever-growing determination to save. The masses who used to rejoice in dirt now manifest an increasingly vigorous desire for a cleanliness that demands soap and baths. This indicates control of impulse, of the inclination for alcoholic drinks and the tendency to squander, and an increase of self-respect which recognizes dirt to be humiliating. These are activities of the moral feelings, their material activities.

If, in spite of these material proofs of the progress of Morality in all social functions and in many individual habits, serious-minded men still maintain that it stands still or even that it shows retrogression compared with former times, this view, which is undoubtedly a mistaken one, is due to wrong interpretation of facts.

Bouillier's remark that "social progress instead of increasing individual Morality weakens it, because society, in proportion as it is better organized, saves the individual the trouble of a number of virtuous actions" has a perfectly correct point of departure. Many tasks of neighbourly kindness and humane joint responsibility which used to be left to the inclination, the free choice and the noble zeal of individuals, and could be carried out or neglected by them, are now methodically fulfilled by the community. Saint Martin no longer needs to divide his cloak to give half to a poor shivering man. The public charity commission gives him winter clothes if he cannot afford to buy any. No knights are needed to protect innocence, weakness and humility from oppressors. The oppressed appeal successfully to the police, the court of justice, or, by writing to the papers, to public opinion.

There is no need for Knights Templar or Knights of St. John to care for strangers and tend the sick. Inns and public hospitals are at their disposal. To-day there would be neither occasion nor reason for the miracle of St. Elizabeth of Hungary, who against the orders of her hard husband took to the starving bread which was turned into roses. The poor are regularly fed in municipal and communal kitchens. Individual deeds of mercy are less necessary now than formerly, when, if they occurred, they were the outcome of exceptionally noble and devout sympathy and heroic self-sacrifice.

One is therefore inclined to believe that men are less capable of such deeds than they were in the past. But that is doing them a grave injustice. Dr. Barnardo, who opened a home for the little waifs and strays of the East End of London, is not inferior to St. Vincent de Paul who adopted and brought up forsaken children. John Brown who suffered a martyr's death by hanging because he attempted with arms to liberate the negro slaves of the Southern States, Henry Dumont who devoted the efforts of a lifetime to founding the Red Cross to help those wounded in war, Emile Zola who sacrificed his fortune, his reputation as an author, his personal safety, and suffered persecution, calumny, exile, a shameful condemnation in court, and violent threats to his life in order to get justice for Captain Dreyfus who had been wrongfully accused—all these can well compare with the saints in the Golden Legend. Virtue exists potentially in as many cases as formerly, probably in more; and it is actively practised whenever and wherever it is appealed to.

Another result of the long evolution of civilization and Morality is the development of an ethical instinct in all except abnormal, degenerate individuals, which causes men to act morally in nearly all situations without conscious reflection, choice or effort. The individual who is ethically well grounded, in whom moral conduct has become an organized reflex action, does what is right without any conscious effort, and therefore does not in so doing evoke any idea of merit either in himself or in witnesses. But to do right habitually, carelessly and almost without thought, as one breathes and eats, easily makes one unjust in one's judgments. The battle between Reason and blind instinct, between the Will and refractory Impulse, the victory of the lofty principle, of spirituality over what is irrational and materialistic, which give us the illusion that free humanity is superior to the

fatality of cosmic forces, have something so elevated and beautiful about them that we are disappointed if they are absent, and practical Morality without this dramatic setting does not appear to be real Morality.

Nevertheless we must not give way to this æsthetic point of view. We must always remember that Morality has a biological and sociological aim and must soberly admit that it is all the better if this aim is realized without in every single case depending on uncertain individual decisions. It would be an ideal state of affairs if in a society there were such clear knowledge of all its vital necessities, and this had been so inculcated in all its members, that their harmonious life together and their co-operation for the common weal would never more be troubled by the revolt of ruthless individual selfishness against the love of one's neighbour and willingness to sacrifice oneself for the community. The ideal of Morality would be attained, but the concept of Merit would be transferred from the individual to the community. Superficial observation might object to finding in individuals no victorious struggle against resistance, hence no virtue, and might bemoan the stagnation, nay, the retrogression, of Morality. But whoever views matters as a whole would have to admit that it would imply the greatest progress in virtue if the latter from being an individual merit had become an attribute of the community. I am far from maintaining that we have reached this ideal state; but evolution tends unmistakably in this direction; and this is one of the reasons why Morality may appear to make no progress.

The very rise of the community to a higher stage of Morality may be a fresh cause of error concerning the progress of Morality. The work of the strongest and most clear-headed thinkers for many thousand years, who have bequeathed as a legacy to the community their lifelong labours for the amelioration of the lot of mankind, has developed in us an ideal of active and passive Morality which is always present, even to the mind of the weak or bad man who cannot or will not live up to it. By this ideal, which is that of the community and which we bear within us, we involuntarily judge real life as we observe it, without applying the necessary corrections. We necessarily note a discrepancy between theory and practice, which appears to us to be not mere inadequacy but a contradiction of principles, not a quantitative, but a qualitative difference, and thus he who is not forewarned

easily becomes doubtful, pessimistic, and bitterly contemptuous of mankind.

This is the theme with which light literature unweariedly deals. Novels and the drama constantly show us types: "Pillars of society" and other worthy men, who pretend to be honourable, who are full of good principles, preach unctuously and condemn others with pious indignation, but who themselves in all situations behave with the most horrible selfishness and are sinks of iniquity. The creators of these rogues professing virtue, of these secret sinners, think they are mightily superior; they think they know mankind, that they are deceived by no one and can see deep down into men's souls; they call their method realism, and they look down with the greatest contempt upon poets who depict good, unselfish, noble, in short, moral characters, and call them optimists, flirts, distillers of rosewater, who are either too silly or too dishonest to see the truth or to confess it. If realism happens to be the fashion, the public believes these men who depict what is ugly and disgusting, admires them, is impressed by them, and scorns the idealists who have a better opinion of mankind.

However, realism is onesided and exaggerated, and therefore just as far from the truth as enthusiastic idealism. It picks out certain characteristics of human nature, generalizes from them and neglects the others, thereby libelling mankind. The same people who in their flat, insipid daily life unhesitatingly indulge their poor little vanities, their naïve selfishness, their childish jealousy, their secret sensuality and their moral cowardice because it is of no consequence, because it alters nothing in the general constitution of society, because the community takes good care that moral principles shall be maintained, these same people can, on great occasions, which, however, seldom occur, reveal virtues which they themselves never suspected and which we gaze at in blank astonishment with reverent awe. The hypocritical Philistines of realistic literature, rotten at the core, when the *Titanic* sank, during the plague in Manchuria, at the earthquake of Messina, in the mine disaster at Courrières, and on Arctic and Antarctic expeditions, proved to be heroes who came very near to the theatrical ideal of Morality, if they did not quite reach it. If one takes the valet's point of view and observes man in his dressing-gown and slippers when he does not feel called upon to pull himself together, one may very well form a poor opinion of him. But if one considers the actions of the community and

dwells on the loftiest deeds of individuals, one will no longer believe that the Morality of the present time is inferior to that of any other age.

There is one phenomenon, though, which seems to prove that those who deny moral progress are in the right, and that is war. This is indeed the triumph of the beast in mankind, a bestial trampling under foot of civilization, its principles, methods and aims, and it might be adduced as a crushing proof of the stagnation or retrogression of Morality that to this very day its horrors can devastate the earth, as they did hundreds and thousands of years ago, only to an incomparably greater extent, more cruelly and more thoroughly. But this, too, would be a false conclusion. It is certain that the men who take it upon themselves freely, purposely and intentionally to make war are monsters; their action is a crime that cannot be expiated. Unhesitatingly they have recourse to massacre, robbery, fire and all other horrors in order to satisfy their devilish self-seeking which desires the fulfilment of their ambition, that is, of their self-love and vanity, which covets riches, increase of power, a ruling position and its privileges. These they pursue either for themselves or for a family or caste, and they pretend that they wish to defend their country from its enemies, to acquire new boundaries for it affording better protection than the old, to promote the development of the nation by getting fresh territory, to spread its civilization and secure a glorious future for it.

Nations, however, which allow their rulers to plunge them into a war of aggression may be foolish and clumsy, but they need not be immoral. They are made drunk with phrases which appeal to their noblest feelings, which their government and its intellectual bailiffs pour out to them in overflowing measure; they believe the shameless lies which are told them boastfully; and this is undoubtedly a lamentable, mental weakness which drew from Dante the bitter cry: "Often one hears the people in their intoxication cry: 'Long live our death! Down with our life!'" But having simply accepted these preliminary ideas the people act with such Morality as one cannot forbear to admire. In a grand flight they rise superior to all thought of self, raise their feeling of joint responsibility to the pitch of heroism and martyrdom, and gladly sacrifice to their duty to their neighbour and to the community their possessions, their comfort, their health and their lives. That is very great virtue whose subjective merit is no whit diminished by the fact that it is manifested in a cause that is objectively unjust. And this

virtue on the part of nations which have been misled was never so widespread or so real as now. The attitude of mercenaries who served the highest bidder, the lack of ideals among the soldiers who followed foreign conquerors at whose command they tyrannized over nations who did not concern them at all, the cynicism of the leaders who unhesitatingly went over to the enemy and fought against their own country and people, these are things that are not to be found nowadays and are almost unthinkable. No Napoleon of to-day could lead the men of Würtemberg and Bavaria to Spain and Russia, nor could an Elector of Hesse sell recruits to England for the conquest of North America; no Louis XIV could induce a Bernard of Saxe-Weimar to fight his battles against German adversaries, no Constable of Bourbon ally himself with Spain against his native France. Leonidas, once admired and praised as an exception, is to-day the rule. "The guards who die but do not yield" are to be found on every battlefield nowadays.

In modern warfare a higher, more perfect Morality of the masses obtains than was the case in the past. That war itself is the most immoral thing does not detract from the moral worth of those who are led and misled. The masses lack insight and judgment, their understanding is not sufficiently developed to realize the bestiality of the rulers who put them to such evil use; but the way they suppress their own feelings, the way their will controls their impulses, their social discipline, in short, their Morality, is admirable. Moreover, the conscience of mankind revolts more and more against the wickedness of war, and the best men of the time are striving to bring the mutual relations of nations, like those of individuals, within the jurisdiction of Law and Morality. Morality will doubtless at no distant date do away with war, as it has abolished human sacrifice, slavery, blood feuds, head hunting and cannibalism.

No phenomenon of individual worthlessness observed within a narrow sphere can detract from the fact that the community constantly improves. A pessimistic view of the development of Morality has no justification. Progress of civilization implies progress of Morality, its most important instrument in the work of adapting the race to the immutable conditions of its existence.

CHAPTER VIII

THE SANCTIONS OF MORALITY

The concept of Morality includes an idea of compulsion, of coercion. A voice says to man: "You must!" or "You may not!" It commands him to do, or to refrain from doing, something. If he obeys, all is well; but if he takes no notice of it, pays no heed to it, the question arises: "What now? Will the voice rest content with crying in the wilderness? Will it not mind speaking to deaf ears? Will the refractory individual not suffer for disregarding it, or has it means to enforce obedience, and what are these means?"

The answer to this question depends on what view one holds as to the nature of this monitory, warning, commanding voice. Whoever believes in Kant's categorical imperative must admit that this word of command is denuded of all power of coercion and must absolutely rely on the good will of the individual in whose soul it makes itself heard. According to Kant the moral law aims at no extraneous result, no utility. It is its own aim and object. But its own aim is fulfilled as soon as the categorical imperative has spoken, whether the individual acts in accordance with it or not. It has therefore in principle no sanction.

True, Kant contradicts himself, for after having sternly excluded from his doctrine all utility as the end of Morality, all trace of feeling from moral action, he smuggles blissful happiness in by a back door; the result of submission to the moral law and its dutiful fulfilment, he declares, will be bliss. Bliss, however you interpret it, is a pleasurable emotion. Whether you act morally with the declared intention of attaining the pleasurable emotion of bliss, or whether this pleasurable emotion comes of its own accord as an undesired reward when you have acted morally merely from a feeling of duty, without a thought for such a result, without a wish to attain it, it makes no difference to the fact that moral action actually meets with a reward. Kant does not openly promise this, but with a wink he whispers in your ear that there is a prospect of it.

Nor does it alter the further fact that Kant, having contemptuously expelled Eudæmonism from his system, reinstates it with full honours. Once it has been conceded that moral conduct makes man blissful, in other words gives him a reward, the categorical imperative also has a sanction, albeit a very insufficient one. He who fulfils the moral law attains bliss; that is a spur whether you admit it or not. But he who does not fulfil it loses this advantage, otherwise, however, nothing happens to him. The sanction, therefore, is onesided. A reward is offered for the fulfilment of the moral law, but there is no punishment for its non-fulfilment. For it is no penalty if bliss is withheld from him who has no conception of it and no desire for it. No matter, then, if the moral law be eternal and immutable as the stars above us, if it be categorical, if it be fulfilled, not owing to a conception of its effect, not from liking for this effect, but from an inner necessity, it ceases to be a living force for mankind or to have any practical significance; for the single thread which unites it with human feelings—the whispered, vague promise of bliss—is too thin. Feeling which has no knowledge of this misty bliss, and therefore no yearning for it, is uninfluenced by the categorical moral law. Reason is not necessarily convinced that it is right and valid. The moral law abides like the stars with which it is arbitrarily compared, itself a star in airless space, pursuing its course regardless of humanity, having no relation to it or connexion with it; regard for or disregard of the moral law makes no perceptible difference, and it ceases to have any but a kind of astronomical interest for mankind, a purely theoretical interest for purposes of scientific observation and calculation, and is in no way applicable to the feelings, thoughts and actions of men.

Theological Morality adopts a widely different point of view. Its logic compels it to provide the most effective sanctions. God is the lawgiver of Morality. He prescribes with dictatorial omniscience what is good, what is bad, what should be practised and what avoided. Obedience earns a glorious reward, revolt entails the most terrible punishment. Reward and punishment are eternal, or may in certain circumstances be so, and this, by the way, is cruelty which ill accords with the universal goodness ascribed to God. For human understanding will never be persuaded, will never be able to grasp, that a sinner, however grave and numerous his sins committed during the brief period of the fleeting life of man, can ever deserve an eternity of the most fearful punishment. The lack of proportion between the deed and the

penalty is so monstrous that it is felt to be the gravest injustice, against which both Reason and feeling revolt. Imagination can conceive hell fire that lasts a certain time and has an aim, like life with its praiseworthy and wicked deeds, but it boggles at the idea of a hell from which there is no escape and the agonies of which are endless.

The Old Testament conceives the sanctions of the moral law enunciated by God in a thoroughly realistic manner. Fulfil the commandment "that thy days may be long in the land." If you disobey, the curse of the Lord will be on you and you will be pursued by His anger unto the fourth generation. Christianity considered it dubious to make this life the scene of reward and punishment. It is imprudent to let divine justice rule here below, so to say, in public, before an audience and representatives of the Press who attentively follow the proceedings, watch all its details, and can judge whether the verdict is put into execution. Prudence demands that the trial should take place in the next world, where it is protected from annoying curiosity. Mocking onlookers cannot then observe that it is only in the dramas of noble-minded poets that in the last act vice is inevitably punished and virtue rewarded, while in real life only too often merit starves, suffers humiliation and poverty and altogether leads a miserable existence, while sin flourishes in an objectionable manner and to the very end revels in all the good things of this earth. However, the religious moralists painted such a vivid and arresting picture of what awaits the sinners in the next world, that if men had not been obdurate in their disbelief they must have shudderingly realized it, as if it actually happened in this world. Words from the pulpit admonishing men to obey God's law under penalty of most terrible punishment were greatly emphasized by the paintings and sculpture over the altars and the church doors, where all the tortures of hell were depicted by great artists who put all their imagination and all their genius into the work.

As innumerable people have testified, these representations were taken so literally, not only by the simple-minded masses but also by the more highly educated, that they were haunted by them, waking and sleeping, and imagined that in their own flesh they felt the torture of flames, of boiling pitch, of the prick of the pitchfork as the devil turned them on the grid, of the teeth with which the spirits of hell tore their flesh from their bones. The fear of hell poisoned many a life up till quite recently, especially in

Scotland, and kept people in a constant state of agitation and anguish which occasionally rose to mad despair. It is remarkable that only punishment was so impressively held up to man's view, but not reward. Pictures of paradise are much less rich and varied than those of hell, and its joys are peculiarly modest. The inventive powers of painters, sculptors, and poets did not rise above a beautifully illuminated hall where the blessed are ranged around God's throne and with folded hands sing hymns of praise to Him, while angels play an accompaniment on trumpets and fiddles. A prayer meeting, a choir and a concert of music, that is all that Christian eschatology holds out as an eternal reward to virtue. It redounds to its credit that it assumes a sufficiently modest taste among the good to make them long for these joys and find infinite happiness in them.

Islam does not count on such moderation. The joys of paradise that it promises are so crudely sensual that they may well arouse lust in coarse natures, and can counterbalance the fear of hell fire. The ideas of the reward of merit in the hereafter held by the northern nations, Germans and Scandinavians, are just as low and coarse. For the Mohamedans paradise is a harem; for the worshippers of Odin it is a pot-house where there are free drinks and a jolly brawl to end up with. Heroes who fall in battle—they knew no virtues but a warlike spirit and contempt of death—enter Valhalla, where they partake of the everlasting orgies of the gods, drink unlimited quantities of mead and beer, and fight for them to their heart's content without taking any harm. The North American Indians hope, after leading a model life, to be gathered to the Great Spirit, and in the happy hunting grounds of heaven evermore to kill abundant game. Only Buddhism comforts the virtuous man with finer and more spiritual hopes. From out his world of weariness and pessimism it opens up the prospect of Nirvana to him, that is, of the end of all feeling, which after all can only be painful, and of all thought, which after all is only melancholy and despair, and of the volatilization of the personality, the only real release; while it condemns the sinner to the worst punishment, continued existence in ever new incarnations.

These are indeed extraordinarily vigorous sanctions, which, though they fail to have any effect on the unbeliever, make a very deep impression on the believer, and are well fitted to determine his actions. But they imply a debasement of the motives for leading a moral life, which are no longer the

outcome of insight and a convinced desire for good, but the result of fear and avidity, a speculation for profit, a prudent flight from danger. The practice of morality becomes a safe investment for the father of a family who hopes to find his savings augmented by interest in the hereafter, and the avoidance of vice becomes a schoolboy's fear of punishment. Nevertheless, the view is widely held by superficial, practical men that these imaginary and deceptive sanctions of Morality cannot be dispensed with, that only the fear of hell can keep the masses from giving themselves up to every form of vice and crime, that only the promise of paradise is capable of inducing them to act unselfishly and make sacrifices, and that all bonds of discipline would be loosened if they ceased to believe in a last judgment and an hereafter with its rewards and punishments.

This whole system of sanctions in a future life is a transcendental projection (according with primitive, childlike thought) of immanent practices and forms in the positive administration of justice which are transferred to a class of actions that successfully evade it. Traditional and customary Law, as well as written Law, puts its whole emphasis on sanctions; it partakes itself of the nature of a sanction. Without sanctions it has no meaning. It is not kindly counsel, nor fatherly admonition, nor wise advice, it is a stern command, it is coercion, and this arouses only scorn if it is not armed with the means to make itself a reality to which the unwilling must also submit, because they cannot help themselves. There is no law, there can be no law, which is not supplemented by arrangements that make it binding for everyone.

In the British House of Commons it has been customary for many hundred years to designate members as the representatives of their particular constituency. Only if a member commits a grave offence against the rules of the House does he run the risk of the Speaker's calling him by name, but this case has not arisen within the memory of man. A disrespectful Irish member of Parliament, urged by perverse curiosity, asked the Speaker one day: "What would happen if you called me by my name?" The Speaker thought for a short time and then answered with impressive gravity: "I have no idea, but it must be something terrible." Such a mysterious threat of an unknown catastrophe may suffice for a picked assembly whose members would no doubt maintain order and observe all the rules of parliamentary decency, even if they were not held in check by the fear of some dark

danger. It would not be sufficient by a long way to guarantee the rule of Law in a society which includes individuals of the most varied disposition, mind development, education and strength of impulse.

Positive Law, as I have shown, presents a very simplified excerpt of Morality for the use of coarser natures. It is a summary of the minimum of self-denial, consideration for one's fellow men, and the feeling of joint responsibility, the observance of which the community must pitilessly demand from all its members if it is to continue to exist and not fall back within a very short time into the state of Hobbes's war of all against all. The necessity of self-preservation makes it a duty for the community to provide for the case that one of its members refuses to accept the minimum of discipline and to recognize the claims of another personality. The community prevents this revolt, which would frustrate its aim and endanger its existence, by employing physical force to break all resistance to the Law which it must, for the common weal, impose on all its members. That is an extraneous compulsion that certainly has something brutal and unworthy of man about it and may well arouse discomfort in more highly developed minds. It would undoubtedly be more dignified and better if there were no need for the handcuffs of the police, for prison cells and executioners, if man's own insight and the admonition of his conscience were enough to constrain everyone to respect the Law, that is, to practise a minimum of Morality.

But the community cannot wait until this stage of moral development has been generally attained. It refuses to entrust its existence to the spiritual purity of all its members. On principle it disregards processes in the consciousness of the individual—I have cited in an earlier chapter the few exceptions to this rule: investigation as to premeditation, accountability, freedom from undue influence—and keeps to actions which alone it judges. It declares itself incompetent to pronounce sentence upon a "storm inside a skull," to quote Victor Hugo. Its sphere is that of obvious facts. Not until subjective impulses and decisions are manifested in outward form does it intervene with methods of the same order, with outward coercion. The sanctions of its law are material, are punishments and fines. It hits the wrongdoer over the head and on his hands and forcibly empties his pockets. To look into his soul and set matters to rights there is a task undertaken much later by law-givers. It was only after they had remembered that the

source of law is Morality and that its ultimate aim is not the bare attainment of a state of mutual respect for one another's rights, but the education of the community to a universal condition of self-discipline, consideration and neighbourly love, that the law-givers made a point not only of requiting the bad man's misdeeds, but also of trying to elevate him morally.

At different times, at different stages of civilization, and according to the current views of the universe, society has interpreted in different ways the punishment it inflicts and which it carries out by forcible means, so as to ensure respect for its laws. Its original character is that of revenge for an offence. The wrongdoer has offended the community, it attacks him furiously and breaks every bone in his body just as an angry individual would do in his first access of indignation. That is Draco's penal code. That is the law of literal requital. The special characteristic of this sanction is its violence and lack of moderation. It does not trouble to find the right proportion between punishment and crime. It does not carefully and fairly weigh the force of its blows. The club falls with a frightful crash, but its dynamical effect is not calculated beforehand in kilogrammetres. "The stab of a knife is not measured," as an Italian proverb says. Thus conceived, punishment has something primitive about it, something intolerably barbarous. The community does the very things it was created, by Morality and Law, to prevent; it exercises the right of the stronger against the challenger; it promotes war, not that of all against all, but of all against one, and its punishment is an act of war.

In a strongly religious society which lives in the idea of immediate community with the deity, every transgression of the law is felt to be a sin against the gods, and the punishment becomes an expiation offered to them so as to avert their dangerous anger from the commonwealth. In the administration of justice dim religious ideas are mingled, punishment is tinged with a veneer of civilization, the culprit is, so to speak, offered as a sacrifice to the gods. This supernatural view was prolonged by the Inquisition, at least for a certain class of offences, until almost modern times.

When society awakens to the consciousness that its bond of union is Morality, and that its most important task is to educate its members in Morality, it introduces the concept of betterment into its penal system. It

wants not only to punish the wrongdoer sharply but also to transform him inwardly and purify him. He is to feel that the punishment is not only a requital but a mental benefit. In the Austrian army, until corporal punishment was abolished, it was a rule that the soldier, after being flogged, should approach the officer on duty and say, as he saluted, "I thank you for the kind punishment." That is the attitude that society, when it gives a moralizing tendency to its penal laws, wishes the person who has been punished to attain. In this there is much pleasing self-deception not unmixed with a good deal of hypocrisy. Penal law offers the wrongdoer but little scope for improvement.

All misdemeanours and crimes flow from three sources: ignorance, passion and innate, anti-social self-seeking. Ignorance is the main, almost the exclusive cause of wrongdoing among young criminals who have been badly brought up or neglected, who have never had anything but bad examples before them, and who cannot distinguish between good and evil. Society may hope to improve these by right treatment; it must not punish, it must educate them. Men who commit crimes from passion are those who possess a consciousness of Morality and a conscience, who know quite well what is right and what wrong, but have not sufficient strength of character, that is, not an adequately developed power of inhibition, to resist an opportunity, a temptation, a turmoil of their instincts. To want to improve them is senseless, for they are not bad; they are weak, or at any rate not strong enough. What they need is a strengthening of their character, of their faculty of inhibition, and to achieve this is beyond the power of society. All it can do is to humiliate the guilty party by publicly exposing his lapse and by condemning him, and then grant a delay of the execution of the sentence. In so doing it says to him: "You have acted basely and ought to be ashamed of yourself, now go and do not do it again." If the warning is unavailing and he relapses, then the earlier sentence, as well as the new one, is executed. Fear of this is added to his motives for acting honestly, and may possibly strengthen his resistance to the onslaught of his evil instincts. But his good conduct will always be at stake in the struggle between his power of inhibition and his instincts, and the stronger of the two will always carry the day. And finally, upon the man whose organic disposition makes him anti-social, upon Lombroso's born criminal, society can have no educative effect whatever. It is a hopeless case. Society can render him harmless, it cannot

alter him. Consideration for his neighbour will never find a place in his consciousness. He will never learn to resist his impulses and desires. His spiritual insensibility makes him indifferent to the sufferings of others. Incapable of continuous and equable effort, he will always want to prey on society by begging, deceiving, stealing and robbing. He has no conscience and does not hear the voice of society in his mind. He knows nothing of good and evil, which are both empty phrases for him, words without any meaning, and he is convinced that he acts rightly every time he seeks to satisfy his appetites. In his case it is love's labour lost to try and give a moral meaning to the sanctions of the law. Punishment is not directed against the soul of the born criminal, only against his body. It overwhelms him, fetters him and makes him either for the time being, or permanently, harmless; but his organic tendency continues to sway him, and whenever he recovers his liberty he is the same as before he was punished.

The Mystics give to punishment the character of fatherly and chastening discipline by which the sinner expiates his crime and is purged of the sin; thus it purifies him and leads him back to the state of innocence; a kind of anticipatory hell fire which enables him to enter paradise. In "Gorgias" Plato says explicitly: "He who is punished is liberated from the evil of his soul." And the Apostle Paul teaches us: "Punishment is ordained for the betterment of man." Criminal anthropology recognizes that it is useless to expect this moralizing and redeeming effect from punishment. Lombroso altogether rejects punishment as a means of discipline and expiation, and before him Bentham and J. S. Mill, and simultaneously with him and after him Fouillée, Guyau and Maudsley adopted the same view. According to them the sanction of criminal law, which extends and completes it and ensures its efficacy, can have no other aim than the law itself, and this aim is to defend society against its active enemies, if possible by converting them, if necessary by forcible subjugation.

In a book which is full of interest, but whose value is considerably diminished by a strong admixture of mysticism, "Esquisse d'une morale sans obligation ni sanction," M. Guyau goes much farther than the criminal anthropologists and sociological opponents of punishment, and expresses the somewhat paradoxical view that "the real sanction seems to imply complete freedom from punishment for the crime committed, as punishment for any action that has been accomplished is useless." It is quite

correct that no punishment under the sun can undo what has been done. But it is not feasible for that reason to dispense with all punishment for misdeeds and to call this systematic freedom from punishment a sanction. Guyau overlooks the fact that the punishment is directed not to the crime but the perpetrator. It certainly alters nothing in a past transgression of the law, and that is not its object, but it may possibly have the effect of preventing fresh misdeeds on the part of the same wrongdoer or of others, and that would justify it.

If society must renounce the idea of improving the misdemeanant, especially the man whose organic tendencies make him a criminal and who is the most dangerous and commits the most numerous and worst crimes, it nevertheless assumes that it makes an impression on morally doubtful characters by punishing misdemeanours and crimes, that it warns them and prevents them from erring. That is the theory of intimidation, which also has many opponents. It will hardly be denied that psychologically it is well founded. The conception of the evil consequences for himself that his action may entail strengthens the impulsive man's power of inhibition when he is about to do wrong, and perhaps enables him to overcome his immoral instinct. Only it is difficult to measure the force which the thought of punishment adds to the effort of inhibition. This force does not come into question at all with the man who sins occasionally from passion. The flood of his impulses sweeps away all barriers which reason may oppose, and their power of resistance is not materially increased by the fear of consequences, because the mental horizon is completely darkened at the time of the storm and no prevision is possible. The criminal from organic causes exercises no inhibition. He knows that society condemns his actions, but he is convinced of his personal right to carry them out, and fears no punishment, because he hopes to escape it, and tries his utmost by means of planning, prudence and self-control to outwit society. The theory of intimidation is not applicable to these two classes of criminals, and they constitute a large proportion of the army of wrongdoers against which society has to defend itself by force.

But there remains the great number of mediocre natures whose sympathy with their fellow men, the emotional foundation of the subjective impulse to Morality, is only slightly developed, who have a superficial veneer of Morality, who act honourably out of prudence, but who would feel no

repugnance towards perpetrating profitable misdeeds, if they were certain that they would incur no risk. These insipid characters whose emotional temperature oscillates round about freezing point and who are incapable of great excitement, of passion, would see no reason to resist any temptation, to disregard any favourable opportunity, if the penal code, the judge and the policeman did not warn them to be careful. For this kind of man the penal sanction is really a useful and perhaps an indispensable means of prevention, and it has been thought out and developed by the community with a view to such people.

Not content with theoretical considerations, people have also appealed to practical experience to test the theory of intimidation. In some countries capital punishment was either legally abolished or tacitly suppressed, the judges either refraining from pronouncing the sentence on the prisoner or the head of the state, when appealed to, commuting it by an act of pardon to loss of liberty. Statistics seemed to show that serious crimes meriting the death penalty increased, and capital punishment was reintroduced or the practice of systematic pardons was abandoned, with the alleged result that the worst crimes grew less numerous. I express myself doubtfully, because I do not think that the statistics were sufficiently conclusive. They embraced too small a number of cases and too short a period of time. It cannot be conclusively proved that the abolition of the death penalty resulted in an increase of capital crimes; but it is certain that crimes were never more frequent or more horrible than in the times when criminal justice was most cruel and made use of the most terrible sanctions. Up to the dawn of modern times legal torture was administered, at every street corner there were gallows, the poor wretch under sentence of death was pinched with red-hot pincers, the executioner tore the flesh from his bones, poured boiling pitch over him, cut out his tongue, hacked off his hands, broke him on the wheel or burnt him alive; executions were a sort of public entertainment or popular holiday, and efforts were made to attract as many spectators as possible; every inhabitant of one of the larger towns was familiar from childhood with the horrid spectacle of mutilated human bodies writhing in torture, and there rang in his ears the echo of the screams of pain and of the shrill death rattle of the victims. But these impressions were so far from intimidating the gaping crowd that many hurried from the place of execution to commit the most execrable crimes, the punishment of

which they had just witnessed; consequently punishments have gradually been made less cruel, and the public is excluded from executions, which clearly indicates a decisive rejection of the theory of intimidation.

The truth is that the severity of the punishment has no effect upon the frequency or the savagery of crimes. The criminality of a community depends on the value and emphasis of the moral education which it bestows upon the rising generation. It can prevent its members, at any rate the average, normal type, from developing into criminals. But the fear of punishment has no deterrent effect upon those whose criminal impulses have not been subjugated by social discipline. The severity of the punishment does not contribute anything to the defence of society. It only proves that the lawgiver and the criminal judges are on the lowest level of civilization which corresponds to a widespread and barbarous criminality, and that their modes of thought and feeling are horribly like those of the criminals whom they sentence to torture, the gallows, and the wheel.

Positive law aims at defending society, and tries to attain its end by punishing transgressions. It provides no reward for conscientious obedience. The law has no honours to bestow on blamelessness and virtue. Society felt the want of this and made attempts to encourage honourable conduct by conferring distinctions, just as it tries to intimidate vice by punishing crime. These attempts were not particularly happy. The bestowal of titles and orders is no recognition of virtue, but a means adopted by governments to ensure devotion to power. An arrangement was made in some places to honour model citizens in public and crown them with laurels, but it soon came to grief owing to indifference and mockery. A private individual wanted to fill this gap in social institutions. The Count of Montyon, a son of the eighteenth century, whose philosophy he had imbibed, instituted the prizes for virtue which are distributed annually by the French Academy. They are bestowed on modest integrity in humble circumstances which has manifested a sense of duty, neighbourly love and self-sacrifice. This friend of man has had few imitators, and that is understandable. Sound common sense realizes that rewards like the Montyon prizes for virtue do not with the infallibility of a natural law fall to the lot of merit, but are nearly always adjudicated to the prizewinner by chance, by recommendation, and by all sorts of influences that have nothing to do with virtue; and it seems unjust that among equal claims some should

be satisfied while others, the great majority, are not. It would be vain to contend that one virtue which goes empty-handed is not unfairly treated when another gets a benefit on which it has not counted, and that in a moral character, such as alone would be eligible for a prize for virtue, there is no room for envy. That would be the moral of the Gospel concerning the labourers who came at the eleventh hour, which has met with opposition from others besides the contemporaries of Jesus.

On the whole, the community has never felt called upon to solve the moral problem of the reward of virtue. It has always contented itself with the punishment of vice and has given its law threatening, but not encouraging, sanctions. This attitude shows that it has always had a clear conception of its moral task. In its positive law it never included anything but that minimum of Morality that was absolutely necessary to its existence, and without which it would dissolve into its original elements, its order would be replaced by chaos, by the war of all against all. It must insist on the observance of this minimum; it must use forcible means to achieve this. But it does not feel justified in demanding more than this minimum, because more is not claimed by its instinct of self-preservation. A surplus of virtue over and above the amount necessary for the life of society is desirable; but it does not lie within the scope of the natural functions of the community, determined by its organic necessities, to achieve this by compulsion and the provision of legal rewards as an encouragement. It is the business of the individual to work at his own moral improvement, and the community cannot interfere directly in the matter. It is enough that it encourage this work indirectly by bestowing care on the culture and education of the individual, by making it the duty of its public schools to inculcate good principles, and by creating a public opinion which surrounds all the activities of higher morality with admiration, respect and gratitude. The moral education of the individual is not an object with which laws are concerned; it is the result of the constant, vital influence of the community, and can have no sanction other than the increase of well-being of every single person within the social union, which is a natural consequence of raising the moral level of the community.

The penal sanctions of positive law have a gross materialism about them corresponding to the definite concreteness of the actions with which positive law deals. The broad field of Morality, however, which is outside

the narrow sphere of the laws, has no room for sanctions of a material nature. The penalties prescribed by law are directed to actions which, if they became general, would in a very short space of time result in the dissolution of society. The community essays by forcible measures to prevent this kind of action, and these measures more or less fulfil their aim, whether you interpret their use on the theory of discipline, of expiation and purification by repentance, of improvement and moral re-birth, or of intimidation. All these theories were invented later on, after the community had been convinced by experience that punishment, if it does not entirely prevent crime, at least limits it sufficiently to make the continued existence of society possible, and more or less to guarantee to its members the safety of their life, their property and their personal dignity.

Against transgressions of the moral law, the results of which are not immediately obvious, such as ruthless selfishness, blunted sympathy and lack of active neighbourly kindness, the community does not proceed with forcible measures; firstly, because it cannot establish their existence convincingly and hence cannot try them in a court of justice, and secondly, because it does not recognize them as constituting an immediate danger to its existence. Now, as the sanctions set up by society are not applicable to these transgressions, an individual whose mind does not penetrate very far into matters is disquieted, for accustomed as he is to the spectacle of the steady justice of the state, he seeks the counterpart in the forms of this justice in the world of Morality, and does not discover it at the first glance. He asks anxiously where are the police, the public prosecutor, the examining magistrate, the criminal court, the prison for sins against Morality, and invents them, since he cannot find them. He transfers to the hereafter the sanctions of Morality, which are not visible on earth. He cannot make up his mind to renounce them, because the fact that sins against the moral law go unpunished would seem to him to indicate intolerable anarchy, comparable with the state of a community where everyone could murder, rob and mutilate to his heart's content without incurring the risk of the least personal unpleasantness.

In the sphere of the moral law punishment certainly does not follow hot foot upon crime, but it nevertheless does not fail to appear, and becomes visible when the eye is capable of embracing long periods of time and of tracing intricate connexions. The sanctions of the moral law differ from those of

criminal law, but they are not wanting. They are of a subjective and of an objective character. The subjective punishment for a sin against the laws of Morality is remorse. It is inflicted by the inner judge who rules in the consciousness of the individual, by conscience, and penetrates to the very deepest depths of a person's mind which no outward punishment imposed by the community ever reaches. It is not only religious and political martyrs who endure torture and death with proud serenity, conscious that they are morally immeasurably superior to their executioners; even common criminals remain perfectly unmoved by their punishment and regret only that they are weaker than their captors. Prisons are full of convicts who look upon their condition as that of prisoners of war. They have been worsted in their battle with law. That seems to them a misfortune but not a disgrace. They are neither humble nor contrite, but revengeful. They are determined and ready to take up the duel with society as soon as an opportunity offers and they may hope to do so with some prospect of success.

But remorse is an unresisting submission to the verdict of conscience and the consciousness of one's own unworthiness. It is the recognition of the justice of the sentence which brands one, and the constant, anguished realization that one's personality has been deservedly humiliated, dishonoured and deprived of its rights. As a spiritual process, remorse causes the sinner continually to relive the misdeed he committed, while at the same time he is fully conscious of its atrocity. The ego becomes dual, one part active, the other watching and judging. The one again and again perpetrates its misdeed, the other looks on horrified and suffers agonies. It is one long torture and disgrace of self. Remorse condemns the sinner perpetually to repeat in his mind the deed which fills him with horror of himself. This state of mind is the nearest approach to eternal damnation in hell. There is only one means of temporary escape: to extinguish memory by narcotics. That is why remorse not seldom leads to drunkenness. Shakespeare, with a poet's infallible insight into the soul, has grasped and depicted the nature of remorse, the uninterrupted, torturing presence of the misdeed in man's consciousness. Lady Macbeth sees her hands ever stained with the blood of the innocent royal victim whom she herself did not even murder, and she complains that "all the perfumes of Arabia will not sweeten this little hand." Leontes, in the "Winter's Tale," on hearing of Hermione's alleged death, of which he believes himself guilty, mourns:

"Once a day I'll visit
The chapel where they lie; and tears shed there
Shall be my recreation: so long as nature
Will bear up with this exercise, so long
I daily vow to use it."

Remorse is the most effective of the subjective sanctions of Morality; it is almost too effective, for owing to its duration and severity the punishment easily grows disproportionate to the crime. But it has one great disadvantage, it affects only better natures who have an active conscience and spiritual delicacy, while it spares the wicked who have no conscience, who perpetrate their misdeeds contentedly, without a qualm, and regret them only when they are discovered and lead to unpleasantness.

Nevertheless, the actions of these hardened sinners do not go quite unpunished. Moral law always takes vengeance for transgressions, but not directly on the evildoer. In addition to the subjective, it also has an objective sanction; when it is violated retribution falls on the community. The masses have a dim idea that every evil deed meets with requital and express it in the proverb that "Though the mills of God grind slowly, yet they grind exceeding small." They have noticed that the curse of an evil deed never fails to come, and is consummated with crushing force, only that it does not happen at once. It seems objectionably unjust that the culprit should not feel the effect of his crime, whilst others do who were not born when it was perpetrated. But the concept of retributory justice is as little applicable to the far-reaching relations in the life of humanity as to the actions of the laws of Nature, for instance gravity or electricity. Morality is, as I have shown, an adaptation of the species to the natural conditions in which it is forced to live. Morality, therefore, has an aim, which is to make social life in common possible for the individual, this life alone enabling him to maintain his existence amid the conditions obtaining on this earth. The discipline which Morality imposes on the individual leaves him a certain amount of free play. If he escapes from this discipline to a certain small extent which does not threaten the existence of society, this revolt has no ill effect upon the life of the species, the latter has no grounds for punishing him, and the only, yet sufficient, sanction of the loose Morality of an undisciplined individual lies in the fact that he is more or less inferior to the most perfect type of the species, and visibly bears the stamp of his worthlessness in his

character, his bearing and his mode of thought. But if in his disregard of Morality the individual goes so far as to frustrate its aim and endanger the existence of society, then the latter must either find ways and means of rendering the culprit harmless or else it overlooks his misdeed and thereby becomes an accessory and justly suffers the evils consequent upon a deterioration of Morals which is universally tolerated.

The means by which a society must defend the Morality necessary to its existence can only be spiritual, for it is not a question of breaches of the positive law which result in the intervention of justice and of material penalties, but of a disregard of the commands of Morality, which are not drawn up in paragraphs. Public opinion suffices to rouse the individual who despises the Moral law to an uncomfortable sense of his unworthiness; if he finds himself treated with contempt and sees disapproval and dislike in everyone's face, either he will be spurred to an effort to overcome his immoral instincts or his self-respect will suffer from the universal contempt with which he meets; and this suffering is his punishment, therefore it is the sanction of a breach of the Moral law.

If public opinion does not keep careful and severe watch, such as may be termed the function of a higher moral police, then inevitably the moral tone of the whole society will sink to a lower level, and this will result in making life harder and more difficult, and in certain circumstances may lead to dissolution. This is not a theoretical assumption, but an observed fact, a lesson taught by history. It tells us of epochs in which the licentiousness of individuals, favoured by a society too dull, weak and indifferent to stand up against bad examples, succeeded in corrupting all classes. Such a period is exemplified by the fall of Rome. Common natures indulged and wallowed in every vice, the better ones felt such disgust for a life without nobility and virtue that they discarded it, and the community lost all excuse of joint responsibility and became so loosely knit together that it was incapable of common effort or sacrifice, and collapsed miserably at the first onslaught of a foreign aggressor tempted by its depravity.

The disintegration of a society, the sanction of its sins against Morality, is a slow process. It does not often take place catastrophically, with theatrical effect, so that even a dull observer can grasp the connexion between cause and effect. But whoever investigates closely will realize that all evils from

which society suffers, which make life more bitter and harder for its members, are ultimately due to defective Morality. What are class struggles with their consequent hostilities between groups of the same nation, their coercion and damage, but manifestations of self-seeking, lack of consideration and injustice, that is, of Immorality? Would they be possible if members of all classes, capitalists and workers, agriculturists and townsmen, rulers and subjects were inspired by neighbourly kindness, understanding and appreciation of the needs, pretensions and feelings of their opponents, and by a spirit of self-sacrifice? Would the decay of character, the arbitrariness and arrogance of the mighty, the cowardly slavishness of the masses, with the resultant rottenness of public affairs, be conceivable if individuals were conscious of their dignity and their duty to themselves and the community, and if they had the strength and the determination to overcome their fear of men? Could wars of aggression bring ruin upon mankind if leading personalities did not give way to the desire for outward honours, to the hunger for power, to avarice, to the itch of vanity, that is to the lowest forms of selfishness, and if the masses out of stupidity or fear of a mental effort, and out of dread for their personal responsibility did not allow themselves to be misused for base purposes?

Thus we find insufficient Morality in individuals, or the complete lack of it, to be at the root of all evils with which the community is afflicted, and we are justified in conceiving war, party quarrels, collisions between groups representing different interests, revolutions, in fact, all tragedies of life in societies with the suffering and destruction they entail, as the penal sanction of sins against Morality. Morality, which was created to facilitate life for the individual or to make it at all possible for him, is no longer able to fulfil its aim, and the society finds itself by its own fault back in the condition of misery and fear, owing to which its instinct of self-preservation originally forced it to make the effort of setting up the Moral law. Even the most merciless zealot cannot wish for a more efficacious and painful punishment of Immorality.

But Morality does not possess the sanction of punishment alone, it has also the more amiable one of reward. We have seen that by strengthening the faculty of inhibition it raises the individual to a higher level of organic development, that by the inculcation of consideration and neighbourly kindness it affords the community the possibility of working together peacefully and profitably. But it does more than that. It gives life an incomparably higher value than when it is dull and uniform, by enriching and beautifying it with heroism and with ideals.

Ideals and heroism are direct creations of Morality and inconceivable without it. The ideal is a conception of perfection; the thought of attaining it is accompanied by the most pleasurable emotions, and the individual regards it as his life's task to strive for it. The struggle for the ideal implies effort at all times, renunciation of the ease of a thoughtless and care-free existence, an endless series of difficult victories over appetites clamouring for immediate satisfaction, that is, constant work in the service of Morality. He who has an ideal is never troubled by the problem of the meaning of life. His life has an aim and significance. He knows whither he goes, why he lives, for what he works. He knows nothing of the doubts of the aimless wanderer, of the discouraging consciousness of one's own uselessness, and his assurance, his conviction that his efforts are useful and worthy come very near to happiness. Heroism is the noblest victory of a thinking and volitional personality over selfishness; it is altruism which rises to self-sacrifice, the proud subjugation by Reason of the most primitive and powerful of all instincts, that of self-preservation. It is the highest achievement of which Morality is capable. It is never developed for the profit of an individual, but always for that of a community, for a thought, for an ideal. His heroic conduct raises the hero out of the rut of his existence, liberates him from the trammels of his individuality and enlarges this to represent a community, its longings, its resolutions, its determination. At the moment of his heroic action the hero lives innumerable lives, the lives of all for whom he risks his own, and if death reaches him, it can destroy only his single person, but cannot put an end to the dynamic activity of the community which is included in the hero, while he is magnificently elevated far above himself. The faculty of forming an ideal of existence and activity, and of rising to the heights of heroism, is the royal reward of Morality which the perfect subjection of animal instincts to

the rule of human Reason has achieved. Its punishment for those retrograde individuals who never learn to control their instinctive reflex actions is that they are denied the sight of the glory of the ideal, that heroism is unknown and incomprehensible to them, that they lead their lives fettered and imprisoned, unconscious of any task, without prospect or exaltation, as if they dwelt in a cellar or in a dark dungeon. These are the sanctions of Morality. It has no others, nor does it need them.

In one passage of the book cited above Guyau makes the doubting remark: "Who can tell us whether Morality is not ... at one and the same time a beautiful and useful art? Perhaps it bewitches us and deceives us." Let us assume that it is an illusion. That would not detract from its value for mankind. Is not all our knowledge of the world, is not our whole view of Nature an illusion? We are made conscious of the universe by its qualities, and these qualities are conferred on it by our senses. But all knowledge that we derive from our senses is an illusion. For the senses do not convey reality to us, but the modifications which the influence of reality produces in our sense organs. The universe has neither sound nor colour nor scent. But we perceive it as sounding, coloured and scented. These qualities we attribute to reality are illusions of our senses, but these illusions make up all the beauty of the world which without them would be dumb, blind and without charm for us.

Life for us is an unspeakably oppressive riddle. Has it an aim, and, if so, what? We do not know. All thought only leads to the conclusion: life is its own aim and end, we live for life's sake. And this conclusion is no solution of the problem. Then Morality appears, and not only makes life easier and possible, but even shows us an aim, if not for universal, at least for individual life. That aim is the humanization of the animal, the spiritualization of man, the exaltation and enrichment of the individual by means of sympathy, neighbourly kindness, a sense of joint responsibility, and the subjection of Instinct to Reason which, as far as we know, is the noblest product of Nature. It is possible that Morality, which hides the eerie unintelligibility of life from us, is an illusion. Blessed be the illusion which makes life worth living.

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THE EVOLUTION OF MAN ***

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